



Fair Work Act 2009

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This compilation is in 4 volumes

Volume 1: sections 1-257

Volume 2: sections 258-536NK

Volume 3: sections 536NL-800

**Volume 4: Schedules
Endnotes**

Each volume has its own contents

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About this compilation

This compilation

This is a compilation of the *Fair Work Act 2009* that shows the text of the law as amended and in force on 2 April 2026 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au).

Application, saving and transitional provisions

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Presentational changes

The *Legislation Act 2003* provides for First Parliamentary Counsel to make presentational changes to a compilation. Presentational changes are applied to give a more consistent look and feel to legislation published on the Register, and enable the user to more easily navigate those documents.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. Any modifications affecting the law are accessible on the Register.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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Schedule 1—Application, saving and transitional provisions relating to amendments of this Act

Note: See section 795A.

Part 1—Amendments made by the Fair Work Amendment (Textile, Clothing and Footwear Industry) Act 2012

1 Definitions

In this Part:

amended Act means this Act as amended by the amending Act.

amending Act means the *Fair Work Amendment (Textile, Clothing and Footwear Industry) Act 2012*.

commencement means the commencement of this Part.

deemed employee means a TCF contract outworker who is taken by section 789BB of the amended Act to be an employee.

deemed employer means a person who is taken by section 789BB of the amended Act to be the employer of a deemed employee.

2 Section 789BB of amended Act applies to contracts entered into after commencement

- (1) Section 789BB of the amended Act applies in relation to particular TCF work performed by a TCF contract outworker only if the contract for the provision of services, for the purpose of which the outworker performs the work, is entered into after commencement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 1 Amendments made by the Fair Work Amendment (Textile, Clothing and Footwear Industry) Act 2012

Clause 3

- (2) Subclause (1) does not prevent regulations made for the purposes of section 789BC of the amended Act, or clause 7 of this Part, from dealing with the effect, in relation to a person who is taken by section 789BB of the amended Act to be an employee, of matters that occurred before commencement.

3 Effect on TCF contract outworker's entitlements

Accrued entitlements not affected

- (1) The amendments made by the amending Act do not affect any entitlement that a TCF contract outworker had accrued before commencement.

Effect of modern award term requiring National Employment Standards to be applied to TCF contract outworker

- (2) To avoid doubt, if:
- (a) a term of a modern award requires the principal of a TCF contract outworker to apply the National Employment Standards to the outworker as if the outworker were an employee; and
 - (b) because of Division 2 of Part 6-4A of the amended Act, the outworker is taken to be an employee (being a national system employee) of the principal for the purposes of Part 2-2 of the amended Act (the National Employment Standards);
- then, to the extent that the term gives the outworker an entitlement that is the same as an entitlement (the **NES entitlement**) of the outworker (as a national system employee) under the National Employment Standards, the term operates in parallel with the outworker's NES entitlement, but not so as to give the outworker a double benefit.

4 Fair work instruments etc. made before commencement

- (1) This clause applies in relation to:
-

Clause 5

- (a) a fair work instrument made before commencement; or
 - (b) a transitional instrument as continued in existence by
Schedule 3 to the Transitional Act.
- (2) A reference in the instrument to an employee or an employer does not include a deemed employee or a deemed employer, unless the instrument is, after commencement, varied to make it clear that the reference is intended to include a deemed employee or deemed employer.
- (3) This clause is not to be taken to confer a power to vary the instrument.

5 Application of Division 3 of Part 6-4A of amended Act

For the purposes of Division 3 of Part 6-4A of the amended Act, an entity is not an indirectly responsible entity in relation to particular TCF work if the arrangement to which the entity is a party, being the arrangement because of which the work can be regarded as being performed indirectly for the entity, was entered into before commencement.

6 Application of subsection 203(2A) of amended Act

Subsection 203(2A) of the amended Act applies in relation to enterprise agreements made after commencement.

7 Regulations dealing with various matters

Application, saving and transitional

- (1) The regulations may make provisions dealing with matters of an application, saving or transitional nature relating to the amendments made by the amending Act.
- (2) The provisions of this Part have effect subject to any regulations that are made for the purpose of subclause (1).

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 1 Amendments made by the Fair Work Amendment (Textile, Clothing and Footwear Industry) Act 2012

Clause 7

Application to TCF outworkers of provisions of the Transitional Act

- (3) The regulations may make provisions dealing with how the Transitional Act applies in relation to TCF outworkers.
- (4) Without limiting subclause (3), regulations made for the purposes of that subclause may:
 - (a) provide that the Transitional Act applies with specified modifications; or
 - (b) otherwise make provision relating to how provisions of that Act apply.

Retrospective application of regulations

- (5) Subsection 12(2) (retrospective application of legislative instruments) of the *Legislation Act 2003* does not apply to regulations made for the purposes of subclause (1) or (3) of this clause.

Part 2—Amendments made by the Superannuation Legislation Amendment (Further MySuper and Transparency Measures) Act 2012

8 Definitions

In this Part:

amended Act means this Act as amended by the *Superannuation Legislation Amendment (Further MySuper and Transparency Measures) Act 2012*.

9 Application of sections 149A and 155A of amended Act

Sections 149A and 155A of the amended Act apply in relation to a modern award that is in operation on or after 1 January 2014, whether or not the award was made before that day.

10 FWC to vary certain modern awards

- (1) This clause applies in relation to a modern award if the award:
 - (a) is made before 1 January 2014; and
 - (b) is in operation on that day; and
 - (c) immediately before that day, does not include a term (the ***relevant term***) of the kind mentioned in section 149A of the amended Act.
- (2) The FWC must, by 31 December 2013, make a determination varying the modern award to include the relevant term.
- (3) A determination made under subclause (2) comes into operation on (and takes effect from) 1 January 2014.
- (4) Section 168 applies to a determination made under subclause (2) as if it were a determination made under Part 2-3.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 2 Amendments made by the Superannuation Legislation Amendment (Further MySuper and Transparency Measures) Act 2012

Clause 11

11 FWC to update text of certain modern awards

- (1) This clause applies in relation to a modern award if the award:
 - (a) is made before 1 January 2014; and
 - (b) is in operation on that day; and
 - (c) immediately before that day, includes a term (the ***relevant term***) of the kind mentioned in section 155A of the amended Act that specifies a fund or scheme (a ***non-complying fund or scheme***) that does not satisfy paragraph (1)(a) or (b) of that section.
- (2) The FWC must ensure that the text of the modern award as published by the FWC does not include a non-complying fund or scheme in the relevant term.
- (3) The FWC must do so by 1 January 2014 (despite section 155A of the amended Act).

12 Application of paragraph 194(h) of amended Act

Paragraph 194(h) of the amended Act applies in relation to an enterprise agreement that is approved by the FWC on or after 1 January 2014.

Part 3—Amendments made by the Fair Work Amendment (Respect for Emergency Services Volunteers) Act 2016

13 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work Amendment (Respect for Emergency Services Volunteers) Act 2016*.

commencement means the commencement of this Part.

14 Application of amendments—objectionable emergency management terms

Application of amendments

- (1) The amended Act applies, after commencement, in relation to enterprise agreements approved, and workplace determinations made, before or after commencement.
- (2) Sections 254A and 281AA of the amended Act apply in relation to a matter that is before the FWC on or after commencement, even if the matter was before the FWC before commencement.

*Enterprise agreements approved before commencement—
preservation of terms in accordance with amended Act*

- (3) If an enterprise agreement approved before commencement includes an objectionable emergency management term, a term of the agreement has effect after commencement to the extent that:
 - (a) the term can have effect in accordance with the amended Act;
 - and

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 3 Amendments made by the Fair Work Amendment (Respect for Emergency Services Volunteers) Act 2016

Clause 14

- (b) it would not exceed the Commonwealth's legislative power for the term so to have effect.

Part 4—Amendments made by the Fair Work Amendment (Protecting Vulnerable Workers) Act 2017

15 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work
Amendment (Protecting Vulnerable Workers) Act 2017*.

16 Application of amendments—unreasonable requirements to spend or pay amounts

Subsections 325(1) and (1A) of the amended Act apply in relation
to requirements made after this clause commences.

17 Saving of regulations—unreasonable deductions

Regulations in force, immediately before the commencement of
this clause, for the purposes of subsection 326(2) of the *Fair Work
Act 2009* have effect after that commencement as if they had been
made for the purposes of subsection 326(2) of the amended Act.

18 Application of amendments—increasing maximum penalties for contraventions of certain civil remedy provisions

- (1) Sections 539, 557A and 557B of the amended Act apply in relation
to conduct engaged in on or after the commencement of this Part.
- (2) If:
 - (a) conduct was engaged in by a person before and after that
commencement; and

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 4 Amendments made by the Fair Work Amendment (Protecting Vulnerable Workers) Act 2017

Clause 19

- (b) the conduct is part of a course of conduct referred to in subsection 557(1);
the conduct engaged in before that commencement is to be treated as constituting a separate contravention from the conduct engaged in after that commencement for the purposes of section 557.
- (3) However, a court may still consider a contravention of a civil remedy provision (whether or not the provision is referred to in subsection 557(2)) by a person that occurred before the commencement of this Part for the purposes of determining whether a person's conduct was part of a systematic pattern of conduct referred to in paragraph 557A(1)(b).

19 Application of amendments—responsibility of responsible franchisor entities and holding companies

- (1) Section 558B of the amended Act applies in relation to contraventions of civil remedy provisions by franchisee entities or subsidiaries that occur after the end of the period of 6 weeks beginning on the day this Part commences.
- (2) To avoid doubt, in determining for the purposes of paragraph 558B(1)(d) or (2)(c) of the amended Act whether a person could reasonably be expected to have had knowledge as referred to in that paragraph, a court may have regard to conduct that occurred, or circumstances existing, before the end of the period referred to in subclause (1).

20 Application of amendments—hindering or obstructing the Fair Work Ombudsman and inspectors etc.

Section 707A of the amended Act applies in relation to conduct engaged in at or after the commencement of this Part.

21 Application of power to give FWO notices

Sections 712A to 712F of the amended Act apply in relation to an FWO notice given after this Part commences, whether the investigation to which the notice relates is begun before or after the commencement of this Part.

22 Application of amendments relating to self-incrimination etc.

Section 713 of the amended Act applies in relation to information given, records or documents produced or questions answered after the commencement of this Part.

23 Application of requirement for reports not to include information relating to an individual's affairs

Section 714A of the amended Act applies in relation to reports prepared after the commencement of this Part.

24 Application of amendments—false or misleading information or documents

Subsections 535(4) and 536(3) and section 718A of the amended Act apply in relation to conduct engaged in after the commencement of this Part.

24A Application of amendments—presumption where records not provided

Section 557C of the amended Act applies in relation to contraventions of civil remedy provisions that occur after the commencement of this Part.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 5 Amendments made by the Fair Work Amendment (Repeal of 4 Yearly Reviews and Other Measures) Act 2018

Division 1 General

Clause 25

Part 5—Amendments made by the Fair Work Amendment (Repeal of 4 Yearly Reviews and Other Measures) Act 2018

Division 1—General

25 Definitions

In this Part:

4 yearly review of modern awards has the meaning given by this Act, as in force immediately before the commencement of Schedule 1 to the amending Act.

amended Act means this Act as amended by the amending Act.

amending Act means the *Fair Work Amendment (Repeal of 4 Yearly Reviews and Other Measures) Act 2018*.

Schedule 1 commencement day means the day on which Schedule 1 to the amending Act commences.

Schedule 2 commencement day means the day on which Schedule 2 to the amending Act commences.

Division 2—Amendments made by Schedule 1 to the amending Act

26 Incomplete review of modern award

Scope

- (1) This clause applies in relation to a review of a modern award conducted as part of a 4 yearly review of modern awards if:
- (a) the review of the modern award commenced before the Schedule 1 commencement day; and
 - (b) immediately before that day, the review of the modern award had not been completed.

Saving

- (2) Despite the repeal of:
- (a) Division 4 of Part 2-3 (which deals with 4 yearly reviews of modern awards); and
 - (b) paragraph 582(4)(a) (which deals with directions by the President); and
 - (c) subsections 616(2) and (3) (which deal with the FWC's functions etc. that must be performed by a Full Bench);
- by the amending Act, those provisions continue to apply, in relation to the review of the modern award, as if those repeals had not happened.
- (3) Despite the repeal of paragraph 582(4)(a) (which deals with directions by the President) by the amending Act, a direction given by the President to an FWC Member under that paragraph that was in force immediately before the Schedule 1 commencement day continues to have effect, in relation to the review of the modern award, as if that repeal had not happened.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 5 Amendments made by the Fair Work Amendment (Repeal of 4 Yearly Reviews and Other Measures) Act 2018

Division 2 Amendments made by Schedule 1 to the amending Act

Clause 26

- (3A) If, after the commencement of Part 5 of Schedule 1 to the *Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022*, the FWC is considering, under repealed Division 4 of Part 2-3 (as continued in force under subclause (2)), whether an amendment to a modern award is justified by work value reasons, the FWC's consideration of those work value reasons must:
- (a) be free of assumptions based on gender; and
 - (b) include consideration of whether historically the work has been undervalued because of assumptions based on gender.

Common issues

- (4) For the purposes of this clause, it is immaterial whether the review of the modern award is conducted in relation to an issue that the modern award has in common with another modern award.

Division 3—Amendments made by Schedule 2 to the amending Act

28 Application of amendments—when employees have genuinely agreed to an enterprise agreement

- (1) The amendments of section 188 of this Act made by Schedule 2 to the amending Act apply in relation to an application made under section 185 of this Act for approval of an enterprise agreement if the application is made:
 - (a) on or after the Schedule 2 commencement day; or
 - (b) before the Schedule 2 commencement day, if circumstances covered by subclause (2) apply.
- (2) The circumstances covered by this subclause are:
 - (a) on or before the Schedule 2 commencement day, the FWC had neither approved, nor refused to approve, the enterprise agreement; or
 - (b) before the Schedule 2 commencement day:
 - (i) the FWC approved, or refused to approve, the enterprise agreement; and
 - (ii) an application was made under section 604 for an appeal against the decision to approve, or refuse to approve, the enterprise agreement; and
 - (iii) the FWC had not yet made a final decision on the appeal; or
 - (c) all of the following apply:
 - (i) within 21 days before the Schedule 2 commencement day, the FWC approved, or refused to approve, the enterprise agreement;
 - (ii) immediately before the Schedule 2 commencement day, an application had not been made under section 604 for an appeal against the decision to approve, or refuse to approve, the enterprise agreement;

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 5 Amendments made by the Fair Work Amendment (Repeal of 4 Yearly Reviews and Other Measures) Act 2018

Division 3 Amendments made by Schedule 2 to the amending Act

Clause 28

- (iii) within 21 days after the FWC approved, or refused to approve, the enterprise agreement, an application is made under section 604 for an appeal against that decision.

Application, saving and transitional provisions relating to amendments of this Act
Schedule 1
Amendments made by the Fair Work Amendment (Repeal of 4 Yearly Reviews and
Other Measures) Act 2018 **Part 5**
Amendments made by Schedule 3 to the amending Act **Division 4**

Clause 29

Division 4—Amendments made by Schedule 3 to the amending Act

29 Application of section 641B of the amended Act

Section 641B of the amended Act applies in relation to alleged
misbehaviour or incapacity of an FWC Member occurring before
or after the commencement of Schedule 3 to the amending Act.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 6 Amendments made by the Fair Work Amendment (Corrupting Benefits) Act 2017

Clause 30

Part 6—Amendments made by the Fair Work Amendment (Corrupting Benefits) Act 2017

30 Disclosure by organisations and employers

The amendments of Subdivision A of Division 4 of Part 2-4 made by Schedule 2 to the *Fair Work Amendment (Corrupting Benefits) Act 2017* apply in relation to a proposed enterprise agreement for which the access period under subsection 180(4) begins on or after the commencement of this Part.

Part 8—Amendments made by the Fair Work Amendment (Family and Domestic Violence Leave) Act 2018

39 Entitlement to unpaid family and domestic violence leave

- (1) Subdivision CA of Division 7 of Part 2-2, as inserted by the *Fair Work Amendment (Family and Domestic Violence Leave) Act 2018*, applies in relation to an employee whose employment started before the commencement of that Act as if the period:
 - (a) starting on that commencement; and
 - (b) ending on the first day after that commencement that is an anniversary of the day the employment started;were a 12 month period.
- (2) For the purposes of this clause, if an employee is employed by a particular employer:
 - (a) as a casual employee; or
 - (b) for a specified period of time, for a specified task or for the duration of a specified season;the start of the employee's employment is taken to be the start of the employee's first employment with that employer.

40 Resolving uncertainties and difficulties about interaction between enterprise agreements and unpaid family and domestic violence leave

- (1) On application by an employer, employee or employee organisation covered by an enterprise agreement that was made before the commencement of the *Fair Work Amendment (Family and Domestic Violence Leave) Act 2018*, the FWC may make a determination varying the agreement:

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 8 Amendments made by the Fair Work Amendment (Family and Domestic Violence Leave) Act 2018

Clause 40

- (a) to resolve an uncertainty or difficulty relating to the interaction between the agreement and the following (the ***unpaid family and domestic violence leave provisions***):
 - (i) the provisions of Subdivision CA of Division 7 of Part 2-2;
 - (ii) section 107, to the extent that it relates to taking leave under that Subdivision; or
 - (b) to make the agreement operate effectively with the unpaid family and domestic violence leave provisions.
- (2) A variation of an enterprise agreement under this clause operates from the day specified in the determination, which may be a day before the determination is made.

Part 9—Amendments made by the Fair Work Amendment (Improving Unpaid Parental Leave for Parents of Stillborn Babies and Other Measures) Act 2020

41 Definitions

In this Part:

amending Act means the *Fair Work Amendment (Improving Unpaid Parental Leave for Parents of Stillborn Babies and Other Measures) Act 2020*.

Schedule 1 commencement day means the day on which Schedule 1 to the amending Act commences.

Schedule 2 commencement day means the day on which Schedule 2 to the amending Act commences.

42 Amendments about stillbirth, death and hospitalisation of children

Unpaid parental leave

- (1) The amendments of Division 5 (parental leave and related entitlements) of Part 2-2 made by Schedule 1 to the amending Act apply in relation to the stillbirth or death of a child on or after the Schedule 1 commencement day, subject to subclauses (2) to (4).
- (2) Section 78A (hospitalised children), as inserted by Schedule 1 to the amending Act, applies in relation to a child born on or after the Schedule 1 commencement day.
- (3) The amendment of section 84A (replacement employees) made by Schedule 1 to the amending Act applies if:

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 9 Amendments made by the Fair Work Amendment (Improving Unpaid Parental Leave for Parents of Stillborn Babies and Other Measures) Act 2020

Clause 43

- (a) an employer engages the replacement employee on or after the Schedule 1 commencement day; and
- (b) the child in relation to whom the other employee is taking unpaid parental leave was not stillborn, or did not die, before that day.

Unpaid special maternity leave

- (4) The amendments of section 80 (unpaid special maternity leave) made by Schedule 1 to the amending Act apply to a pregnancy that ends on or after the Schedule 1 commencement day.

Compassionate leave

- (5) The amendments of Subdivision C (compassionate leave) of Division 7 of Part 2-2 made by Schedule 1 to the amending Act apply in relation to a permissible occasion that occurs on or after the Schedule 1 commencement day.

43 Amendments about flexible unpaid parental leave

Application provision

- (1) The amendments of Division 5 of Part 2-2 made by Schedule 2 to the amending Act apply in relation to a child if the child's date of birth, or day of placement, is on or after the Schedule 2 commencement day.

Transitional provision—giving notice of taking flexible unpaid parental leave

- (2) If:
 - (a) before the Schedule 2 commencement day, an employee gives notice to an employer in accordance with subsection 74(1) of the taking of a period (the ***initial leave period***) of unpaid parental leave under section 71 or 72 in relation to a child; and

Clause 43

- (b) the child's date of birth or day of placement is on or after the Schedule 2 commencement day;
then the employee may, during the 1-month period starting on the Schedule 2 commencement day, give the employer written notice of the taking of flexible unpaid parental leave.
- (3) The notice under subclause (2) must specify the number of days of flexible unpaid parental leave that the employee intends to take in relation to the child.
- (4) The employee may, in the notice under subclause (2), advise the employer of a change to the end date of the initial leave period, but only if the change is necessary to allow the employee to take the flexible unpaid parental leave for the number of days referred to in subclause (3).
- (5) If the employee gives notice in accordance with subclauses (2) and (3), then:
- (a) the notice is taken to be a notice given under subsection 74(1) in relation to the taking of flexible unpaid parental leave; and
 - (b) subsections 74(3A) and (3B) are taken to have been complied with in relation to the giving of that notice; and
 - (c) if the notice contains advice as referred to in subclause (4)—the employee is taken to have complied with subsection 74(4) in relation to the initial leave period.
- (6) The employee cannot take flexible unpaid parental leave before the end of 4 weeks starting on the day the notice under subclause (2) is given, despite subsection 74(4B).

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 10 Amendments made by the Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021

Division 1 Definitions

Clause 44

Part 10—Amendments made by the Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021

Division 1—Definitions

44 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021*.

amending Act means the *Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021*.

commencement means the commencement of this Part.

Division 2—Amendments made by Schedule 1 to the amending Act

45 Resolving uncertainties and difficulties about interaction between enterprise agreements and the definition of casual employee and casual conversion rights

- (1) On application by an employer, employee or employee organisation covered by an enterprise agreement that was made before commencement, the FWC may make a determination varying the agreement:
 - (a) to resolve an uncertainty or difficulty relating to the interaction between the agreement and any of the following:
 - (i) the definition of *casual employee* in section 15A of the amended Act (including to deal with uncertainty or difficulty arising from the circumstances in which employees are to be employed as casual employees under the agreement);
 - (ii) the provisions of Division 4A of Part 2-2 of the amended Act; or
 - (b) to make the agreement operate effectively with that section or those provisions.
- (2) A variation of an enterprise agreement under this clause operates from the day specified in the determination, which may be a day before the determination is made.

46 Application of certain amendments

- (1) Section 15A of the amended Act applies on and after commencement in relation to offers of employment that were given before, on or after commencement.
- (2) Subclause (1) does not apply in relation to a person who is an employee of an employer as a result of accepting an offer that was

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 10 Amendments made by the Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021

Division 2 Amendments made by Schedule 1 to the amending Act

Clause 46

made before commencement if either of the following apply in relation to that person:

- (a) a court made a binding decision before commencement that the person is not a casual employee of the employer;
 - (b) the person converted the employment before commencement to employment other than casual employment under a term of a fair work instrument or contract of employment.
- (3) In addition to subclause (1), section 15A of the amended Act (and the amendment made by item 1 of Schedule 1 to the amending Act) also applies before commencement in relation to offers of employment that were given before commencement, unless either of the following apply in relation to a person who is or was an employee of an employer as a result of accepting the offer:
 - (a) a court made a binding decision before commencement that the person is not a casual employee of the employer;
 - (b) the person converted the employment before commencement to employment other than casual employment under a term of a fair work instrument or contract of employment.
- (4) To avoid doubt, if, apart from subclause (3), an employee could have made a claim for accrued relevant entitlements (within the meaning of subsection 545A(4) of the amended Act), the effect of that subclause is that the employee has not accrued, and cannot make a claim for, those entitlements.
- (5) Subject to clause 47, Division 4A of Part 2-2 of the amended Act applies in relation to periods of employment starting before, on or after commencement.
- (6) Section 545A of the amended Act applies in relation to entitlements that accrue, and loading amounts paid, on or after commencement.
- (7) In addition to subclause (6), section 545A of the amended Act also applies in relation to entitlements that accrue, and loading amounts paid, before commencement.

- (8) To avoid doubt, section 545A of the amended Act applies:
 - (a) to periods of employment starting before, on or after commencement (regardless of whether the employment period ended before commencement); and
 - (b) regardless of whether a person is, or is not, an employee of the relevant employer at the time a claim to which that section relates is made.
- (9) A reference to periods of employment as a casual employee in section 87, 96, 117, 119 or 121 of the amended Act applies to periods of employment starting before, on or after commencement.
- (10) A reference to a regular casual employee in section 23, 65, 67 or 384 of the amended Act applies to periods of employment starting before, on or after commencement.
- (11) To avoid doubt, nothing in subclause (1) is taken to change the time at which the person became an employee of the employer.

47 Transitioning casual employees

- (1) This clause applies in relation to an employee and an employer (other than a small business employer) if any or all of the following apply:
 - (a) the employee was, immediately before commencement (and disregarding subclause 46(3)), a casual employee of the employer;
 - (b) the employee was, immediately before commencement (and disregarding subclause 46(3)), designated as a casual employee by the employer for the purposes of:
 - (i) any fair work instrument that applies to the employee; or
 - (ii) the employee's contract of employment;
 - (c) the employee is a casual employee of the employer within the meaning of section 15A of the amended Act because of an offer of an employment made before commencement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 10 Amendments made by the Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021

Division 2 Amendments made by Schedule 1 to the amending Act

Clause 47

Note: The effect of this application provision is to provide a requirement for an employer (other than a small business employer) to assess whether to offer conversion under Division 4A of Part 2-2 of the amended Act (as modified under this clause) to any employee who was, or may have been, a casual employee immediately before commencement, and to any employee who at commencement is a casual employee within the meaning of section 15A of the amended Act.

- (2) Division 4A (other than Subdivision C) of Part 2-2 of the amended Act is taken to apply in relation to the employee and employer for the period (the *transition period*) of 6 months after commencement only as if:
- (a) the employer was required under section 66B of the amended Act to assess, at a time during the transition period, whether the employer was required to make an offer to the employee under that section; and
 - (b) paragraph 66B(1)(a) of the amended Act were a requirement for the employee to have been employed by the employer for a period of 12 months ending the day the assessment is made; and
 - (c) paragraph 66B(2)(c) of the amended Act were a requirement to give the offer to the employee within 21 days after making the assessment; and
 - (d) subsection 66C(3) of the amended Act included a requirement to give a notice under that subsection if, when the assessment is made, the employee does not meet the requirement in paragraph (b) of this clause; and
 - (e) paragraph 66C(4)(c) of the amended Act were a requirement to give the notice within 21 days of making the assessment but no later than the end of the transition period.
- (3) Subdivision C of Part 2-2 of the amended Act does not apply in relation to the employee and employer for the transition period.
- (4) Division 4A (including Subdivision C) of Part 2-2 of the amended Act applies in relation to the employee and employer to whom paragraph (1)(a) or (b) applies after the transition period as if the

employee were a casual employee of the employer within the meaning of section 15A of the amended Act.

- (5) An employer referred to in subclause (1) must give an employee referred to in that subclause a Casual Employment Information Statement as soon as practicable after the end of the transition period.

47A Casual employees of small business employers

- (1) This clause applies in relation to an employee and a small business employer if any or all of the following apply:
- (a) the employee was, immediately before commencement (and disregarding subclause 46(3)), a casual employee of the employer;
 - (b) the employee was, immediately before commencement (and disregarding subclause 46(3)), designated as a casual employee by the employer for the purposes of:
 - (i) any fair work instrument that applies to the employee; or
 - (ii) the employee's contract of employment;
 - (c) the employee is a casual employee of the employer within the meaning of section 15A of the amended Act because of an offer of an employment made before commencement.
- (2) Division 4A, other than Subdivision B, of Part 2-2 of the amended Act applies in relation to the employee and employer to whom paragraph (1)(a) or (b) applies on and after commencement as if the employee were a casual employee of the employer within the meaning of section 15A of the amended Act.
- (3) An employer referred to in subclause (1) must give an employee referred to in that subclause a Casual Employment Information Statement as soon as practicable after commencement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 10 Amendments made by the Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021

Division 2 Amendments made by Schedule 1 to the amending Act

Clause 48

48 Variations to modern awards

- (1) If:
 - (a) a modern award is made before commencement; and
 - (b) the modern award is in operation on commencement; and
 - (c) immediately before commencement, the modern award includes a term (the *relevant term*) that:
 - (i) defines or describes casual employment; or
 - (ii) deals with the circumstances in which employees are to be employed as casual employees; or
 - (iii) provides for the manner in which casual employees are to be employed; or
 - (iv) provides for the conversion of casual employment to another type of employment;then the FWC must, within 6 months after commencement, review the relevant term in accordance with subclause (2).
- (2) The review must consider the following:
 - (a) whether the relevant term is consistent with this Act as amended by Schedule 1 to the amending Act;
 - (b) whether there is any uncertainty or difficulty relating to the interaction between the award and the Act as so amended.
- (3) If the review of a relevant term under subclause (1) finds that:
 - (a) the relevant term is not consistent with this Act as amended by Schedule 1 to the amending Act; or
 - (b) there is a difficulty or uncertainty relating to the interaction between the award and the Act as so amended;then the FWC must make a determination varying the modern award to make the award consistent or operate effectively with the Act as so amended.
- (4) The determination must be made as soon as reasonably practicable after the review is conducted.

- (5) A determination under subclause (3) comes into operation on (and takes effect from) the start of the day the determination is made.
- (6) Section 168 applies to a determination made under subclause (3) as if it were a determination made under Part 2-3.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 11 Amendments made by the Sex Discrimination and Fair Work (Respect at Work) Amendment Act 2021

Clause 49

Part 11—Amendments made by the Sex Discrimination and Fair Work (Respect at Work) Amendment Act 2021

49 Orders to stop bullying

Scope

- (1) This clause applies to an order that was in force under subsection 789FF(1) immediately before the commencement of this clause.

Transitional

- (2) Despite the repeal of that subsection by the *Sex Discrimination and Fair Work (Respect at Work) Amendment Act 2021*, that subsection continues to apply, in relation to the order, as if that repeal had not happened.

49A Applications for orders to stop sexual harassment

The amendments of section 789FC made by the *Sex Discrimination and Fair Work (Respect at Work) Amendment Act 2021* apply in relation to an application made under that section after the end of the 2-month period beginning at the commencement of this clause.

50 Orders to stop sexual harassment

For the purposes of subparagraph 789FF(1)(b)(ii) (as amended by the *Sex Discrimination and Fair Work (Respect at Work) Amendment Act 2021*), it is immaterial whether the worker has been sexually harassed at work before, at or after the commencement of this clause.

Part 12—Amendments made by the Fair Work Amendment (Paid Family and Domestic Violence Leave) Act 2022

51 Definitions

In this Part:

amending Act means the *Fair Work Amendment (Paid Family and Domestic Violence Leave) Act 2022*.

deferred start day means the day after the end of the period of 3 months beginning on the day Schedule 2 to the amending Act commences.

pre-commencement enterprise agreement means an enterprise agreement made before the commencement of Schedule 1 to the amending Act.

small business employee means an employee whose employer was, on the day Schedule 1 to the amending Act commences, a small business employer (whether or not the employee was employed by the employer on that day).

52 Entitlement to paid family and domestic violence leave

Non-small business employees

- (1) The amendments made by Schedule 1 to the amending Act apply in relation to an employee, other than a small business employee, whose employment starts on or after the commencement of that Schedule.
- (2) The amendments made by Schedule 1 to the amending Act also apply, from the commencement of that Schedule, in relation to an

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 12 Amendments made by the Fair Work Amendment (Paid Family and Domestic Violence Leave) Act 2022

Clause 52

employee, other than a small business employee, whose employment started before that commencement, as if the period:

- (a) starting on that commencement; and
 - (b) ending on the first day after that commencement that is an anniversary of the day the employment started;
- were a 12 month period.

Small business employees

- (3) The amendments made by Schedule 1 to the amending Act apply in relation to a small business employee whose employment starts on or after 1 August 2023.
- (4) The amendments made by Schedule 1 to the amending Act also apply, from 1 August 2023, in relation to a small business employee whose employment started before 1 August 2023, as if the period:
 - (a) starting on 1 August 2023; and
 - (b) ending on the first day after 1 August 2023 that is an anniversary of the day the employment started;were a 12 month period.

Start of casual employment

- (5) For the purposes of this clause, if an employee is employed by a particular employer:
 - (a) as a casual employee; or
 - (b) for a specified period of time, for a specified task or for the duration of a specified season;the start of the employee's employment is taken to be the start of the employee's first employment with that employer.

53 Resolving interactions between enterprise agreements and paid family and domestic violence leave

- (1) On application by an employer, employee or employee organisation covered by a pre-commencement enterprise agreement, if:
 - (a) the agreement includes terms entitling employees to paid family and domestic violence leave within the ordinary meaning of that expression; and
 - (b) the FWC considers that the effect of those terms is detrimental when compared with the entitlement under Subdivision CA of Division 7 of Part 2-2 as amended by Schedule 1 to the amending Act (the *NES entitlement*);the FWC may make a determination varying the agreement to make the agreement consistent with the NES entitlement.
- (2) On application by an employer, employee or employee organisation covered by a pre-commencement enterprise agreement, the FWC may make a determination varying the agreement to make it operate effectively with the following:
 - (a) the provisions of Subdivision CA of Division 7 of Part 2-2 as amended by Schedule 1 to the amending Act;
 - (b) section 107, to the extent that it relates to taking leave under that Subdivision.
- (3) A variation of a pre-commencement enterprise agreement under this clause operates from the day specified in the determination, which may be a day before the determination is made.

54 Entitlement to extended paid family and domestic violence leave provisions

National system employees

- (1) The amendments made by Schedule 2 to the amending Act apply in relation to a national system employee, whether the employee's

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 12 Amendments made by the Fair Work Amendment (Paid Family and Domestic Violence Leave) Act 2022

Clause 54

employment started before or after the commencement of that Schedule.

Non-national system employees

- (2) The amendments made by Schedule 2 to the amending Act apply in relation to a non-national system employee whose employment starts on or after the deferred start day.
- (3) The amendments made by Schedule 2 to the amending Act also apply, from the deferred start day, in relation to a non-national system employee whose employment started before the deferred start day, as if the period:
 - (a) starting on the deferred start day; and
 - (b) ending on the first day after the deferred start day that is an anniversary of the day the employment started;were a 12 month period.

Start of casual employment

- (4) For the purposes of this clause, if an employee is employed by a particular employer:
 - (a) as a casual employee; or
 - (b) for a specified period of time, for a specified task or for the duration of a specified season;the start of the employee's employment is taken to be the start of the employee's first employment with that employer.

Part 13—Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 1—Definitions

55 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work
Legislation Amendment (Secure Jobs, Better Pay) Act 2022*.

amending Act means the *Fair Work Legislation Amendment
(Secure Jobs, Better Pay) Act 2022*.

commencement means the commencement of this Part.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 2 Amendments made by Part 1 of Schedule 1 to the amending Act

Clause 56

Division 2—Amendments made by Part 1 of Schedule 1 to the amending Act

56 Appeal of decisions of the Registered Organisations Commissioner

Divisions 3 and 4 of Part 5-1, as amended by Division 2 of Part 1 of Schedule 1 to the amending Act, have effect as if a reference to a decision made under the Registered Organisations Act by the General Manager included a reference to a decision made under the Registered Organisations Act before the commencement of Division 2 of Part 1 of that Schedule by the Registered Organisations Commissioner (including a delegate of the Commissioner), other than a decision under subsection 293H(3) of the Registered Organisations Act.

Division 3—Amendments made by Part 4 of Schedule 1 to the amending Act

57 Objects of the Act

- (1) Sections 3 and 134 of the amended Act apply, after commencement, in relation to the FWC performing functions, or exercising powers, in relation to:
 - (a) a matter that arises after commencement; or
 - (b) a proceeding in the FWC that was on foot at commencement, or commences after commencement.
- (2) Section 284 of the amended Act applies, after commencement, in relation to an annual wage review conducted in:
 - (a) the financial year beginning on 1 July 2022; or
 - (b) a later financial year.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 4 Amendments made by Part 5 of Schedule 1 to the amending Act

Clause 58

Division 4—Amendments made by Part 5 of Schedule 1 to the amending Act

58 Equal remuneration

- (1) Section 157 of the amended Act applies after commencement in relation to a determination or modern award made under that section after commencement.
- (2) Subsections 302(3A) to (4A) of the amended Act apply after commencement in relation to the FWC performing functions, or exercising powers, in relation to:
 - (a) a matter that arises after commencement; or
 - (b) a proceeding in the FWC that was on foot at commencement, or commences after commencement.
- (3) If an application under subsection 302(3) of this Act as in force immediately before commencement has not been finally determined at commencement, subsection 302(5) of the amended Act applies in relation to the application as if it were an application under paragraph 302(3)(b) of the amended Act.

Division 5—Amendments made by Part 7 of Schedule 1 to the amending Act

59 Pay secrecy

- (1) Section 333B of the amended Act applies after commencement in relation to an employee if:
 - (a) the employee's contract of employment is entered into on or after commencement; or
 - (b) the employee's contract of employment is entered into before commencement and does not include a term that is inconsistent with subsection 333B(1) or (2) of the amended Act.
- (2) If:
 - (a) an employee's contract of employment is entered into before commencement; and
 - (b) the contract includes a term that is inconsistent with subsection 333B(1) or (2) of the amended Act; and
 - (c) after commencement, the contract is varied at a particular time;section 333B of the amended Act applies in relation to the employee after that time.
- (3) Section 333C of the amended Act applies after commencement in relation to a fair work instrument made before, on or after commencement.
- (4) Section 333C of the amended Act applies after commencement in relation to a contract of employment if:
 - (a) the contract is entered into on or after commencement; or
 - (b) the contract is entered into before commencement and does not include a term that is inconsistent with subsection 333B(1) or (2) of the amended Act.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 5 Amendments made by Part 7 of Schedule 1 to the amending Act

Clause 59

(5) If:

- (a) a contract of employment is entered into before commencement; and
- (b) the contract includes a term that is inconsistent with subsection 333B(1) or (2) of the amended Act; and
- (c) after commencement, the contract is varied at a particular time;

section 333C of the amended Act applies in relation to the contract after that time.

(6) Section 333D of the amended Act applies after the 6-month period beginning on commencement in relation to a contract of employment entered into on or after commencement.

Division 6—Amendments made by Part 8 of Schedule 1 to the amending Act

60 Prohibiting sexual harassment in connection with work

- (1) Despite the amendments of Part 6-4B made by Schedule 1 to the amending Act, that Part, as in force immediately before the commencement of Division 1 of Part 8 of that Schedule, continues to apply, on and after that commencement, in relation to:
 - (a) the sexual harassment of a worker at work before that commencement; and
 - (b) the sexual harassment of a worker at work on or after that commencement, if the sexual harassment is part of a course of conduct that begins before that commencement.
- (2) Despite the repeal of subsection 789FF(1) by Schedule 1 to the amending Act, an order that was in force under that subsection immediately before the commencement of Division 1 of Part 8 of that Schedule continues in force (and may be dealt with) on and after that commencement as if that repeal had not happened.
- (3) Subsection 527D(1) does not apply in relation to sexual harassment of a worker if the sexual harassment is part of a course of conduct that begins before the commencement of Division 1 of Part 8 of Schedule 1 to the amending Act.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 7 Amendments made by Part 9 of Schedule 1 to the amending Act

Clause 61

Division 7—Amendments made by Part 9 of Schedule 1 to the amending Act

61 Anti-discrimination and special measures

- (1) Subject to subclauses (2) and (3), the amendments made by Part 9 of Schedule 1 to the amending Act apply on and after commencement.
- (2) The amendments of sections 172A and 195 made by Part 9 of Schedule 1 to the amending Act apply in relation to enterprise agreements made on and after commencement.
- (3) The amendment of section 351 made by Part 9 of Schedule 1 to the amending Act applies in relation to adverse action taken on and after commencement.

Division 8—Amendments made by Part 10 of Schedule 1 to the amending Act

62 Fixed term contracts

Section 333E of the amended Act applies in relation to a contract of employment entered into on or after the commencement of Part 10 of Schedule 1 to the amending Act (whether or not a previous contract referred to in subsection 333E(4) of the amended Act was entered into before, on or after that commencement).

63 Resolving uncertainties and difficulties about interaction between enterprise agreements and the provisions of Division 5 of Part 2-9

- (1) On application by an employer or employee covered by an enterprise agreement that was made before the commencement of Part 10 of Schedule 1 to the amending Act, the FWC may make a determination varying the enterprise agreement to resolve an uncertainty or difficulty relating to the interaction between the enterprise agreement and the provisions of Division 5 of Part 2-9.
- (2) A variation of an enterprise agreement under this clause operates from the day specified in the determination, which may be a day before the enterprise agreement is made.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 9 Amendments made by Part 11 of Schedule 1 to the amending Act

Clause 64

Division 9—Amendments made by Part 11 of Schedule 1 to the amending Act

64 Requests for flexible working arrangements

The amendments made by Divisions 1, 3, 4 and 5 of Part 11 of Schedule 1 to the amending Act apply in relation to a request made under subsection 65(1) of this Act on or after the commencement of that Part.

Application, saving and transitional provisions relating to amendments of this Act
Schedule 1
Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay)
Act 2022 **Part 13**
Amendments made by Part 12 of Schedule 1 to the amending Act **Division 10**

Clause 65

Division 10—Amendments made by Part 12 of Schedule 1 to the amending Act

65 Termination of enterprise agreements after nominal expiry date

The amendments made by Part 12 of Schedule 1 to the amending Act apply in relation to an application for the termination of an enterprise agreement made under section 225:

- (a) on or after the commencement of that Part; or
- (b) before the commencement of that Part if, at that commencement, the FWC has neither terminated nor refused to terminate the agreement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 11 Amendments made by Part 14 of Schedule 1 to the amending Act

Clause 66

Division 11—Amendments made by Part 14 of Schedule 1 to the amending Act

66 Genuine agreement in relation to enterprise agreements

Despite the amendments made by Part 14 of Schedule 1 to the amending Act, Part 2-4 continues to apply, as if the amendments had not been made, in relation to:

- (a) any proposed enterprise agreement for which the notification time occurs before the commencement of Part 14 of that Schedule; and
- (b) any variation of an enterprise agreement for which the employer's request that affected employees for the variation approve the variation by voting for it occurs before that commencement.

Application, saving and transitional provisions relating to amendments of this Act
Schedule 1
Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay)
Act 2022 **Part 13**
Amendments made by Part 16 of Schedule 1 to the amending Act **Division 12**

Clause 67

Division 12—Amendments made by Part 16 of Schedule 1 to the amending Act

67 The better off overall test

The amendments made by Part 16 of Schedule 1 to the amending Act apply in relation to enterprise agreements made on and after the commencement of that Part.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 13 Amendments made by Part 17 of Schedule 1 to the amending Act

Clause 68

Division 13—Amendments made by Part 17 of Schedule 1 to the amending Act

68 Validation of approval of enterprise agreement

Section 602A of the amended Act applies in relation to an approval given by the FWC before, at or after the commencement of that section.

69 Validation of approval of variation of enterprise agreement

Section 602B of the amended Act applies in relation to an approval given by the FWC before, at or after the commencement of that section.

Division 14—Amendments made by Part 18 of Schedule 1 to the amending Act

70 Serious breach declarations

Despite the amendments made to the following provisions of this Act by Part 18 of Schedule 1 to the amending Act, those provisions continue to apply, in relation to an application made under section 234 of this Act before that Part commences, as if the amendments had not been made:

- (a) Subdivision B of Division 8 of Part 2-4;
- (b) Division 4 of Part 2-5;
- (c) section 274;
- (d) section 413.

71 Intractable bargaining declarations

In making a declaration under section 235 of the amended Act, the FWC may have regard to conduct engaged in before or after the commencement of Subdivision B of Division 8 of Part 2-4 of the amended Act.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 15 Amendments made by Part 19 of Schedule 1 to the amending Act

Clause 72

Division 15—Amendments made by Part 19 of Schedule 1 to the amending Act

72 Industrial action

- (2) The amendments of sections 437 and 440 made by Division 2 of Part 19 of Schedule 1 to the amending Act apply in relation to an application made under subsection 437(1) of this Act on or after the commencement of that Division.
- (3) Subject to subclause (2) of this clause, the amendments of Part 3-3 made by Division 2 of Part 19 of Schedule 1 to the amending Act apply in relation to a protected action ballot order if the application for the order is made under subsection 437(1) of this Act on or after the commencement of that Division.
- (4) The amendments of section 539 made by Division 2 of Part 19 of Schedule 1 to the amending Act apply in relation to a contravention, or proposed contravention, of a civil remedy provision referred to in item 18, 19 or 20 of the table in subsection 539(2) that occurs on or after the commencement of that Division.
- (5) The amendment made by Division 3 of Part 19 of Schedule 1 to the amending Act applies in relation to an application made under subsection 437(1) of this Act on or after the commencement of that Division.
- (6) The amendments of Part 3-3 made by Division 4 of Part 19 of Schedule 1 to the amending Act apply in relation to employee claim action if the application for the relevant protected action ballot order is made under subsection 437(1) of this Act on or after the commencement of that Division.
- (7) The amendments of Part 3-3 made by Division 5 of Part 19 of Schedule 1 to the amending Act apply in relation to a protected action ballot order if the application for the order is made under

Application, saving and transitional provisions relating to amendments of this Act
Schedule 1
Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay)
Act 2022 **Part 13**
Amendments made by Part 19 of Schedule 1 to the amending Act **Division 15**

Clause 72

subsection 437(1) of this Act on or after the commencement of that
Division.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 16 Amendments made by Part 21 of Schedule 1 to the amending Act

Clause 73

Division 16—Amendments made by Part 21 of Schedule 1 to the amending Act

73 Variation of single interest employer agreement to add employer and employees

Subdivision AD of Division 7 of Part 2-4 of the amended Act, as inserted by Part 21 of Schedule 1 to the amending Act, applies in relation to variations of single interest employer agreements on or after the commencement of that Part of the amending Act, if the agreements were made after that commencement.

74 Application to existing applications for declarations

- (1) This clause applies in relation to applications for declarations made under subsection 247(1) of the Act immediately before the commencement of Part 21 of Schedule 1 to the amending Act if, immediately before that commencement, the Minister had not made a decision on the application.
- (2) Despite the amendments of Division 10 of Part 2-4 made by Part 21 of Schedule 1 to the amending Act, that Division continues to apply as if those amendments had not been made.

75 Application to existing Ministerial declarations where application for authorisation not made

- (1) This clause applies in relation to declarations made under subsection 247(3) of the Act before the commencement of Part 21 of Schedule 1 to the amending Act if, immediately before that commencement, 2 or more of the employers to whom the declaration relates had not made an application for an authorisation.
- (2) If, after that commencement, those employers make an application for an authorisation, then, despite the amendments of Division 10

of Part 2-4 made by Part 21 of Schedule 1 to the amending Act,
that Division continues to apply in relation to the application as if
those amendments had not been made.

76 Application to existing applications for authorisations

- (1) This clause applies in relation to applications for authorisations made under subsection 248(1) of the Act immediately before the commencement of Part 21 of Schedule 1 to the amending Act if, immediately before that commencement, the FWC had not made a decision on the application.
- (2) Despite the amendments of Division 10 of Part 2-4 made by Part 21 of Schedule 1 to the amending Act, that Division continues to apply as if those amendments had not been made.

77 Effect of making a single interest employer authorisation

Paragraph 172(5)(b) of the amended Act, as inserted by Part 21 of Schedule 1 to the amending Act, applies in relation to single interest employer authorisations on or after the commencement of that Part if the authorisation was made on or after that commencement.

78 Application to existing applications to vary authorisations

The amendments to section 251 made by Part 21 of Schedule 1 to the amending Act do not apply in relation to applications for variations made before the commencement of that Part.

78A Application to authorisations in operation before commencement

- (1) This clause applies in relation to 2 or more employers that were, immediately before the commencement of Part 21 of Schedule 1 to the amending Act, specified in a single interest employer authorisation made under subsection 249(1) that is in operation.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 16 Amendments made by Part 21 of Schedule 1 to the amending Act

Clause 78B

- (2) For the purposes of section 172 of the amended Act, the employers are taken to be related employers within the meaning of subsection 172(5A).

78B Application to certain authorisations made after commencement

If, because of the operation of clause 74, 75 or 76 of this Part, the FWC makes a single interest employer authorisation after the commencement of Part 21 of Schedule 1 to the amending Act:

- (a) Division 10 of Part 2-4 of this Act, as in force immediately before that commencement, continues to apply in relation to the authorisation; and
- (b) for the purposes of section 172 of the amended Act, the employers specified in the authorisation are taken to be related employers within the meaning of subsection 172(5A).

78C Availability of scope orders

Despite the repeal of subsection 238(2) of this Act by Part 21 of Schedule 1 to the amending Act, that subsection continues to apply after the commencement of that Part to proposed single-enterprise agreements in relation to which a single interest employer authorisation is in operation.

Division 17—Amendments made by Part 23 of Schedule 1 to the amending Act

80A Approval of enterprise agreement—requirement relating to genuine agreement of employers

Subsection 186(2AA) of the amended Act applies in relation to an enterprise agreement made after the commencement of that subsection.

81 Approval of cooperative workplace agreement—requirement relating to representation

Subsection 186(2A) of the amended Act applies in relation to a cooperative workplace agreement made after the commencement of that subsection.

82 Variation of cooperative workplace agreement to add employer and employees

Subdivision AC of Division 7 of Part 2-4 of the amended Act applies in relation to a variation of a cooperative workplace agreement, if the agreement was made after the commencement of that Subdivision.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 17A Amendments made by Part 23A of Schedule 1 to the amending Act

Clause 82A

Division 17A—Amendments made by Part 23A of Schedule 1 to the amending Act

82A Multi-enterprise agreements and general building and construction work

Subsection 186(2B) of the amended Act, as inserted by Part 23A to the amending Act, applies in relation to:

- (a) the approval of an enterprise agreement, if the agreement is made after the commencement of that Part; and
- (b) the approval of a variation of an enterprise agreement, if the variation is made after the commencement of that Part.

Division 18—Amendments made by Part 24 of Schedule 1 to the amending Act

83 Small claims procedure

- (1) The following provisions apply in relation to small claims proceedings commenced on or after the commencement of Part 24 of Schedule 1 to the amending Act:
 - (a) the amendment of paragraph 548(2)(a) of this Act made by that Part;
 - (b) subsection 548(2A) as inserted by that Part.
- (2) Subsections 548(10) and (11), as inserted by Part 24 of Schedule 1 to the amending Act, apply in relation to:
 - (a) small claims proceedings commenced, but not finally determined, before the commencement of that Part; and
 - (b) small claims proceedings commenced after the commencement of that Part.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 13 Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022

Division 19 Amendments made by Part 25 of Schedule 1 to the amending Act

Clause 84

Division 19—Amendments made by Part 25 of Schedule 1 to the amending Act

84 Employment advertisements

Division 4 of Part 3-6 of this Act, as inserted by Part 25 of Schedule 1 to the amending Act, applies in relation to employment advertised on or after the day that is one month after the commencement of Part 25 of Schedule 1 to the amending Act (whether the employment was first advertised before, on or after that day).

Application, saving and transitional provisions relating to amendments of this Act
Schedule 1
Amendments made by the Fair Work Legislation Amendment (Secure Jobs, Better Pay)
Act 2022 **Part 13**
Amendments made by Part 25B of Schedule 1 to the amending Act **Division 20**

Clause 85

Division 20—Amendments made by Part 25B of Schedule 1 to the amending Act

85 Requests for extension of period of unpaid parental leave

The amendments made by Part 25B of Schedule 1 to the amending Act apply in relation to a request made under subsection 76(1) of this Act on or after the commencement of that Part.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 14 Amendments made by the Fair Work Legislation Amendment (Protecting Worker Entitlements) Act 2023

Division 1 Definitions

Clause 86

Part 14—Amendments made by the Fair Work Legislation Amendment (Protecting Worker Entitlements) Act 2023

Division 1—Definitions

86 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work Legislation Amendment (Protecting Worker Entitlements) Act 2023*.

amending Act means the *Fair Work Legislation Amendment (Protecting Worker Entitlements) Act 2023*.

Division 2—Amendments made by Schedule 2 to the amending Act

87 Amendments about unpaid parental leave

- (1) The amendments made by Schedule 2 to the amending Act apply in relation to an employee in respect of a child if the child's date of birth, or day of placement, is on or after 1 July 2023.
- (2) If:
- (a) before the commencement of Schedule 2 to the amending Act, an employee gave notice to the employee's employer in accordance with subsection 74(1) of the taking of a period of unpaid parental leave under section 72 in relation to a child; and
 - (b) the period of unpaid parental leave is covered by paragraph 72(3)(a) or (4)(a); and
 - (c) the child's date of birth, or day of placement, is on or after 1 July 2023;
- the period of unpaid parental leave is to be treated, after the commencement of Schedule 2 to the amending Act, as a continuous period of unpaid parental leave under section 71 of the amended Act.
- (3) If:
- (a) before the commencement of Schedule 2 to the amending Act, an employee gave notice to the employee's employer in accordance with subsection 74(1) of the taking of a period of concurrent leave under subsection 72(5) in relation to a child; and
 - (b) the child's date of birth, or day of placement, is on or after 1 July 2023;
- the period of concurrent leave is to be treated, after the commencement of Schedule 2 to the amending Act, as a period of

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 14 Amendments made by the Fair Work Legislation Amendment (Protecting Worker Entitlements) Act 2023

Division 2 Amendments made by Schedule 2 to the amending Act

Clause 87

flexible unpaid parental leave under section 72A of the amended Act.

(4) If:

- (a) before the commencement of Schedule 2 to the amending Act, an employee gave notice to the employee's employer in accordance with subsection 74(1) of the taking of a period of unpaid parental leave under section 71, 72 or 72A in relation to a child; and
- (b) the child's date of birth, or day of placement, is on or after 1 July 2023;

then:

- (c) the employee may give the employer a written notice (an ***amendment notice***) that makes amendments to the subsection 74(1) notice that are consistent with the amended Act; and
- (d) if the employee gives an amendment notice to the employer in relation to the child:
 - (i) the amendments made by the amendment notice must not take effect until at least 4 weeks after the amendment notice is given to the employer; and
 - (ii) any requirement imposed by this Act (other than subsection 74(4) or (4B)) in relation to the period within which the employer is to be given written notice of the taking of unpaid parental leave is waived for the taking of the unpaid parental leave covered by the amendment notice; and
- (e) the employee is not entitled to give more than one amendment notice to the employer in relation to the child.

Division 3—Amendments made by Schedule 3 to the amending Act

88 Superannuation—reduction of employer’s liability to the extent of superannuation charge payments

Subsection 149B(2), as inserted by Part 2 of Schedule 3 to the amending Act, applies in relation to an employer’s obligation to make superannuation contributions on behalf of an employee, whether the requirements of that subsection are satisfied before or after the commencement of that Part.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 14 Amendments made by the Fair Work Legislation Amendment (Protecting Worker Entitlements) Act 2023

Division 4 Amendments made by Schedule 4 to the amending Act

Clause 89

Division 4—Amendments made by Schedule 4 to the amending Act

89 Interaction of a workplace determination with an earlier enterprise agreement

The amendments made by Schedule 4 to the amending Act apply in relation to:

- (a) an enterprise agreement that applies to an employee in relation to particular employment before, on or after the commencement of that Schedule; and
- (b) a workplace determination that:
 - (i) covers the employee in relation to the same employment; and
 - (ii) comes into operation before, on or after the commencement of that Schedule.

Division 5—Amendments made by Schedule 5 to the amending Act

90 Employee authorised deductions

- (1) An authorisation made for the purposes of paragraph 324(1)(a) that is in force immediately before the commencement of Schedule 5 continues in force, after the commencement, until it is withdrawn.
- (2) An authorisation covered by subclause (3) that is in force immediately before the commencement of Schedule 5:
 - (a) is taken to be, and taken always to have been, made in compliance with section 324 as in force immediately before the commencement; and
 - (b) continues in force, after the commencement, until it is withdrawn.
- (3) An authorisation is covered by this subclause if the authorisation:
 - (a) was purportedly made for the purposes of paragraph 324(1)(a) as in force immediately before the commencement of Schedule 5; and
 - (b) purportedly authorises multiple or ongoing deductions for amounts as varied from time to time; and
 - (c) would, after the commencement, comply with section 324 of the amended Act.
- (4) However, paragraph (2)(a) does not affect rights or liabilities arising between parties to proceedings:
 - (a) in which judgment is reserved by a court before the commencement of Schedule 5; or
 - (b) which have been heard and finally determined by a court before the commencement;to the extent those rights or liabilities arose from, or were affected by, an authorisation covered by subclause (3).

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 15 Amendments made by the Fair Work Legislation Amendment (Closing Loopholes) Act 2023

Division 1 Definitions

Clause 91

Part 15—Amendments made by the Fair Work Legislation Amendment (Closing Loopholes) Act 2023

Division 1—Definitions

91 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work Legislation Amendment (Closing Loopholes) Act 2023*.

amending Act means the *Fair Work Legislation Amendment (Closing Loopholes) Act 2023*.

Division 2—Amendments made by Part 2 of Schedule 1 to the amending Act

92 Application—section 121

Despite the amendment made by item 28 of Part 2 of Schedule 1 to the amending Act, section 121, as in force immediately before the commencement of that item, continues to apply in relation to the termination of an employee's employment if any of the following occurred before that commencement:

- (a) the termination of the employee;
- (b) any other termination covered by that section as amended that caused the employer to become a small business employer.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 15 Amendments made by the Fair Work Legislation Amendment (Closing Loopholes) Act 2023

Division 3 Amendments made by Part 6 of Schedule 1 to the amending Act

Clause 93

Division 3—Amendments made by Part 6 of Schedule 1 to the amending Act

93 Application of amendments—regulated labour hire arrangement orders

Application of requirement to pay protected rate of pay

- (1) Section 306F of the amended Act (protected rate of pay payable to employees if a regulated labour hire arrangement order is in force) applies on and after 1 November 2024 regardless of whether any agreement resulting in the performance of work by a regulated employee is entered into before, on or after that day.

Anti-avoidance provisions apply retrospectively in relation to certain conduct and schemes

- (2) Division 4 of Part 2-7A of the amended Act (anti-avoidance) applies, on and after the introduction day, in relation to:
 - (a) conduct engaged in; or
 - (b) a scheme that is entered into, begun to be carried out or carried out;on or after the introduction day.
- (3) In this section:

introduction day means the day on which the *Fair Work Legislation Amendment (Closing Loopholes) Bill 2023* was introduced into the Parliament.

Division 4—Amendments made by Part 7 of Schedule 1 to the amending Act

94 Application of section 149E of amended Act

- (1) Section 149E (delegates' rights terms) of the amended Act applies in relation to a modern award that is in operation on or after 1 July 2024, whether or not the award was made before that day.
- (2) However, a modern award is not invalid on or after 1 July 2024 only because it does not include a delegates' rights term.

95 FWC to vary certain modern awards

- (1) This clause applies in relation to a modern award if the award:
 - (a) is made before 1 July 2024; and
 - (b) is to be in operation on that day.
- (2) The FWC must, by 30 June 2024, make a determination varying the modern award to include a delegates' rights term.
- (3) A determination made under subclause (2) comes into operation on (and takes effect from) 1 July 2024.
- (4) Section 168 applies to a determination made under subclause (2) as if it were a determination made under Part 2-3.

96 Application of section 205A of amended Act

- (1) Section 205A (enterprise agreements to include delegates' rights terms etc.) of the amended Act does not apply in relation to an enterprise agreement if:
 - (a) before 1 July 2024, the employer concerned asks the employees to approve the agreement by voting for it; and
 - (b) by that vote, the employees approve the agreement; and
 - (c) the FWC approves the agreement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 15 Amendments made by the Fair Work Legislation Amendment (Closing Loopholes) Act 2023

Division 4 Amendments made by Part 7 of Schedule 1 to the amending Act

Clause 97

- (2) In deciding, after 1 July 2024, whether to approve the agreement mentioned in subclause (1) (in that form), the FWC must disregard section 205A.

97 Application of subsections 273(6) and (7) of amended Act

- (1) Subsections 273(6) and (7) (delegates' rights terms) of the amended Act apply in relation to a workplace determination made on or after 1 July 2024.
- (2) However, a workplace determination is not invalid on or after 1 July 2024 only because it does not include a delegates' rights term.

Division 5—Amendments made by Part 14 of Schedule 1 to the amending Act

98 Offence relating to failure to pay certain amounts as required

Subsection 327A(1) of the amended Act applies in relation to conduct that occurs after the commencement of Part 14 of Schedule 1 to the amending Act, including conduct that occurs after that commencement that is part of a course of conduct that began before that commencement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 15 Amendments made by the Fair Work Legislation Amendment (Closing Loopholes) Act 2023

Division 6 Amendments made by Part 14A of Schedule 1 to the amending Act

Clause 99

Division 6—Amendments made by Part 14A of Schedule 1 to the amending Act

99 Application of amendments

- (1) The amendment of subsection 409(6A) of this Act made by Part 14A of Schedule 1 to the amending Act applies in relation to industrial action to the extent that the industrial action occurs, or is to occur, on or after the commencement of that Part.
- (2) However, the amendment does not apply in relation to doing any of the following before that commencement in relation to industrial action, even if the industrial action occurs, or was to occur, on or after that commencement:
 - (a) organising the industrial action;
 - (b) threatening to engage in the industrial action;
 - (c) threatening to organise the industrial action;
 - (d) engaging in any other conduct in relation to the industrial action.
- (3) For the purposes of subsection 409(6A) of this Act, as amended by Part 14A of Schedule 1 to the amending Act, it does not matter whether a contravention of an order made under section 448A of this Act occurred before, on or after the commencement of that Part.

Part 16—Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 1—Definitions

100 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work
Legislation Amendment (Closing Loopholes No. 2) Act 2024*.

amending Act means the *Fair Work Legislation Amendment
(Closing Loopholes No. 2) Act 2024*.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 2 Amendments made by Part 1 of Schedule 1 to the amending Act

Clause 101

Division 2—Amendments made by Part 1 of Schedule 1 to the amending Act

101 Resolving uncertainties and difficulties about interaction between fair work instruments and the definition of casual employee and employee choice

- (1) The FWC may make a determination varying a fair work instrument that is a modern award, enterprise agreement or workplace determination that was made before the commencement of this clause:
 - (a) for an enterprise agreement or workplace determination—on application by an employer, employee or employee organisation covered by the enterprise agreement or workplace determination; or
 - (b) for a modern award:
 - (i) by the FWC on its own initiative; or
 - (ii) on application by an employer organisation or employee organisation entitled to represent the industrial interests of an employer or employee covered by the award.
- (2) The FWC may make a determination varying the instrument:
 - (a) to resolve an uncertainty or difficulty relating to the interaction between the instrument and any of the following:
 - (i) the definition of casual employee in section 15A of the amended Act (including to deal with uncertainty or difficulty arising from the circumstances in which employees are to be employed as casual employees under the agreement);
 - (ii) the provisions of Division 4A of Part 2-2 of the amended Act; or
 - (b) to make the instrument operate effectively with that section or those provisions.

- (3) A variation of a fair work instrument under this clause operates from the day specified in the determination, which may be a day before the determination is made.
- (4) If the determination relates to a modern award, the FWC must publish the award as varied as soon as practicable on the FWC's website or by any other means the FWC considers appropriate.

102 Application of amendments

Application of definition of casual employee

- (1) Section 15A of the amended Act applies on and after commencement in relation to employment relationships entered into before, on or after commencement.
- (2) Despite subclause (1), for the purposes of applying section 15A of the amended Act on and after commencement in relation to employment relationships entered into before commencement:
 - (a) conduct of an employer and employee that occurred before commencement is to be disregarded for the purposes of applying subsections 15A(2) and (3) in relation to that employee; and
 - (b) if an employee's contract of employment immediately before commencement included a term of a kind referred to in subsection 15A(4)—that subsection is taken not to apply in relation to the employee for the remainder of the term of that contract.

Continuing casual employees

- (3) For the purposes of subclause (1), an employee who was, immediately before commencement, a casual employee of an employer within the meaning of section 15A as in force at that time, is taken to be a casual employee of the employer within the meaning of section 15A of the amended Act on and after commencement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 2 Amendments made by Part 1 of Schedule 1 to the amending Act

Clause 102

Application of employee choice and casual conversion provisions

- (5) The amendments of Division 4A of Part 2-2 made by the amending Act apply on and after commencement in relation to employment relationships entered into before, on or after commencement.
- (6) For the purposes of applying subclause (5) in relation to employment relationships entered into before commencement:
 - (a) any period of employment as a casual employee that occurred before commencement is to be disregarded for the purposes of paragraphs 66AAB(c) and (d) of the amended Act; and
 - (b) paragraph 66AAB(d) of the amended Act is taken to include a requirement that in the period referred to in that paragraph the employee has not:
 - (ia) been given a notice before commencement under subsection 66C(3) that the employer is not required to make an offer to the employee under section 66B; or
 - (ib) been given a notice after commencement under subsection 66C(3) that the employer is not required to make an offer to the employee under section 66B (as those sections continue to apply because of subclauses (6AA) and (6AB)); or
 - (ic) declined before commencement, under section 66D, an offer made by the employer under section 66B; or
 - (id) declined after commencement, under section 66D, an offer made by the employer under section 66B (as those sections continue to apply because of subclauses (6AA) and (6AB)); or
 - (i) been given a response before commencement by the employer under section 66G refusing a request made by the employee under section 66F; or
 - (ii) been given a response after commencement by the employer under section 66G refusing a request made by the employee under section 66F (as those sections continue to apply because of subclauses (6A) and (6B)).

- (6AA) Despite subclause (5), sections 66B and 66C as in force immediately before commencement continue to apply after commencement for a period of 6 months from commencement in relation to employment relationships entered into before commencement where the employer is not a small business employer at commencement.
- (6AB) Despite subclause (5), sections 66D and 66E as in force immediately before commencement continue to apply after commencement in relation to:
- (a) an offer made before commencement by an employer under section 66B for which, immediately before commencement, a response under section 66D or a notice under section 66E had not been given; or
 - (b) an offer made after commencement by an employer under section 66B, or a notice given after commencement under subsection 66C(3) that the employer has decided not to make an offer to the employee under section 66B (as those sections continue to apply because of subclause (6AA)).
- (6A) Despite subclause (5), section 66F as in force immediately before commencement continues to apply after commencement in relation to employment relationships entered into before commencement for a period of:
- (a) for an employer that is a small business employer at commencement—12 months from commencement; or
 - (b) for an employer that is not a small business employer at commencement—6 months from commencement.
- (6B) Despite subclause (5), sections 66G to 66J as in force immediately before commencement continue to apply after commencement in relation to:
- (a) a request made before commencement by an employee under section 66F for which, immediately before commencement, a response under section 66G or a notice under section 66J had not been given; or

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 2 Amendments made by Part 1 of Schedule 1 to the amending Act

Clause 103

- (b) a request made after commencement by an employee under section 66F (as that section continues to apply because of subclause (6A)).
- (7) Despite subclause (5), sections 66M, 548 and 739 as in force immediately before commencement continue to apply after commencement to:
 - (a) disputes that arose before commencement relating to the operation of Division 4A of Part 2-2; and
 - (aa) disputes that arise after commencement relating to the operation of sections 66B to 66E (as those sections continue to apply because of subclauses (6AA) and (6AB)); and
 - (b) disputes that arise after commencement relating to the operation of sections 66F to 66J (as those sections continue to apply because of subclauses (6A) and (6B)).

Definitions

- (8) In this clause:

commencement means the commencement of Part 1 of Schedule 1 to the amending Act.

103 Transitional provision

For the purposes of applying section 66L of this Act during the period beginning when this clause commences and ending when Part 1 of Schedule 1 to the amending Act commences, the reference to “this Division” in that provision is taken to include a reference to that Division as amended by that Part.

Division 3—Amendments made by Part 4 of Schedule 1 to the amending Act

104 Replacement agreements

- (1) Subsections 58(4) and (5), as inserted by the amending Act, apply in relation to single-enterprise agreements made after the commencement of Part 4 of Schedule 1 to that Act, whether the single interest employer agreement or supported bargaining agreement was made before or after that commencement.
- (2) Section 180B and subsection 240A(4), as inserted by the amending Act, apply in relation to single interest employer agreements and supported bargaining agreements whether made before or after the commencement of Part 4 of Schedule 1 to that Act.
- (3) Subsections 236(1B) and 238(2), as inserted by the amending Act, apply in relation to applications made after the commencement of Part 4 of Schedule 1 to that Act, whether the single interest employer agreement or supported bargaining agreement was made before or after that commencement.

105 Variation of supported bargaining authorisations

Subsection 245(2), as inserted by the amending Act, applies in relation to enterprise agreements and workplace determinations that come into operation before or after the commencement of Part 4 of Schedule 1 to that Act.

106 Application of better off overall test to replacement agreements

Sections 193 and 193A, as amended by the amending Act, apply in relation to single-enterprise agreements made on or after the commencement of Part 4 of Schedule 1 to that Act, whether the supported bargaining agreement or single interest employer agreement was made before or after that commencement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 4 Amendments made by Part 5 of Schedule 1 to the amending Act

Clause 107

Division 4—Amendments made by Part 5 of Schedule 1 to the amending Act

107 Model terms and enterprise agreements

- (1) Despite the amendments made by Part 5 of Schedule 1 to the amending Act, sections 202, 205 and 737, as in force immediately before the commencement of that Part, continue to apply in relation to an enterprise agreement if:
 - (a) before that commencement, the employer concerned asks the employees to approve the agreement by voting for it; and
 - (b) by that vote, the employees approve the agreement; and
 - (c) the FWC approves the agreement.
- (2) In deciding, after the commencement of that Part, whether to approve the agreement mentioned in subclause (1) (in that form), the FWC must disregard the amendments made by that Part.

108 Model terms and copied State instruments

Despite the amendments made by Part 5 of Schedule 1 to the amending Act, section 768BK, as in force immediately before the commencement of that Part, continues to apply in relation to a model term that is taken, before that commencement, to be a term of a copied State instrument.

109 Disallowance—model terms made before commencement

Section 42 (disallowance) of the *Legislation Act 2003* does not apply to a determination made in the exercise of a power under subsection 202(5), 205(3), 737(1) or 768BK(1A) of the amended Act, before the commencement of Part 5 of Schedule 1 to the amending Act, relying on subsection 4(1) of the *Acts Interpretation Act 1901*.

Application, saving and transitional provisions relating to amendments of this Act
Schedule 1
Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes
No. 2) Act 2024 **Part 16**
Amendments made by Part 5 of Schedule 1 to the amending Act **Division 4**

Clause 109

Note: Subsection 4(1) of the *Acts Interpretation Act 1901* provides for the exercise of powers between the passing and commencement of an Act.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 5 Amendments made by Part 5A of Schedule 1 to the amending Act

Clause 110

Division 5—Amendments made by Part 5A of Schedule 1 to the amending Act

110 Application of amendments—intractable bargaining workplace determinations

- (1) This clause applies to the following provisions:
 - (a) section 270A of the amended Act;
 - (b) subsection 274(3) of the amended Act.
- (2) The provisions apply in relation to determinations made on or after the commencement of Part 5A of Schedule 1 to the amending Act (including determinations in relation to which the declaration concerned, or the application for the declaration concerned, was made before that commencement).
- (3) The provisions also apply in relation to determinations made before that commencement, in the circumstances specified in clause 111.

111 Application of amendments to intractable bargaining workplace determinations made before commencement

- (1) This clause applies in relation to an intractable bargaining workplace determination made before the commencement of Part 5A of Schedule 1 to the amending Act (the *original determination*).
- (2) On application by an employer, employee or employee organisation covered by the original determination, the FWC must make a determination (a *variation*) varying the original determination where required so as to give effect to the provisions to which clause 110 applies.

Clause 111

- (3) An application under subclause (2) must be made before the end of the period of 12 months commencing on the day Part 5A of Schedule 1 to the amending Act commences.
- (4) The FWC may make a variation despite paragraph 603(3)(c).
- (5) Any variation must be made by a Full Bench.
- (6) A variation operates from the day specified by the FWC in the variation, which must not be a day before the variation is made.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 5A Amendments made by Part 8 of Schedule 1 to the amending Act

Clause 111A

Division 5A—Amendments made by Part 8 of Schedule 1 to the amending Act

111A Definitions

In this Division:

commencement means the commencement of Part 8 of Schedule 1 to the amending Act.

111B Application of section 149F of the amended Act

- (1) Section 149F (right to disconnect term) of the amended Act applies in relation to a modern award that is in operation on or after commencement, whether or not the award was made before commencement.
- (2) However, a modern award is not invalid on or after commencement only because it does not include a right to disconnect term.

111C FWC to vary certain modern awards

- (1) This clause applies in relation to a modern award if the award:
 - (a) is made before commencement; and
 - (b) is to be in operation on commencement.
- (2) The FWC must, by the day before commencement, make a determination varying the modern award to include a right to disconnect term.
- (3) A determination made under subclause (2) comes into operation on (and takes effect from) commencement.
- (4) Section 168 applies to a determination made under subclause (2) as if it were a determination made under Part 2-3.

111D Application of amendments to small business employers

The amendments made by Part 8 of Schedule 1 to the amending Act do not apply in relation to an employer that is a small business employer on the day of commencement, or an employee of the employer, for a period of 12 months beginning on that day.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 6 Amendments made by Part 9 of Schedule 1 to the amending Act

Clause 112

Division 6—Amendments made by Part 9 of Schedule 1 to the amending Act

112 Application of amendments

Section 357, as amended by Part 9 of Schedule 1 to the amending Act, applies in relation to representations made on or after the commencement of that Part.

Application, saving and transitional provisions relating to amendments of this Act
Schedule 1
Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes
No. 2) Act 2024 **Part 16**
Amendments made by Part 10 of Schedule 1 to the amending Act **Division 7**

Clause 113

Division 7—Amendments made by Part 10 of Schedule 1 to the amending Act

113 Application of amendments—right of entry

The amendments of subsection 510(1) made by Part 10 of Schedule 1 to the amending Act apply in relation to each entry permit held by a permit holder whether issued before, on or after the commencement of that Part.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 16 Main amendments made by the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 8 Amendments made by Part 11 of Schedule 1 to the amending Act

Clause 114

Division 8—Amendments made by Part 11 of Schedule 1 to the amending Act

114 Penalties for contravention of civil remedy provisions

Changes to amounts of pecuniary penalties and serious contraventions

- (1) The amendments of Part 4-1 made by Division 1 of Part 11 of Schedule 1 to the amending Act apply in relation to conduct engaged in after the commencement of that Division.
- (2) For the purposes of section 557, conduct engaged in before that commencement cannot constitute the same course of conduct as conduct engaged in after that commencement.

Changes relating to underpayments

- (3) The amendments of Part 4-1 made by Division 3 of Part 11 of Schedule 1 to the amending Act apply in relation to conduct engaged in after the commencement of that Division.
- (4) For the purposes of section 557, conduct engaged in before that commencement cannot constitute the same course of conduct as conduct engaged in after that commencement.

Part 17—Amendments made by Part 15 of Schedule 1 to the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 1—Definitions

115 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024*.

amending Act means the *Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024*.

commencement means the commencement of item 237 of Part 15 of Schedule 1 to the amending Act.

old Act means this Act as in force immediately before commencement.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 17 Amendments made by Part 15 of Schedule 1 to the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 2 Transitional provisions

Clause 116

Division 2—Transitional provisions

116 Relationships in existence as at commencement or entered into on or after commencement

- (1) Subject to this Schedule and sections 15AB to 15AD of the amended Act, section 15AA of the amended Act applies on and after commencement to the following:
 - (a) a relationship between an individual and a person entered into before commencement that is in existence as at commencement;
 - (b) a relationship between an individual and a person entered into on or after commencement.
- (2) Despite section 40A, section 7 of the *Acts Interpretation Act 1901*, as in force from time to time, applies in relation to the amendment made by item 237 of Part 15 of Schedule 1 to the amending Act.

Note: Section 7 of the *Acts Interpretation Act 1901* provides for the effect of amendment and repeal of provisions of Acts, including in relation to rights, liabilities, penalties and forfeitures etc. accrued or incurred before the repeal.

117 References to employees etc. in fair work instruments made before commencement

- (1) This clause applies to a fair work instrument that:
 - (a) was made before commencement; and
 - (b) is in operation on or after commencement.
- (2) A reference in the fair work instrument to an employee or an employer is taken, on and after commencement, to include a reference to an employee or an employer, as the case requires, within the meaning of section 15AA of the amended Act, and, to avoid doubt, does not include a reference to an individual in respect of whom an opt out notice has been given and not revoked.

118 Entitlements determined by reference to length of a period of employment etc.

- (1) This clause applies if:
 - (a) immediately before commencement, an individual was not an employee of a person within the ordinary meaning of that expression; and
 - (b) because of the operation of section 15AA of the amended Act, on commencement, the individual becomes an employee of the person, within the ordinary meaning of that expression, in respect of that relationship.
- (2) For the purposes of determining whether the individual has a right or entitlement under the amended Act or under a fair work instrument in respect of the employment of the individual, being a right or entitlement calculated by reference to:
 - (a) the individual's length of service (however described) as an employee; or
 - (b) a minimum period of employment (however described) of the individual;the nature of the relationship between the individual and the person in respect of a period or periods before commencement is to be ascertained in accordance with the old Act.

119 Old Act applies to proceedings on foot as at commencement

- (1) Despite the amendment made by item 237 of Part 15 of Schedule 1 to the amending Act, the old Act continues to apply, on and after commencement, as if that amendment had not been made, in relation to the following:
 - (a) an application made, or proceedings on foot, as at commencement, other than an application or proceedings prescribed by the regulations;
 - (b) an application for review of, or an appeal relating to, an application or proceedings referred to in paragraph (a) (whether the application for review was made, or the appeal

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 17 Amendments made by Part 15 of Schedule 1 to the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 2 Transitional provisions

Clause 120

proceedings were brought, before, on or after commencement).

- (2) For the purposes of paragraph (1)(a), an application or proceedings are on foot until all rights of review and appeal in relation to the application or proceedings have expired or have been exhausted.

120 FWC power to deal with uncertainties or difficulties arising from the operation of section 15AA of the amended Act

- (1) The FWC may make a determination varying a fair work instrument in order to resolve an uncertainty or difficulty relating to the operation or effect of the fair work instrument, being an uncertainty or difficulty arising as a result of, or in connection with, the amendment made by item 237 of Part 15 of Schedule 1 to the amending Act.
- (2) The FWC may make a determination under subclause (1) varying a modern award:
- (a) on its own initiative; or
 - (b) on application by an employer, employee, organisation or outworker entity covered by the modern award; or
 - (c) on application by an organisation that is entitled to represent the industrial interests of one or more employers or employees covered by the modern award; or
 - (d) if the modern award includes outworker terms—on application by an organisation that is entitled to represent the industrial interests of one or more outworkers to whom the outworker terms relate.
- (3) The FWC may make a determination under subclause (1) varying an enterprise agreement or a workplace determination:
- (a) on its own initiative; or
 - (b) on application by any of the following:
 - (i) one or more of the employers covered by the enterprise agreement or workplace determination;

- (ii) an employee covered by the enterprise agreement or workplace determination;
 - (iii) an employee organisation covered by the enterprise agreement or workplace determination.
- (4) The FWC may make a determination under subclause (1) varying an FWC order:
 - (a) on its own initiative; or
 - (b) on application:
 - (i) by a person affected by the order; or
 - (ii) if the FWC order is of a kind prescribed by the regulations—by a person prescribed by the regulations in relation to that kind of order.
- (5) A variation of a fair work instrument under this clause operates from the day specified in the determination, which may be a day before the determination was made.
- (6) The regulations may provide as follows:
 - (a) that this clause applies, or does not apply, to a specified fair work instrument or a specified class of fair work instrument;
 - (b) that this clause applies, or does not apply, to a specified uncertainty or difficulty, or a specified class of uncertainty or difficulty.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 17 Amendments made by Part 15 of Schedule 1 to the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 3 Regulations about transitional matters

Clause 121

Division 3—Regulations about transitional matters

121 General power for regulations to deal with transitional etc. matters

- (1) The regulations may make provisions of a transitional, application or saving nature in relation to the amendment made by item 237 of Part 15 of Schedule 1 to the amending Act.
- (2) The regulations may make provisions of a transitional, application or saving nature in relation to the following:
 - (a) a person becoming an employer because of the amendment made by item 237 of Part 15 of Schedule 1 to the amending Act;
 - (b) an individual becoming an employee because of the amendment made by item 237 of Part 15 of Schedule 1 to the amending Act.

122 Other general provisions about regulations

- (1) This clause applies to regulations made for the purposes of this Part.
- (2) Subsection 12(2) (retrospective application of legislative instruments) of the *Legislation Act 2003* does not apply to the regulations.
- (3) If:
 - (a) regulations are expressed to commence from a date (the **registration date**) before the regulations are registered under the *Legislation Act 2003*; and
 - (b) a person engaged in conduct before the registration date; and
 - (c) but for the retrospective effect of the regulations, the conduct would not have contravened a provision of this Act;

then a court must not convict the person of an offence, or order the person to pay a pecuniary penalty, in relation to the conduct on the grounds that it contravened a provision of this Act.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 18 Amendments made by Part 16 of Schedule 1 to the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 1 Definitions

Clause 123

Part 18—Amendments made by Part 16 of Schedule 1 to the Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024

Division 1—Definitions

123 Definitions

In this Part:

amended Act means this Act as amended by the *Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024*.

amending Act means the *Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024*.

commencement means the commencement of item 238 of Part 16 of Schedule 1 to the amending Act.

old Act means this Act as in force immediately before commencement.

Division 2—Transitional provisions

124 Unfair deactivation and unfair termination

- (1) Part 3A-3 (unfair deactivation or unfair termination of regulated workers) applies to a deactivation or termination that occurs after commencement.
- (2) For the purposes of determining under paragraph 536LD(c) whether an employee-like worker has been performing work for a period of at least 6 months, a period or periods before commencement are not to be counted.
- (3) For the purposes of determining under paragraph 536LE(c) whether a regulated road transport contractor has been performing work for a period of at least 6 months, a period or periods before commencement are not to be counted.

125 New applications relating to unfair contracts

An application in relation to a services contract may be made under section 536ND only if the contract was entered into on or after commencement.

126 Services contracts entered into before commencement

- (1) This section applies to a services contract entered into before commencement.
- (2) Despite the amendments of the *Independent Contractors Act 2006* made by the *Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024*, the *Independent Contractors Act 2006* continues to apply to the services contract after commencement as if those amendments had not been made.

Schedule 1 Application, saving and transitional provisions relating to amendments of this Act

Part 19 Amendments made by the Fair Work Amendment (Protecting Penalty and Overtime Rates) Act 2025

Clause 127

Part 19—Amendments made by the Fair Work Amendment (Protecting Penalty and Overtime Rates) Act 2025

127 Application of amendments

The amendments made by Schedule 1 to the *Fair Work Amendment (Protecting Penalty and Overtime Rates) Act 2025* apply in relation to the exercise of the FWC's powers under Part 2-3 to make, vary or revoke a modern award on and after the commencement of that Schedule, including in relation to:

- (a) an application for the making, variation or revocation of a modern award made before that commencement; and
- (b) a modern award made before that commencement.

Part 20—Amendments made by the Fair Work Amendment (Baby Priya's) Act 2025

128 Application provision—employer-funded paid parental leave under workplace instruments etc.

Section 333X (employer-funded paid parental leave—preserved if child is stillborn or dies) applies in relation to an employee if:

- (a) the stillbirth or death mentioned in paragraph 333X(1)(a) occurs on or after the commencement of section 333X; and
- (b) the employee would have had an entitlement to leave mentioned in paragraph 333X(1)(b); and
- (c) the entitlement arises other than under a contract of employment (regardless of whether the source of the entitlement was made before, on or after that commencement).

129 Application provision—employer-funded paid parental leave under employment contracts

Contracts entered into after section 333X commences

- (1) Section 333X (employer-funded paid parental leave—preserved if child is stillborn or dies) applies in relation to an employee if:
 - (a) the employee would have had an entitlement to leave mentioned in paragraph 333X(1)(b); and
 - (b) the entitlement arises under a contract of employment; and
 - (c) the contract is entered into on or after the commencement of section 333X.

Clause 129

Contracts in effect immediately before section 333X commences

- (2) Section 333X (employer-funded paid parental leave cannot be refused or cancelled because of child's stillbirth or death) also applies in relation to an employee if:
- (a) the stillbirth or death mentioned in paragraph 333X(1)(a) occurs on or after the commencement of section 333X; and
 - (b) the employee would have had an entitlement to leave mentioned in paragraph 333X(1)(b); and
 - (c) the entitlement arises under a contract of employment; and
 - (d) the contract was in effect immediately before that commencement; and
 - (e) at that commencement, the employee:
 - (i) had not given notice of intention to take that leave; or
 - (ii) had given notice of intention to take that leave, but not all the requirements for seeking that leave had been met; or
 - (iii) had met all the requirements for seeking that leave, but had not been approved to take that leave; or
 - (iv) had been approved to take that leave, but had not commenced that leave; or
 - (v) had commenced that leave.

Note: Paragraph (d) also covers a contract that is varied after that commencement, as long as the contract (with or without the variation) was in effect immediately before that commencement.

Part 22—Amendments made by the Fair Work Amendment (Fairer Fuel) Act 2026

131 Application of amendments

The amendments made by Schedule 1 to the *Fair Work Amendment (Fairer Fuel) Act 2026* apply in relation to any determination made under section 536PEA of the *Fair Work Act 2009* made on or after the commencement of that Schedule in relation to:

- (a) an application for a road transport contractual chain order; or
 - (b) an application for a determination varying or revoking a road transport contractual chain order;
- made on or after that commencement.

Clause 1

Schedule 2—Amendments made by the Fair Work Amendment (Transfer of Business) Act 2012

Note: See section 795A.

1 Definitions

In this Schedule:

amending Act means the *Fair Work Amendment (Transfer of Business) Act 2012*.

commencement means the commencement of this Schedule.

2 Application of the amendments made by the amending Act

The amendments made by the amending Act apply in relation to a transfer of business referred to in Part 6-3A (as inserted by item 1 of Schedule 1 to the amending Act), but only if the connection between the old State employer and the new employer referred to in paragraph 768AD(1)(d) (as inserted by that item) occurs on or after commencement.

Schedule 3—Amendments made by the Fair Work Amendment Act 2012

Note: See section 795A.

Part 1—Preliminary

1 Definitions

In this Schedule:

amending Act means the *Fair Work Amendment Act 2012*.

doing a thing includes making an instrument.

FWA (short for Fair Work Australia) means the body referred to in section 575, as in force immediately before the commencement of Part 1 of Schedule 9 to the amending Act.

Clause 2

Part 2—Default superannuation (Schedule 1)

2 Schedule 1 to the amending Act

- (1) Section 149B, subsection 149C(1) and section 149D (as inserted by Schedule 1 to the amending Act) apply in relation to a modern award that:
 - (a) is made on or after 1 January 2014; or
 - (b) is made before 1 January 2014 and that is varied on or after that day under Division 4A of Part 2-3 (as inserted by Schedule 1 to the amending Act).
- (2) Despite the repeal of sections 149A and 155A made by Schedule 1 to the amending Act, those sections continue in force in relation to a modern award that:
 - (a) is made before 1 January 2014; and
 - (b) is not varied on or after that day under Division 4A of Part 2-3 (as inserted by Schedule 1 to the amending Act).
- (3) The amendments made by items 15, 18, 19 and 20 of Schedule 1 to the amending Act apply in relation to a modern award that is in operation on or after 1 January 2014, whether or not the award was made before that day.

2A Transitional provision—when first variations of default fund term take effect

- (1) This clause applies to the first 4 yearly review of default fund terms of modern awards under Division 4A of Part 2-3 (as inserted by Schedule 1 to the amending Act).
- (2) In the review, determinations under that Division (whether made under section 156H or 156J) varying the default fund term of a modern award:
 - (a) must take effect at the same time; and
 - (b) must not take effect before 1 January 2015.

**2B Transitional provision—modern awards made on or after
1 January 2014**

If a modern award is made in the period that starts on 1 January 2014 and ends on 31 December 2017, then, until the default fund term of the award is varied after that period under Division 4A of Part 2-3 (as inserted by Schedule 1 to the amending Act), this Act has effect in relation to the award as if subsection 149D(1A) (as inserted by that Schedule) were as follows:

Superannuation funds offering employer MySuper products

- (1A) A default fund term of a modern award must permit an employer covered by the award to make contributions, for the benefit of a default fund employee, to a superannuation fund that offers an employer MySuper product that relates to the employer.

Clause 3

Part 3—Modern awards (Schedule 3)

3 Part 1 of Schedule 3 to the amending Act

- (1) This clause applies if, before the commencement of Part 1 of Schedule 3 to the amending Act (which is about variation etc. of modern awards):
 - (a) a determination was made under subsection 160(1) (about varying a modern award); or
 - (b) an application was made under subsection 160(2) (about varying a modern award).
- (2) The determination and the application are as valid, and are taken always to have been as valid, as they would have been if paragraphs 160(2)(c) and (d) (as inserted by Part 1 of Schedule 3 to the amending Act) had been in force at the time the determination or application was made.

Part 4—Enterprise agreements (Schedule 4)

4 Part 1 of Schedule 4 to the amending Act

The amendment made by Part 1 of Schedule 4 to the amending Act (which is about enterprise agreements covering a single employee) applies in relation to enterprise agreements that are purportedly made after the commencement of that Part.

5 Part 2 of Schedule 4 to the amending Act

The amendments made by Part 2 of Schedule 4 to the amending Act (which is about bargaining representatives) apply in relation to appointments of bargaining representatives that are made after the commencement of that Part.

6 Part 3 of Schedule 4 to the amending Act

- (1) The amendment made by Part 3 of Schedule 4 to the amending Act (which is about unlawful terms) applies in relation to enterprise agreements that are made before or after the commencement of that Part.
- (2) However, if:
 - (a) an enterprise agreement that was made before the commencement of that Part included a term referred to in paragraph 194(ba) (as inserted by Part 3 of Schedule 4 to the amending Act); and
 - (b) a person made an election in accordance with that term before the commencement of that Part;then the amendment does not apply in relation to that person.

Clause 7

7 Part 4 of Schedule 4 to the amending Act

The amendment made by Part 4 of Schedule 4 to the amending Act (which is about scope orders) applies in relation to applications for a scope order that are made after the commencement of that Part.

8 Part 5 of Schedule 4 to the amending Act

- (1) The amendments made by Part 5 of Schedule 4 to the amending Act (which is about notice of employee representational rights) apply in relation to notices of employee representational rights that are given after the commencement of that Part.
- (2) Regulations that:
 - (a) were made for the purposes of subsection 174(6) before the commencement of Part 5 of Schedule 4 to the amending Act; and
 - (b) were in force immediately before that commencement;continue in force (and may be dealt with) after that commencement as if they had been made for the purposes of subsection 174(1A) (as inserted by Part 5 of Schedule 4 to the amending Act).

Part 5—General protections (Schedule 5)

9 Part 1 of Schedule 5 to the amending Act

The amendment made by Part 1 of Schedule 5 to the amending Act (which is about time limits for making applications) applies in relation to dismissals that take effect after the commencement of that Part.

Part 6—Unfair dismissal (Schedule 6)

10 Part 1 of Schedule 6 to the amending Act

The amendment made by Part 1 of Schedule 6 to the amending Act (which is about time limits for making applications) applies in relation to dismissals that take effect after the commencement of that Part.

11 Part 2 of Schedule 6 to the amending Act

The amendments made by Part 2 of Schedule 6 to the amending Act (which is about the power to dismiss applications) apply in relation to dismissals that take effect after the commencement of that Part.

12 Part 3 of Schedule 6 to the amending Act

The amendments made by Part 3 of Schedule 6 to the amending Act (which is about costs orders against parties) apply in relation to dismissals that take effect after the commencement of that Part.

13 Part 4 of Schedule 6 to the amending Act

The amendment made by Part 4 of Schedule 6 to the amending Act (which is about costs orders against lawyers and paid agents) applies in relation to dismissals that take effect after the commencement of that Part.

Part 7—Industrial action (Schedule 7)

14 Part 1 of Schedule 7 to the amending Act

The amendments made by Part 1 of Schedule 7 to the amending Act (which is about electronic voting in protected action ballots) apply in relation to applications for protected action ballot orders that are made after the commencement of that Part.

15 Part 2 of Schedule 7 to the amending Act

The amendments made by Part 2 of Schedule 7 to the amending Act (which is about employees to be balloted in protected action ballots) apply in relation to applications for protected action ballot orders that are made after the commencement of that Part.

16 Part 3 of Schedule 7 to the amending Act

The amendments made by Part 3 of Schedule 7 to the amending Act (which is about conducting protected action ballots) apply in relation to protected action ballot orders that are made after the commencement of that Part.

Part 8—The Fair Work Commission (Schedule 8)

17 Part 1 of Schedule 8 to the amending Act

The amendment made by Part 1 of Schedule 8 to the amending Act (which is about stay orders) applies in relation to orders under subsection 606(1) that are made after the commencement of that Part.

18 Part 2 of Schedule 8 to the amending Act

The amendments made by Part 2 of Schedule 8 to the amending Act (which is about conflicts of interest) apply in relation to matters that an FWC member begins to deal with before or after the commencement of that Part.

19 Part 4 of Schedule 8 to the amending Act

The amendments made by Part 4 of Schedule 8 to the amending Act (which is about appointing acting Commissioners) apply in relation to appointments that are made after the commencement of that Part.

20 Part 5 of Schedule 8 to the amending Act

The amendments made by Part 5 of Schedule 8 to the amending Act (which is about appointing the General Manager) apply in relation to appointments and acting appointments that are made after the commencement of that Part.

21 Part 6 of Schedule 8 to the amending Act

The amendments made by Part 6 of Schedule 8 to the amending Act (which is about Vice Presidents) apply in relation to appointments that take effect after the commencement of that Part.

22 Part 7 of Schedule 8 to the amending Act

The amendments made by Part 7 of Schedule 8 to the amending Act (which is about handling complaints) apply after the commencement of that Part in relation to a complaint about an FWC Member, regardless of whether:

- (a) the complaint is made before or after that commencement; or
- (b) the circumstances that give rise to the complaint occur before or after that commencement.

23 Part 8 of Schedule 8 to the amending Act

The amendments made by Part 8 of Schedule 8 to the amending Act (which is about engaging in outside work) apply in relation to paid work that is engaged in after the commencement of that Part.

Clause 24

Part 9—Changing the name of Fair Work Australia (Schedule 9)

24 Transitional provision—President

- (1) The person holding office as the President of FWA immediately before the commencement of Part 1 of Schedule 9 to the amending Act continues to hold office as the President of the FWC.
- (2) If, before that commencement, a thing was done by, or in relation to, the President of FWA, then, for the purposes of the operation of any law on or after that commencement, the thing is taken to have been done by, or in relation to, the President of the FWC.
- (3) For the purposes of subclause (2), a thing done before that commencement under a provision amended by Part 1, 2 or 3 of Schedule 9 to the amending Act has effect from that commencement as if it were done under that provision as amended. However, this is not taken to change the time at which the thing was actually done.
- (4) The Minister may, by writing, determine that subclause (2):
 - (a) does not apply in relation to a specified thing done by, or in relation to, the President of FWA; or
 - (b) applies as if the reference in that subclause to the President of the FWC were a reference to the FWC; or
 - (c) applies as if the reference in that subclause to the President of the FWC were a reference to another FWC member.A determination under this subclause has effect accordingly.
- (5) A determination made under subclause (4) is not a legislative instrument.

25 Transitional provision—Deputy President

- (1) Subject to subclause (2), a person holding office as a Deputy President of FWA immediately before the commencement of Part 1 of Schedule 9 to the amending Act continues to hold office as a Deputy President of the FWC.
- (2) If, immediately before that commencement, a person:
 - (a) is a member of a prescribed State industrial authority; and
 - (b) holds office as a Deputy President of FWA;the person continues to hold office as a Deputy President of the FWC for the balance of the person's term of appointment that remains immediately before that commencement.
- (3) If, before that commencement, a thing was done by, or in relation to, a Deputy President of FWA, then, for the purposes of the operation of any law on or after that commencement, the thing is taken to have been done by, or in relation to, a Deputy President of the FWC.
- (4) For the purposes of subclause (3), a thing done before that commencement under a provision amended by Part 1, 2 or 3 of Schedule 9 to the amending Act has effect from that commencement as if it were done under that provision as amended. However, this is not taken to change the time at which the thing was actually done.
- (5) The Minister may, by writing, determine that subclause (3):
 - (a) does not apply in relation to a specified thing done by, or in relation to, a Deputy President of FWA; or
 - (b) applies as if the reference in that subclause to the Deputy President of the FWC were a reference to the FWC; or
 - (c) applies as if the reference in that subclause to the Deputy President of the FWC were a reference to another FWC member.A determination under this subclause has effect accordingly.
- (6) A determination made under subclause (5) is not a legislative instrument.

Clause 26

26 Transitional provision—Commissioner

- (1) Subject to subclause (2), a person holding office as a Commissioner of FWA immediately before the commencement of Part 1 of Schedule 9 to the amending Act continues to hold office as a Commissioner of the FWC.
- (2) If, immediately before that commencement, a person:
 - (a) is a member of a prescribed State industrial authority; and
 - (b) holds office as a Commissioner of FWA;the person continues to hold office as a Commissioner of the FWC for the balance of the person's term of appointment that remains immediately before that commencement.
- (3) If, before that commencement, a thing was done by, or in relation to, a Commissioner of FWA, then, for the purposes of the operation of any law on or after that commencement, the thing is taken to have been done by, or in relation to, a Commissioner of the FWC.
- (4) For the purposes of subclause (3), a thing done before that commencement under a provision amended by Part 1, 2 or 3 of Schedule 9 to the amending Act has effect from that commencement as if it were done under that provision as amended. However, this is not taken to change the time at which the thing was actually done.
- (5) The Minister may, by writing, determine that subclause (3):
 - (a) does not apply in relation to a specified thing done by, or in relation to, a Commissioner of FWA; or
 - (b) applies as if the reference in that subclause to a Commissioner of the FWC were a reference to the FWC; or
 - (c) applies as if the reference in that subclause to a Commissioner of the FWC were a reference to another FWC member.A determination under this subclause has effect accordingly.
- (6) A determination made under subclause (5) is not a legislative instrument.

27 Transitional provision—Minimum Wage Panel Member

- (1) A person holding office as a Minimum Wage Panel Member of FWA immediately before the commencement of Part 1 of Schedule 9 to the amending Act continues to hold office:
 - (a) as a Minimum Wage Panel Member of the FWC; and
 - (b) for the balance of the person's term of appointment that remains immediately before that commencement.
- (2) If, before that commencement, a thing was done by, or in relation to, a Minimum Wage Panel Member of FWA, then, for the purposes of the operation of any law on or after that commencement, the thing is taken to have been done by, or in relation to, a Minimum Wage Panel Member of the FWC.
- (3) For the purposes of subclause (2), a thing done before that commencement under a provision amended by Part 1, 2 or 3 of Schedule 9 to the amending Act has effect from that commencement as if it were done under that provision as amended. However, this is not taken to change the time at which the thing was actually done.
- (4) The Minister may, by writing, determine that subclause (2):
 - (a) does not apply in relation to a specified thing done by, or in relation to, a Minimum Wage Panel Member of FWA; or
 - (b) applies as if the reference in that subclause to a Minimum Wage Panel Member of the FWC were a reference to the FWC; or
 - (c) applies as if the reference in that subclause to a Minimum Wage Panel Member of the FWC were a reference to another FWC member.A determination under this subclause has effect accordingly.
- (5) A determination made under subclause (4) is not a legislative instrument.

Clause 28

28 Operation of laws—things done by, or in relation to, FWA

- (1) If, before the commencement of Part 1 of Schedule 9 to the amending Act, a thing was done by, or in relation to, FWA, then, for the purposes of the operation of any law on or after that commencement, the thing is taken to have been done by, or in relation to, the FWC.
- (2) For the purposes of subclause (1), a thing done before that commencement under a provision amended by Part 1, 2 or 3 of Schedule 9 to the amending Act has effect from that commencement as if it were done under that provision as amended. However, this is not taken to change the time at which the thing was actually done.
- (3) The Minister may, by writing, determine that subclause (1):
 - (a) does not apply in relation to a specified thing done by, or in relation to, FWA; or
 - (b) applies as if the reference in that subclause to the FWC were a reference to the President of the FWC; or
 - (c) applies as if the reference in that subclause to the FWC were a reference to another FWC member.A determination under this subclause has effect accordingly.
- (4) A determination made under subclause (3) is not a legislative instrument.

29 Transitional provision—General Manager and staff of FWA

General Manager

- (1) The person holding office as the General Manager of FWA immediately before the commencement of Part 1 of Schedule 9 to the amending Act continues to hold office:
 - (a) as the General Manager of the FWC; and
 - (b) for the balance of the person's term of appointment that remains immediately before that commencement.

- (2) If, before that commencement, a thing was done by, or in relation to, the General Manager of FWA, then, for the purposes of the operation of any law on or after that commencement, the thing is taken to have been done by, or in relation to, the General Manager of the FWC.
- (3) For the purposes of subclause (2), a thing done before that commencement under a provision amended by Part 1, 2 or 3 of Schedule 9 to the amending Act has effect from that commencement as if it were done under that provision as amended. However, this is not taken to change the time at which the thing was actually done.
- (4) The Minister may, by writing, determine that subclause (2):
 - (a) does not apply in relation to a specified thing done by, or in relation to, the General Manager of FWA; or
 - (b) applies as if the reference in that subclause to the General Manager of the FWC were a reference to the Commonwealth.A determination under this subclause has effect accordingly.
- (5) A determination made under subclause (4) is not a legislative instrument.

Staff

- (6) A person who, immediately before that commencement, was a member of the staff of FWA, continues, on and after that commencement, as a member of the staff of the FWC.

30 Operation of section 7 and subsection 25B(1) of the *Acts Interpretation Act 1901* not limited

This Part and Schedule 9 to the amending Act do not limit the operation of section 7 or subsection 25B(1) of the *Acts Interpretation Act 1901*.

Clause 31

Part 10—Other amendments (Schedule 10)

31 Part 1 of Schedule 10 to the amending Act

The amendment made by Part 1 of Schedule 10 to the amending Act (which is about costs orders in court proceedings) applies in relation to proceedings commenced after the commencement of that Part.

Part 11—Regulations

32 Regulations about application, transitional and saving matters

- (1) The regulations may prescribe matters of an application, transitional or saving nature relating to the amendments and repeals made by the amending Act.
- (2) Without limiting subclause (1), the regulations may:
 - (a) provide that Part 9 of this Schedule or Part 4 of Schedule 9 to the amending Act applies with specified modifications; or
 - (b) provide that the Transitional Act applies with specified modifications.
- (3) The provisions referred to in subclause (2) have effect subject to regulations made for the purposes of this clause.
- (4) Subsection 12(2) (retrospective application of legislative instruments) of the *Legislation Act 2003* does not apply to:
 - (a) regulations relating to the amendments and repeals made by Schedule 9 to the amending Act; and
 - (b) regulations made for the purposes of subclause (2).

Clause 1

Schedule 4—Amendments made by the Fair Work Amendment Act 2013

Note: See section 795A.

Part 1—Preliminary

1 Definition

In this Schedule:

amending Act means the *Fair Work Amendment Act 2013*.

Part 2—Family-friendly measures (Schedule 1)

2 Part 1 of Schedule 1 to the amending Act

The amendments made by Part 1 of Schedule 1 to the amending Act apply in relation to a period of unpaid special maternity leave that starts after the commencement of that Part.

3 Part 2 of Schedule 1 to the amending Act

The amendments made by Part 2 of Schedule 1 to the amending Act apply in relation to the taking of unpaid parental leave by members of an employee couple if the first taking of leave by either member of the employee couple occurs after the commencement of that Part.

4 Part 3 of Schedule 1 to the amending Act

The amendments made by Part 3 of Schedule 1 to the amending Act apply in relation to a request that is made under subsection 65(1) after the commencement of that Part.

5 Part 4 of Schedule 1 to the amending Act

Application of amendments

- (1) The amendment made by item 19 of Schedule 1 to the amending Act applies in relation to a modern award that is in operation on or after 1 January 2014, whether or not the award was made before that day.
- (2) The amendments made by items 20 and 21 of Schedule 1 to the amending Act apply in relation to an enterprise agreement that is made after the commencement of Part 4 of that Schedule.

Clause 6

Transitional provision

- (3) If:
- (a) a modern award is made before 1 January 2014; and
 - (b) the modern award is in operation on that day; and
 - (c) immediately before that day, the modern award does not include a term (the ***relevant term***) of the kind mentioned in section 145A (as inserted by item 19 of Schedule 1 to the amending Act);
- then the FWC must, by 31 December 2013, make a determination varying the modern award to include the relevant term.
- (4) A determination made under subclause (3) comes into operation on (and takes effect from) 1 January 2014.
- (5) Section 168 applies to a determination made under subclause (3) as if it were a determination made under Part 2-3.

6 Part 5 of Schedule 1 to the amending Act

The amendments made by Part 5 of Schedule 1 to the amending Act apply in relation to evidence that is given under section 81 after the commencement of that Part.

Part 3—Modern awards objective (Schedule 2)

7 Schedule 2 to the amending Act

The amendment made by Schedule 2 to the amending Act applies in relation to a modern award that is made or varied after the commencement of that Schedule.

Clause 8

Part 4—Anti-bullying measure (Schedule 3)

8 Schedule 3 to the amending Act

The amendments made by Schedule 3 to the amending Act apply in relation to an application that is made under section 789FC (as inserted by item 6 of that Schedule) after the commencement of that Schedule.

Part 4A—Conferences (Schedule 3A)

8A Schedule 3A to the amending Act

The amendments made by Schedule 3A to the amending Act apply in relation to a matter that arises before or after the commencement of that Schedule, whether or not a conference starts to be conducted in relation to the matter before or after that commencement.

Clause 9

Part 5—Right of entry (Schedule 4)

9 Schedule 4 to the amending Act

Application of amendment relating to sections 492 and 492A

- (1) The amendment made by item 7 of Schedule 4 to the amending Act applies in relation to interviews conducted and discussions held after the commencement of that item.

Application of amendments relating to section 505A

- (2) The amendments made by items 12 and 13 of Schedule 4 to the amending Act apply in relation to the frequency of entry after the commencement of those items.

Application of amendments relating to accommodation arrangements and transport arrangements

- (3) The amendments made by items 14 and 15 of Schedule 4 to the amending Act do not apply in relation to arrangements entered into before the commencement of those items.

Part 6—Consent arbitration for general protections and unlawful termination (Schedule 4A)

10 Schedule 4A to the amending Act

- (1) The amendments made by Part 1 of Schedule 4A to the amending Act apply in relation to dismissals that take effect after the commencement of that Schedule.
- (2) The amendments made by Part 2 of Schedule 4A to the amending Act apply in relation to employment that is terminated after the commencement of that Schedule.

Clause 11

Part 7—The FWC (Schedule 5)

11 Item 4 of Schedule 5 to the amending Act

The amendment made by item 4 of Schedule 5 to the amending Act applies in relation to an appointment made after the commencement of that Schedule.

Schedule 5—Amendments made by the Fair Work Amendment Act 2015

Note: See section 795A.

1 Definition

In this Schedule:

amending Act means the *Fair Work Amendment Act 2015*.

2 Part 1 of Schedule 1 to the amending Act

The amendment made by Part 1 of Schedule 1 to the amending Act applies in relation to a request made after the commencement of that Part.

9 Part 5 of Schedule 1 to the amending Act

The amendments made by Part 5 of Schedule 1 to the amending Act, so far as they concern proposed enterprise agreements, apply in relation to a proposed enterprise agreement if an employer agrees to bargain for the proposed enterprise agreement after the commencement of that Part.

11 Part 7 of Schedule 1 to the amending Act

The amendment of section 437 made by Part 7 of Schedule 1 to the amending Act applies in relation to an application made under that section, if the application was made after the commencement of that Part.

14 Part 10 of Schedule 1 to the amending Act

Paragraph 559(3A)(c) applies in relation to an amount that was paid to the Commonwealth under subsection 559(1) after the commencement of Part 10 of Schedule 1 to the amending Act.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment

Endnote 1—About the endnotes

can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnotes

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	p = page(s)
amdt = amendment	para = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
ch = Chapter(s)	prev = previous
cl = clause(s)	(prev...) = previously
cont. = continued	pt = Part(s)
def = definition(s)	r = regulation(s)/Court rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
div = Division(s)	rep = repealed
ed = editorial change	rs = repealed and substituted
exp = expires/expired or ceases/ceased to have effect	s = section(s)/subsection(s) /rule(s)/subrule(s)/order(s)/suborder(s)
gaz = gazette	sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	SLI = Select Legislative Instrument
LIA = <i>Legislative Instruments Act 2003</i>	SR = Statutory Rules
(md) = misdescribed amendment can be given effect	sub ch = Sub-Chapter(s)
(md not incorp) = misdescribed amendment cannot be given effect	sub div = Subdivision(s)
mod = modified/modification	sub pt = Subpart(s)
No. = Number(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Fair Work Act 2009	28, 2009	7 Apr 2009	s 3–40: 26 May 2009 (s 2(1) item 2) s 41–43, 50–54, 58, 169–281A, 300–327, 332, 333, 334–572, 719–740 and 769–800: 1 July 2009 (s 2(1) items 3, 5) s 44–49, 55–57A, 59–168, 282–299, 328–331, 333A and 741–768: 1 Jan 2010 (s 2(1) items 3, 5) s 573–718 and Sch 1: 26 May 2009 (s 2(1) items 4, 6) Remainder: 7 Apr 2009 (s 2(1) item 1)	
Fair Work (State Referral and Consequential and Other Amendments) Act 2009	54, 2009	25 June 2009	Sch 1, 3 and 20: 25 June 2009 (s 2(1) items 2–4, 9, 43) Sch 2 (items 52–63) and Sch 5 (items 68, 69, 80): 1 Jan 2010 (s 2(1) items 8, 16, 18) Sch 5 (items 67, 70–72) and Sch 12 (items 1–3): 1 July 2009 (s 2(1) items 15, 17, 34) Sch 5 (items 81, 82): 5 Aug 2009 (s 2(1) items 19, 20)	Sch 20

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
as amended by				
Statute Law Revision Act 2012	136, 2012	22 Sept 2012	Sch 2 (item 14): 1 July 2009 (s 2(1) item 14)	—
Fair Work (Transitional Provisions and Consequential Amendments) Act 2009	55, 2009	25 June 2009	Sch 6 (items 18–28) and Sch 23 (items 3–7): 1 Jan 2010 (s 2(1) items 4, 10, 11) Sch 18 (items 21, 21A–21G, 22), Sch 22 (items 92–95, 405, 583, 584) and Sch 23 (items 1–2E, 8–22): 1 July 2009 (s 2(1) items 5, 8, 9, 12–16)	Act No 55, 2009 (as amended)
Disability Discrimination and Other Human Rights Legislation Amendment Act 2009	70, 2009	8 July 2009	Sch 3 (items 111–114): 1 Jan 2010 (s 2(1) item 8)	—
Fair Work Amendment (State Referrals and Other Measures) Act 2009	124, 2009	9 Dec 2009	Sch 1 (items 1–6, 8–12, 14, 15, 17–41), Sch 3 (items 1A, 4–17) and Sch 2 (items 125–132): 1 Jan 2010 (s 2(1) items 2, 4, 6, 8, 10, 11, 13) Sch 1 (item 7) and Sch 3 (items 1–3): 15 Dec 2009 (s 2(1) items 3, 13) Sch 1 (items 13, 16): 25 June 2009 (s 2(1) items 5, 7) Sch 1 (item 42): 9 Dec 2009 (s 2(1) item 9)	Sch 1 (item 42)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Freedom of Information Amendment (Reform) Act 2010	51, 2010	31 May 2010	Sch 5 (item 34): 1 Nov 2010 (s 2(1) item 7)	—
Sex and Age Discrimination Legislation Amendment Act 2011	40, 2011	20 June 2011	Sch 2 (items 11–13): 29 July 2011 (<i>see</i> F2011L01552)	—
Fair Work Amendment (Textile, Clothing and Footwear Industry) Act 2012	33, 2012	15 Apr 2012	Sch 1: 1 July 2012 (<i>see</i> F2012L01396) Remainder: Royal Assent	—
Paid Parental Leave and Other Legislation Amendment (Dad and Partner Pay and Other Measures) Act 2012	109, 2012	22 July 2012	Sch 2 (items 9–21): 23 July 2012	—
Navigation (Consequential Amendments) Act 2012	129, 2012	13 Sept 2012	Sch 2 (item 13): 1 July 2013 (<i>see</i> s 2(1))	—
Statute Law Revision Act 2012	136, 2012	22 Sept 2012	Sch 1 (items 122, 123): 1 Aug 2011 Sch 1 (item 124): 1 July 2012 (s 2(1) item 4) Sch 2 (item 14): 1 July 2009 (s 2(1) item 14)	—
Superannuation Legislation Amendment (Further MySuper and Transparency Measures) Act 2012	171, 2012	3 Dec 2012	Sch 4 (items 1–8): 1 Jan 2013 (s 2(1) item 19)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Fair Work Amendment Act 2012	174, 2012	4 Dec 2012	Sch 1: 1 Jan 2014 Sch 2 (items 1–61): 1 July 2013 Sch 3–7 and Sch 8 (items 1–45, 57–76): 1 Jan 2013 (<i>see</i> F2012L02450) Sch 9 (items 1–886, 1339–1383) and Sch 10: 1 Jan 2013 Sch 11: Royal Assent	—
as amended by				
Fair Work Amendment Act 2013	73, 2013	28 June 2013	Sch 6 (items 9–11, 14): (<i>see</i> 73, 2013 below)	—
Superannuation Laws Amendment (MySuper Capital Gains Tax Relief and Other Measures) Act 2013	89, 2013	28 June 2013	Sch 3: Royal Assent	—
Fair Work Amendment (Transfer of Business) Act 2012	175, 2012	4 Dec 2012	Sch 1 (items 1–13, 16–67): 5 Dec 2012	—
Federal Circuit Court of Australia (Consequential Amendments) Act 2013	13, 2013	14 Mar 2013	Sch 1 (items 234–246) and Sch 2 (item 1): 12 Apr 2013 (s 2(1) items 2, 3) Sch 3 (item 96): never commenced (s 2(1) item 19)	—

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Superannuation Legislation Amendment (Service Providers and Other Governance Measures) Act 2013	61, 2013	26 June 2013	Sch 1 (items 12B–12P): 1 Jan 2013 (s 2(1) item 8B)	—
Fair Work Amendment Act 2013	73, 2013	28 June 2013	Sch 1 (items 1–18, 22–30), Sch 3A, Sch 5 (items 3, 4) and Sch 6 (item 5): 1 July 2013 (s 2(1) items 2, 4, 6A, 10, 13) Sch 1 (items 19–21), Sch 2, Sch 3, Sch 4, Sch 4A and Sch 6 (item 1): 1 Jan 2014 (s 2(1) items 3, 5–7, 7A, 11) Sch 5 (item 1): 5 Dec 2012 (s 2(1) item 8) Sch 5 (item 2): 1 July 2012 (s 2(1) item 9) Sch 6 (items 2–4, 6–8) and Sch 7: 28 June 2013 (s 2(1) items 12, 14, 18) Sch 6 (items 9–14): 1 Jan 2013 (s 2(1) items 15–17)	—
Sex Discrimination Amendment (Sexual Orientation, Gender Identity and Intersex Status) Act 2013	98, 2013	28 June 2013	Sch 1 (items 63C–63G): 1 Aug 2013 (s 2(1) item 2)	—
Statute Law Revision Act 2013	103, 2013	29 June 2013	Sch 1 (item 47): 29 June 2013 (s 2(1) item 2)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Tax Laws Amendment (Fairer Taxation of Excess Concessional Contributions) Act 2013	118, 2013	29 June 2013	Sch 1 (items 3, 110): 29 June 2013 (s 2(1) items 2, 11)	Sch 1 (item 110)
Statute Law Revision Act (No. 1) 2014	31, 2014	27 May 2014	Sch 1 (items 25–33): 24 June 2014 (s 2(1) item 2)	—
Public Governance, Performance and Accountability (Consequential and Transitional Provisions) Act 2014	62, 2014	30 June 2014	Sch 6 (item 40), Sch 9 (items 3–11) and Sch 14: 1 July 2014 (s 2(1) items 6, 14)	Sch 14
as amended by				
Public Governance and Resources Legislation Amendment Act (No. 1) 2015	36, 2015	13 Apr 2015	Sch 2 (items 7–9) and Sch 7: 14 Apr 2015 (s 2)	Sch 7
as amended by				
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015	126, 2015	10 Sept 2015	Sch 1 (item 486): 5 Mar 2016 (s 2(1) item 2)	—
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015	126, 2015	10 Sept 2015	Sch 1 (item 495): 5 Mar 2016 (s 2(1) item 2)	—

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015	126, 2015	10 Sept 2015	Sch 1 (items 209–215): 5 Mar 2016 (s 2(1) item 2)	—
Fair Work Amendment Act 2015	156, 2015	26 Nov 2015	Sch 1 (items 1, 19–52, 56) and Sch 2: 27 Nov 2015 (s 2(1) items 2, 5, 9) Sch 1 (items 79, 80): 1 Jan 2016 (s 2(1) item 8) Remainder: 26 Nov 2015 (s 2(1) item 1)	s 4
Law and Justice Legislation Amendment (Northern Territory Local Court) Act 2016	26, 2016	23 Mar 2016	Sch 1 (items 21, 34, 35): 1 May 2016 (s 2(1) item 2)	Sch 1 (items 34, 35)
Territories Legislation Amendment Act 2016	33, 2016	23 Mar 2016	Sch 5 (items 51–56): 1 July 2016 (s 2(1) item 7)	—
Fair Work Amendment (Respect for Emergency Services Volunteers) Act 2016	62, 2016	12 Oct 2016	13 Oct 2016 (s 2(1) item 1)	—
Statute Law Revision (Spring 2016) Act 2016	67, 2016	20 Oct 2016	Sch 1 (item 27): 17 Nov 2016 (s 2(1) item 2)	—
Fair Work (Registered Organisations) Amendment Act 2016	79, 2016	24 Nov 2016	Sch 1 (items 1–5, 129–137): 1 May 2017 (s 2(1) item 2)	Sch 1 (items 129–137)
Fair Work Amendment (Corrupting Benefits) Act 2017	84, 2017	16 Aug 2017	Sch 1 and 2: 11 Sept 2017 (s 2(1) item 2)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Statute Update (Winter 2017) Act 2017	93, 2017	23 Aug 2017	Sch 1 (item 11): 20 Sept 2017 (s 2(1) item 2)	—
Fair Work Amendment (Protecting Vulnerable Workers) Act 2017	101, 2017	14 Sept 2017	15 Sept 2017 (s 2(1) item 1)	—
Fair Work Amendment (Family and Domestic Violence Leave) Act 2018	169, 2018	11 Dec 2018	12 Dec 2018 (s 2(1) item 1)	—
Fair Work Amendment (Repeal of 4 Yearly Reviews and Other Measures) Act 2018	170, 2018	11 Dec 2018	Sch 1: 1 Jan 2018 (s 2(1) item 2) Sch 2, Sch 3 (item 1) and Sch 4: 12 Dec 2018 (s 2(1) item 3)	—
Timor Sea Maritime Boundaries Treaty Consequential Amendments Act 2019	57, 2019	7 Aug 2019	Sch 1 (items 72, 73): 30 Aug 2019 (s 2(1) item 2)	—
Coronavirus Economic Response Package Omnibus (Measures No. 2) Act 2020	38, 2020	9 Apr 2020	Sch 1 (items 1–5): 9 Apr 2020 (s 2(1) item 2) Sch 1 (items 6–10): 29 Mar 2021 (s 2(1) item 3)	Sch 1 (item 10)
as amended by Coronavirus Economic Response Package (Jobkeeper Payments) Amendment Act 2020	81, 2020	3 Sept 2020	Sch 2 (item 1): 27 Sept 2020 (s 2(1) item 3) Sch 2 (items 47–51): 29 Mar 2021 (s 2(1) item 6)	—

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Coronavirus Economic Response Package (Jobkeeper Payments) Amendment Act 2020	81, 2020	3 Sept 2020	Sch 2 (items 2–38): 4 Sept 2020 (s 2(1) item 4) Sch 2 (items 39–46): 28 Sept 2020 (s 2(1) item 5) Sch 2 (items 52–55): 29 Mar 2021 (s 2(1) item 6) Sch 2 (items 56–58): 16 Sept 2020 (s 2(1) item 7)	Sch 2 (items 46, 58)
Fair Work Amendment (Improving Unpaid Parental Leave for Parents of Stillborn Babies and Other Measures) Act 2020	105, 2020	26 Nov 2020	Sch 1 and 2: 27 Nov 2020 (s 2(1) items 2, 3)	—
Federal Circuit and Family Court of Australia (Consequential Amendments and Transitional Provisions) Act 2021	13, 2021	1 Mar 2021	Sch 2 (items 369–399): 1 Sept 2021 (s 2(1) item 5) Sch 4 (item 4): never commenced (s 2(1) item 8)	—
Fair Work Amendment (Supporting Australia's Jobs and Economic Recovery) Act 2021	25, 2021	26 Mar 2021	Sch 1 (items 1–24) and Sch 7: 27 Mar 2021 (s 2(1) items 2, 2A, 18) Sch 1 (item 25): 1 Sept 2021 (s 2(1) item 2B)	—
Sex Discrimination and Fair Work (Respect at Work) Amendment Act 2021	104, 2021	10 Sept 2021	Sch 1 (items 4–28): 11 Sept 2021 (s 2(1) item 1)	—
Fair Work Amendment (Paid Family and Domestic Violence Leave) Act 2022	50, 2022	9 Nov 2022	Sch 1: 1 Feb 2023 (s 2(1) item 2) Sch 2: 9 June 2024 (s 2(1) item 3)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Fair Work Legislation Amendment (Secure Jobs, Better Pay) Act 2022	79, 2022	6 Dec 2022	Sch 1 (items 1–4, 7–11, 359–381, 385–423): 6 Mar 2023 (s 2(1) items 2, 11, 13) Sch 1 (items 346–358, 382–384, 426–437, 470–475, 522–524, 535, 536, 654–659AC, 660): 7 Dec 2022 (s 2(1) items 9, 10, 12, 15, 18, 21, 23, 32, 33) Sch 1 (items 424, 425, 672–675): 9 June 2024 (s 2(1) items 14, 37) Sch 1 (items 438–445): 6 Dec 2023 (s 2(1) item 16) Sch 1 (items 446–469A, 487–521, 524A–534B, 537–553, 561–651G, 659C–659ZC, 661–664): 6 June 2023 (s 2(1) items 17, 20, 22, 24–30A, 32B, 34) Sch 1 (items 651–653, 659A, 659B): 1 July 2023 (s 2(1) items 31, 32A) Sch 1 (items 670, 671): 1 Feb 2023 (s 2(1) item 36)	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Paid Parental Leave Amendment (Improvements for Families and Gender Equality) Act 2023 (C2023A00004)	4, 2023	10 Mar 2023	sch 2 (item 15), sch 3 (items 1, 2): 26 Mar 2023 (s 2(1) item 1)	sch 3 (items 1, 2)
Fair Work Legislation Amendment (Protecting Worker Entitlements) Act 2023 (C2023A00043)	43, 2023	30 June 2023	sch 1, 2, sch 3 (items 3, 4), sch 4, 7, 8: 1 July 2023 (s 2(1) items 2, 3, 5, 6, 9) sch 3 (items 1, 2): 1 Jan 2024 (s 2(1) item 4) sch 5: 30 Dec 2023 (s 2(1) item 7)	—
Statute Law Amendment (Prescribed Forms and Other Updates) Act 2023 (C2023A00074)	74, 2023	20 Sept 2023	sch 3 (item 2), sch 4 (items 33-37): 18 Oct 2023 (s 2(1) item 3)	—
Fair Work Legislation Amendment (Closing Loopholes) Act 2023 (C2023A00120)	120, 2023	14 Dec 2023	sch 1 (items 26-28, 71-85, 94-102, 236A, 236B, 306A, 308): 15 Dec 2023 (s 2(1) items 3, 7, 8, 10, 20A, 22A, 24) sch 1 (items 213-222, 225-235): 1 Jan 2025 (s 2(1) items 18, 20) sch 1 (items 223, 224): 14 June 2024 (s 2(1) item 19)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Fair Work Legislation Amendment (Closing Loopholes No. 2) Act 2024 (C2024A00002)	2, 2024	26 Feb 2024	sch 1 (items 1-7, 10-25, 86-98, 237, 238-302, 306A (second occurring)): 26 Aug 2024 (items 2, 9, 10, 21, 22, 22A) sch 1 (items 29-60, 70A-70C, 103, 124, 134-137, 142-148, 155, 156, 237A, 307, 308): 27 Feb 2024 (s 2(1) items 4, 5, 6A, 11, 13, 16, 21A, 23, 24) sch 1 (items 61-70): 26 Feb 2025 (s 2(1) item 6) sch 1 (items 104-123): 1 July 2024 (s 2(1) item 12) sch 1 (item 149): 9 June 2024 (s 2(1) item 14) sch 1 (items 150-154): 1 Jan 2025 (s 2(1) item 15)	—
Fair Work Amendment Act 2024 (C2024A00032)	32, 2024	31 May 2024	26 Aug 2024 (s 2(1) item 1)	—
Administrative Review Tribunal (Consequential and Transitional Provisions No. 2) Act 2024 (C2024A00039)	39, 2024	31 May 2024	sch 15 (items 10, 11, 29): 14 Oct 2024 (s 2(1) item 2)	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Fair Work (Registered Organisations) Amendment (Administration) Act 2024 (C2024A00074)	74, 2024	22 Aug 2024	sch 1 (items 1A-1F): 23 Aug 2024 (s 2(1) item 1)	—
Paid Parental Leave Amendment (Adding Superannuation for a More Secure Retirement) Act 2024 (C2024A00090)	90, 2024	1 Oct 2024	sch 2 (item 1): 2 Oct 2024 (s 2(1) item 1)	—
Crown References Amendment Act 2024 (C2024A00115)	115, 2024	10 Dec 2024	sch 1 (item 23): 11 Dec 2024 (s 2(1) item 1)	—
Fair Work Amendment (Protecting Penalty and Overtime Rates) Act 2025 (C2025A00037)	37, 2025	29 Aug 2025	30 Aug 2025 (s 2(1) item 1)	—
Fair Work Amendment (Baby Priya's) Act 2025 (C2025A00056)	56, 2025	6 Nov 2025	7 Nov 2025 (s 2(1) item 1)	—
Treasury Laws Amendment (Payday Superannuation) Act 2025 (C2025A00057)	57, 2025	6 Nov 2025	sch 1 (items 73, 74): <u>1 July 2026 (s 2(1) item 1)</u>	—
Law and Justice Legislation Amendment (New South Wales Local Court) Act 2026 (C2026A00004)	4, 2026	5 Mar 2026	sch 1 (item 14): 28 Mar 2026 (s 2(1) item 1)	—
Fair Work Amendment (Fairer Fuel) Act 2026 (C2026A00020)	20, 2026	1 Apr 2026	2 Apr 2026 (s 2(1) item 1)	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Chapter 1	
Part 1-1	
Division 2	
s 3.....	am No 55, 2009; No 79, 2022; No 2, 2024
Division 3	
s 4.....	am No 33, 2012; No 174, 2012; No 2, 2024
s 5.....	am No 174, 2012; No 120, 2023; No 56, 2025
s 6.....	am No 84, 2017; No 79, 2022
s 6A.....	ad No 2, 2024
s 6B.....	ad No 2, 2024
s 8.....	am No 174, 2012
s 9.....	am No 33, 2012; No 175, 2012; No 73, 2013; No 104, 2021; No 50, 2022; No 79, 2022
s 9A.....	ad No 33, 2012
	rs No 175, 2012
Part 1-2	
Division 1	
s 11.....	am No 33, 2012
Division 2	
s 12.....	am No 54, 2009; No 55, 2009; No 124, 2009; No 40, 2011; No 33, 2012; No 109, 2012; No 129, 2012; No 171, 2012; No 174, 2012; No 175, 2012; No 13, 2013; No 73, 2013; No 31, 2014; No 156, 2015; No 26, 2016; No 33, 2016; No 62, 2016; No 84, 2017; No 101, 2017; No 169, 2018; No 170, 2018; No 57, 2019; No 105, 2020; No 13, 2021; No 25, 2021; No 104, 2021; No 50, 2022; No 79, 2022; No 43, 2023; No 120, 2023; No 2, 2024; No 39, 2024; No 74, 2024; No 56, 2025; No 4, 2026; No 20, 2026
Division 3	
s 13.....	am No 54, 2009; No 124, 2009
s 14.....	am No 54, 2009; No 124, 2009; No 126, 2015; No 33, 2016

Endnote 4—Amendment history

Provision affected	How affected
s 14A.....	ad No 124, 2009 am No 175, 2012
s 15.....	am No 54, 2009; No 124, 2009
s 15AA.....	ad No 2, 2024
s 15AB.....	ad No 2, 2024
s 15AC.....	ad No 2, 2024
s 15AD.....	ad No 2, 2024
s 15A.....	ad No 25, 2021 rs No 2, 2024
Division 3A	
Division 3A.....	ad No 2, 2024
Subdivision A	
s 15B.....	ad No 2, 2024
s 15C.....	ad No 2, 2024
s 15D.....	ad No 2, 2024
s 15E.....	ad No 2, 2024
s 15F.....	ad No 2, 2024
s 15G.....	ad No 2, 2024
s 15H.....	ad No 2, 2024
s 15J.....	ad No 2, 2024
s 15K.....	ad No 2, 2024
s 15KA.....	ad No 2, 2024
Subdivision B	
s 15L.....	ad No 2, 2024
s 15M.....	ad No 2, 2024
s 15N.....	ad No 2, 2024
s 15P.....	ad No 2, 2024
Subdivision C	
s 15Q.....	ad No 2, 2024
s 15R.....	ad No 2, 2024
s 15RA.....	ad No 2, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 15RB	ad No 2, 2024
s 15S	ad No 2, 2024
Division 4	
s 17	am No 169, 2018; No 50, 2022
s 17A	ad No 33, 2012
s 19A	ad No 2, 2024
s 20	am No 93, 2017
s 21	am No 174, 2012
s 22	am No 55, 2009
s 23	am No 25, 2021
s 23A	ad No 174, 2012
s 23B	ad No 79, 2022
Part 1-3	
Division 1	
s 24	rs No 54, 2009
	am No 124, 2009
s 25	am No 33, 2012
Division 2	
s 27	am No 54, 2009; No 136, 2012; No 74, 2023
s 29	am No 62, 2016
Division 2A	
Division 2A heading	rs No 124, 2009
Division 2A	ad No 54, 2009
s 30A	ad No 54, 2009
	am No 124, 2009
s 30B	ad No 54, 2009
	am No 124, 2009
s 30C	ad No 54, 2009
	am No 124, 2009
s 30D	ad No 54, 2009
	am No 124, 2009

Endnote 4—Amendment history

Provision affected	How affected
s 30E	ad No 54, 2009
	am No 124, 2009
s 30F	ad No 54, 2009
	am No 124, 2009
s 30G	ad No 54, 2009
	am No 124, 2009
s 30H	ad No 54, 2009
	am No 124, 2009
s 30J	ad No 54, 2009
	rep No 124, 2009
Division 2B	
Division 2B	ad No 124, 2009
s 30K	ad No 124, 2009
s 30L	ad No 124, 2009
s 30M	ad No 124, 2009
s 30N	ad No 124, 2009
s 30P	ad No 124, 2009
s 30Q	ad No 124, 2009
s 30R	ad No 124, 2009
s 30S	ad No 124, 2009
Division 3	
s 31	am No 126, 2015; No 33, 2016
s 32A	ad No 33, 2016
s 33	am No 57, 2019
Division 4	
s 37	am No 120, 2023
s 40	am No 174, 2012
s 40A	ad No 124, 2009
s 40B	ad No 43, 2023

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Part 1-4	
Part 1-4	ad No 2, 2024
Division 1	
s 40C	ad No 2, 2024
Division 2	
s 40D	ad No 2, 2024
Division 3	
s 40E	ad No 2, 2024
s 40F	ad No 2, 2024
s 40G	ad No 2, 2024
Chapter 2	
Part 2-1	
Division 1	
s 42	am No 33, 2012
Division 2	
Subdivision A	
s 43	am No 175, 2012
Subdivision B	
s 44	am No 79, 2022
Subdivision C	
s 48	am No 55, 2009; No 174, 2012; No 175, 2012
s 49	am No 54, 2009; No 174, 2012
Subdivision D	
s 53	am No 55, 2009; No 174, 2012; No 175, 2012
s 54	am No 174, 2012; No 43, 2023
Division 3	
Subdivision C	
s 58	am No 79, 2022; No 2, 2024

Endnote 4—Amendment history

Provision affected	How affected
Part 2-2	
Division 1	
s 59.....	am No 50, 2022
s 60.....	am No 33, 2012
Division 2	
s 61.....	am No 169, 2018; No 25, 2021; No 50, 2022; No 43, 2023; No 2, 2024
Division 3	
s 63.....	am No 55, 2009
s 64.....	am No 55, 2009
Division 4	
s 65.....	am No 73, 2013; No 25, 2021; No 79, 2022; No 2, 2024
s 65A.....	ad No 79, 2022
s 65B.....	ad No 79, 2022
s 65C.....	ad No 79, 2022
Division 4A	
Division 4A heading.....	rs No 2, 2024
Division 4A.....	ad No 25, 2021
Subdivision A	
s 66A.....	ad No 25, 2021
s 66AAA.....	ad No 2, 2024
Subdivision B	
Subdivision B.....	rs No 2, 2024
s 66AAB.....	ad No 2, 2024
s 66AAC.....	ad No 2, 2024
s 66AAD.....	ad No 2, 2024
s 66AA.....	ad No 25, 2021
	rep No 2, 2024
s 66B.....	ad No 25, 2021
	rep No 2, 2024
s 66C.....	ad No 25, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 2, 2024
s 66D	ad No 25, 2021
	rep No 2, 2024
s 66E	ad No 25, 2021
	rep No 2, 2024
Subdivision C heading.....	rep No 2, 2024
s 66F	ad No 25, 2021
	rep No 2, 2024
s 66G.....	ad No 25, 2021
	rep No 2, 2024
s 66H.....	ad No 25, 2021
	rep No 2, 2024
s 66J	ad No 25, 2021
	rep No 2, 2024
Subdivision D	
s 66K.....	ad No 25, 2021
	rs No 2, 2024
s 66L	ad No 25, 2021
	am No 2, 2024
s 66M.....	ad No 25, 2021
	rs No 2, 2024
s 66MA	ad No 2, 2024
Division 5	
Subdivision A	
s 67.....	am No 73, 2013; No 25, 2021; No 43, 2023; No 2, 2024
s 69.....	am No 105, 2020; No 43, 2023
Subdivision B	
s 70.....	am No 109, 2012; No 105, 2020
s 71.....	am No 109, 2012; No 73, 2013; No 105, 2020; No 43, 2023
s 72.....	am No 109, 2012, No 73, 2013; No 105, 2020; No 79, 2022
	rep No 43, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 72A.....	ad No 105, 2020 am No 79, 2022; No 43, 2023
s 73.....	am No 73, 2013; No 105, 2020; No 43, 2023
s 74.....	am No 73, 2013; No 105, 2020; No 43, 2023
s 75.....	am No 73, 2013; No 105, 2020; No 43, 2023
s 76.....	am No 109, 2012; No 73, 2013; No 156, 2015; No 105, 2020; No 79, 2022; No 43, 2023
s 76A.....	ad No 79, 2022
s 76B.....	ad No 79, 2022
s 76C.....	ad No 79, 2022
s 77.....	am No 43, 2023
s 77A.....	ad No 109, 2012 rs No 105, 2020 am No 43, 2023; No 56, 2025
s 78.....	am No 109, 2012; No 105, 2020; No 43, 2023 ed C51
s 78A.....	ad No 105, 2020 am No 43, 2023
s 79.....	am No 105, 2020; No 43, 2023
s 79A.....	ad No 109, 2012 am No 105, 2020; No 4, 2023; No 43, 2023; No 90, 2024
s 79B.....	ad No 109, 2012 am No 43, 2023
Subdivision C	
s 80.....	am No 73, 2013; No 105, 2020; No 43, 2023
s 81.....	rs No 73, 2013 am No 43, 2023
s 81A.....	ad No 73, 2013
s 82A.....	ad No 73, 2013
s 83.....	am No 105, 2020
s 84.....	am No 105, 2020

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 84A.....	ad No 109, 2012 am No 174, 2012; No 105, 2020
s 85.....	am No 43, 2023
Division 6	
s 87.....	am No 174, 2012; No 25, 2021
Division 7	
Division 7 heading.....	am No 169, 2018; No 50, 2022
Subdivision A	
s 96.....	am No 25, 2021
s 97.....	am No 73, 2013; No 43, 2023
s 98.....	rs No 50, 2022
Subdivision C	
s 104.....	am No 105, 2020; No 104, 2021
s 105.....	am No 105, 2020; No 104, 2021
Subdivision CA	
Subdivision CA heading.....	am No 50, 2022
Subdivision CA.....	ad No 169, 2018
s 106A.....	ad No 169, 2018 am No 50, 2022
s 106B.....	ad No 169, 2018 am No 50, 2022; No 79, 2022
s 106BA.....	ad No 50, 2022
s 106C.....	ad No 169, 2018 am No 50, 2022
s 106D.....	ad No 169, 2018 am No 50, 2022
s 106E.....	ad No 169, 2018 am No 105, 2020
Subdivision D	
s 107.....	am No 169, 2018; No 50, 2022

Endnote 4—Amendment history

Provision affected	How affected
Division 9	
s 113.....	am No 124, 2009; Nos 174 and 175, 2012
s 113A.....	am No 175, 2012
Division 10	
s 115.....	am No 115, 2024
Division 10A	
Division 10A.....	ad No 43, 2023
s 116A.....	ad No 43, 2023
s 116B.....	ad No 43, 2023
s 116C.....	ad No 43, 2023
s 116D.....	ad No 43, 2023
	am <u>No 57, 2025</u>
s 116E.....	ad No 43, 2023
Division 11	
Subdivision A	
s 117.....	am No 25, 2021
Subdivision B	
s 119.....	am No 25, 2021
s 120.....	am No 174, 2012
s 121.....	am No 25, 2021; No 120, 2023
s 122.....	am No 174, 2012
Division 12	
Division 12 heading.....	rs No 25, 2021
s 124.....	am No 174, 2012
s 125A.....	ad No 25, 2021
	am No 2, 2024
s 125B.....	ad No 25, 2021
	rs No 2, 2024
Division 13	
s 126.....	am No 174, 2012

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Part 2-3	
Division 1	
s 132.....	am No 54, 2009; No 55, 2009; No 174, 2012; No 170, 2018
s 133.....	am No 33, 2012
Division 2	
s 134.....	am No 174, 2012; No 73, 2013; No 79, 2022; No 2, 2024
s 135.....	am No 70, 2009; No 174, 2012; No 170, 2018
s 135A.....	ad No 37, 2025
Division 3	
Subdivision B	
s 140.....	am No 55, 2009
s 141.....	am No 174, 2012; No 170, 2018
s 141A.....	ad No 79, 2022
Subdivision C	
s 143.....	am Nos 54, 2009; No 55, 2009; No 175, 2012
s 143A.....	ad No 55, 2009
s 143B.....	ad No 54, 2009
s 145A.....	ad No 73, 2013
s 146.....	am No 174, 2012; No 79, 2022
s 149.....	am No 174, 2012
s 149A.....	ad No 171, 2012
	rep No 174, 2012
s 149B.....	ad No 174, 2012
	am No 43, 2023
s 149C.....	ad No 174, 2012
s 149D.....	ad No 174, 2012
s 149E.....	ad No 120, 2023
s 149F.....	ad No 2, 2024
Subdivision D	
s 151.....	rs No 101, 2017
s 153.....	am No 98, 2013; No 79, 2022; No 120, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 154.....	am No 174, 2012
s 155A.....	ad No 171, 2012
	am No 61, 2013
	rep No 174, 2012
Division 4	rep No 170, 2018
s 156.....	am No 174, 2012
	rep No 170, 2018
Division 4A	
Division 4A.....	ad No 174, 2012
Subdivision A	
s 156A.....	ad No 174, 2012
Subdivision B	
s 156B.....	ad No 174, 2012
s 156C.....	ad No 174, 2012
s 156D.....	ad No 174, 2012
s 156E.....	ad No 174, 2012
s 156F.....	ad No 174, 2012
Subdivision C	
s 156G.....	ad No 174, 2012
s 156H.....	ad No 174, 2012
s 156J.....	ad No 174, 2012
s 156K.....	ad No 174, 2012
Subdivision D	
s 156L.....	ad No 174, 2012
s 156M.....	ad No 174, 2012
s 156N.....	ad No 174, 2012
s 156P.....	ad No 174, 2012
s 156Q.....	ad No 174, 2012
s 156R.....	ad No 174, 2012
s 156S.....	ad No 174, 2012
s 156T.....	ad No 174, 2012

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision E	
s 156U	ad No 174, 2012
Division 5	
Division 5 heading.....	rs No 170, 2018
Subdivision A	
s 157	am No 174, 2012; No 170, 2018; No 79, 2022; No 2, 2024
s 158	am No 174, 2012
Subdivision B	
s 159	am No 174, 2012
s 159A	ad No 174, 2012
s 160	am No 174, 2012
s 161	am No 54, 2009; No 70, 2009; No 40, 2011; No 174, 2012
Division 6	
s 162	am No 174, 2012
s 163	am No 174, 2012
s 164	am No 174, 2012
s 165	am No 174, 2012
s 166	am No 174, 2012
s 167	am No 174, 2012
s 168	am No 174, 2012
Division 7	
Division 7	ad No 55, 2009
s 168A	ad No 55, 2009
s 168B	ad No 55, 2009
	am No 174, 2012
s 168C	ad No 55, 2009
	am No 174, 2012; No 175, 2012
s 168D	ad No 55, 2009
	am No 174, 2012
Division 8	
Division 8	ad No 54, 2009

Endnote 4—Amendment history

Provision affected	How affected
s 168E	ad No 54, 2009 am No 124, 2009
s 168F	ad No 54, 2009 am No 174, 2012
s 168G	ad No 54, 2009 am No 174, 2012; No 175, 2012
s 168H	ad No 54, 2009
s 168J	ad No 54, 2009
s 168K	ad No 54, 2009 am No 174, 2012
s 168L	ad No 54, 2009 am No 174, 2012
Part 2-4	
Division 1	
s 169	am No 174, 2012; No 79, 2022; No 120, 2023
s 170	am No 33, 2012
s 171	am No 174, 2012
Division 2	
s 172	am No 174, 2012; No 156, 2015; No 79, 2022; No 2, 2024
s 172A	ad No 79, 2022
Division 3	
s 173	am No 79, 2022; No 2, 2024
s 174	am No 174, 2012; No 79, 2022
s 176	am No 174, 2012; No 73, 2013; No 79, 2022
s 177	ad No 156, 2015
s 177A	ad No 74, 2024
s 178	am No 156, 2015
s 178A	am No 156, 2015
s 178B	ad No 156, 2015

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 4	
Subdivision A	
Subdivision A heading.....	am No 174, 2012
s 179.....	ad No 84, 2017
	am No 79, 2022
s 179A.....	ad No 84, 2017
s 180.....	am No 84, 2017; No 79, 2022
s 180A.....	ad No 79, 2022
	am No 2, 2024
s 180B.....	ad No 2, 2024
s 181.....	am No 79, 2022
s 182.....	am No 156, 2015
s 183.....	am No 174, 2012
s 185.....	am No 174, 2012; No 156, 2015
s 185A.....	ad No 156, 2015
Subdivision B	
Subdivision B heading.....	am No 174, 2012
s 186.....	am No 174, 2012; No 156, 2015; No 79, 2022
s 187.....	am No 174, 2012; No 156, 2015
s 188.....	am No 174, 2012; No 170, 2018
	rs No 79, 2022
	am No 2, 2024
s 188A.....	ad No 84, 2017
	am No 79, 2022
s 188B.....	ad No 79, 2022
s 189.....	am No 174, 2012
s 190.....	am No 174, 2012; No 156, 2015
s 191.....	am No 174, 2012
s 191A.....	ad No 79, 2022
	am No 2, 2024
s 191B.....	ad No 79, 2022

Endnote 4—Amendment history

Provision affected	How affected
s 192.....	am No 174, 2012; No 156, 2015
Subdivision C	
s 193.....	am No 174, 2012; No 156, 2015; No 79, 2022; No 2, 2024
s 193A.....	ad No 79, 2022
	am No 2, 2024
Subdivision D	
s 194.....	am No 171, 2012; No 174, 2012; No 62, 2016
s 195.....	am No 98, 2013; No 79, 2022; No 120, 2023
s 195A.....	ad No 62, 2016
Subdivision E	
s 196.....	am No 174, 2012
s 197.....	am No 174, 2012
s 198.....	am No 174, 2012
s 199.....	am No 174, 2012
s 200.....	am No 174, 2012
Subdivision F	
s 201.....	am No 174, 2012; No 156, 2015; No 79, 2022; No 120, 2023
Division 5	
s 202.....	am No 2, 2024
s 203.....	am No 33, 2012
s 205.....	am No 73, 2013; No 62, 2016; No 2, 2024
s 205A.....	ad No 120, 2023
Division 7	
Subdivision A	
Subdivision A heading.....	am No 79, 2022
s 207.....	am No 174, 2012
s 207A.....	ad No 79, 2022
s 210.....	am No 174, 2012
s 211.....	am No 174, 2012; No 156, 2015; No 79, 2022; No 2, 2024
s 212.....	am No 174, 2012
s 213.....	am No 174, 2012

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 213A.....	ad No 79, 2022
s 213B	ad No 79, 2022
s 214.....	am No 174, 2012
s 215.....	am No 174, 2012
s 215A.....	ad No 79, 2022
Subdivision AA	
Subdivision AA	ad No 79, 2022
s 216A.....	ad No 79, 2022
s 216AAA.....	ad No 79, 2022
s 216AA.....	ad No 79, 2022
s 216AB	ad No 79, 2022
s 216AC	ad No 79, 2022
s 216AD.....	ad No 79, 2022
s 216AE	ad No 79, 2022
s 216AF.....	ad No 79, 2022
Subdivision AB	
Subdivision AB.....	ad No 79, 2022
s 216B	ad No 79, 2022
s 216BA	ad No 79, 2022
s 216BB	ad No 79, 2022
s 216BC	ad No 79, 2022
Subdivision AC	
Subdivision AC.....	ad No 79, 2022
s 216C	ad No 79, 2022
s 216CAA	ad No 79, 2022
s 216CA	ad No 79, 2022
s 216CB	ad No 79, 2022
s 216CC	ad No 79, 2022
s 216CD	ad No 79, 2022
s 216CE.....	ad No 79, 2022

Endnote 4—Amendment history

Provision affected	How affected
Subdivision AD	
Subdivision AD	ad No 79, 2022
s 216D.....	ad No 79, 2022
s 216DAA.....	ad No 79, 2022
s 216DA.....	ad No 79, 2022
s 216DB.....	ad No 79, 2022
s 216DC.....	ad No 79, 2022
s 216DD.....	ad No 79, 2022
s 216DE.....	ad No 79, 2022
s 216DF.....	ad No 79, 2022
Subdivision AE	
Subdivision AE.....	ad No 79, 2022
s 216E.....	ad No 79, 2022
s 216EA.....	ad No 79, 2022
s 216EB.....	ad No 79, 2022
s 216EC.....	ad No 79, 2022
s 216ED.....	ad No 79, 2022
Subdivision B	
s 217.....	am No 174, 2012
s 217A.....	am No 174, 2012
s 218.....	am No 54, 2009; No 70, 2009; No 40, 2011; No 174, 2012
Subdivision BA	
Subdivision BA.....	ad No 79, 2022
s 218A.....	ad No 79, 2022
Subdivision C	
s 219.....	am No 174, 2012
s 222.....	am No 174, 2012
s 223.....	am No 174, 2012
Subdivision D	
s 225.....	am No 174, 2012
s 226.....	am No 174, 2012

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Endnote 4—Amendment history

Provision affected	How affected
	rs No 79, 2022
s 226A.....	ad No 79, 2022
Division 7A	
Division 7A.....	ad No 79, 2022
s 227A.....	ad No 79, 2022
	am No 2, 2024
s 227B.....	ad No 79, 2022
	am No 2, 2024
s 227C.....	ad No 79, 2022
s 227D.....	ad No 79, 2022
s 227E.....	ad No 79, 2022
Division 8	
Division 8 heading.....	am No 174, 2012
Subdivision A	
s 228.....	am No 156, 2015
s 229.....	am No 174, 2012; No 156, 2015; No 79, 2022
s 230.....	am No 174, 2012; No 156, 2015; No 79, 2022
s 231.....	am No 174, 2012
s 232.....	am No 174, 2012; No 156, 2015
Subdivision B	
Subdivision B.....	rs No 79, 2022
s 234.....	am No 174, 2012; No 156, 2015
	rs No 79, 2022
s 235.....	am No 174, 2012; No 156, 2015
	rs No 79, 2022
s 235A.....	ad No 79, 2022
Subdivision C	
s 236.....	am No 174, 2012; No 79, 2022; No 2, 2024
s 237.....	am No 174, 2012; No 43, 2023
s 238.....	am No 174, 2012; No 156, 2015; No 79, 2022; No 2, 2024
s 239.....	am No 174, 2012

Endnote 4—Amendment history

Provision affected	How affected
Subdivision D	
Subdivision D heading.....	am No 174, 2012
s 240.....	am No 174, 2012; No 156, 2015; No 79, 2022
Subdivision E	
Subdivision E.....	ad No 79, 2022
s 240A.....	ad No 79, 2022
	am No 2, 2024
s 240B.....	ad No 79, 2022
	am No 2, 2024
Division 9	
Division 9 heading.....	am No 79, 2022
s 241.....	am No 174, 2012; No 79, 2022
s 242.....	am No 174, 2012; No 79, 2022
s 243.....	am No 174, 2012
	rs No 79, 2022
s 243A.....	ad No 79, 2022
s 244.....	am No 174, 2012; No 79, 2022
s 245.....	am No 174, 2012
	rs No 79, 2022
	am No 2, 2024
s 246.....	am No 174, 2012; No 79, 2022
Division 10	
Subdivision A.....	rep No 79, 2022
s 247.....	rep No 79, 2022
Subdivision B heading.....	rep No 79, 2022
s 248.....	am No 174, 2012; No 79, 2022
s 249.....	am No 174, 2012; No 79, 2022
s 249A.....	ad No 79, 2022
s 250.....	am No 174, 2012; No 79, 2022
s 251.....	am No 174, 2012; No 79, 2022
s 251A.....	ad No 79, 2022

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 252.....	am No 174, 2012
Division 11	
s 253.....	am No 101, 2017
s 254A.....	ad No 62, 2016
s 255.....	am No 174, 2012; No 156, 2015
s 255A.....	ad No 156, 2015
Part 2-5	
Division 1	
s 258.....	am No 174, 2012; No 62, 2016; No 79, 2022
s 259.....	am No 33, 2012
Division 2	rep No 79, 2022
s 260.....	am No 174, 2012
	rep No 79, 2022
s 261.....	am No 174, 2012
	rep No 79, 2022
s 262.....	am No 174, 2012
	rep No 79, 2022
s 263.....	am No 174, 2012
	rep No 79, 2022
s 264.....	am No 174, 2012
	rep No 79, 2022
s 265.....	rep No 79, 2022
Division 3	
s 266.....	am No 174, 2012
s 267.....	am No 174, 2012
Division 4	
Division 4 heading.....	rs No 79, 2022
s 269.....	am No 174, 2012; No 156, 2015
	rs No 79, 2022
s 270.....	am No 174, 2012; No 79, 2022; No 2, 2024
s 270A.....	ad No 2, 2024

Endnote 4—Amendment history

Provision affected	How affected
s 271.....	am No 79, 2022
s 271A.....	ad No 156, 2015 rep No 79, 2022
Division 5	
s 272.....	am No 174, 2012
s 273.....	am No 174, 2012; No 120, 2023
s 274.....	am No 79, 2022; No 2, 2024
s 275.....	am No 174, 2012; No 79, 2022
Division 6	
s 276.....	am No 43, 2023
s 277.....	am No 174, 2012
s 278.....	am No 43, 2023
s 279.....	am No 54, 2009; No 79, 2022
Division 7	
s 281AA.....	ad No 62, 2016
Part 2-6	
Division 1	
s 282.....	am No 174, 2012
s 283.....	am No 33, 2012
Division 2	
s 284.....	am No 174, 2012; No 79, 2022
Division 3	
Subdivision A	
s 285.....	am No 174, 2012
s 286.....	am No 174, 2012
s 287.....	am No 174, 2012
Subdivision B	
s 288.....	am No 174, 2012
s 289.....	am No 174, 2012
s 290.....	am No 174, 2012
s 291.....	am No 174, 2012

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Endnote 4—Amendment history

Provision affected	How affected
s 292.....	am No 54, 2009; No 55, 2009; No 174, 2012
Division 4	
s 296.....	am No 174, 2012
s 297.....	am No 174, 2012
Part 2-7	
Division 1	
s 300.....	am No 174, 2012
s 301.....	am No 33, 2012
Division 2	
s 302.....	am No 174, 2012; No 79, 2022
s 303.....	am No 174, 2012
s 304.....	am No 174, 2012
s 306.....	am No 174, 2012
Part 2-7A	
Part 2-7A.....	ad No 120, 2023
Division 1	
s 306A.....	ad No 120, 2023
s 306B.....	ad No 120, 2023
s 306C.....	ad No 120, 2023
s 306D.....	ad No 120, 2023
Division 2	
Subdivision A	
s 306E.....	ad No 120, 2023
s 306EA.....	ad No 120, 2023
s 306EB.....	ad No 120, 2023
s 306EC.....	ad No 120, 2023
s 306ED.....	ad No 120, 2023
s 306EE.....	ad No 120, 2023
Subdivision B	
s 306F.....	ad No 120, 2023
s 306G.....	ad No 120, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 306H.....	ad No 120, 2023
Subdivision C	
s 306J.....	ad No 120, 2023
s 306K.....	ad No 120, 2023
s 306L.....	ad No 120, 2023
Subdivision D	
s 306M.....	ad No 120, 2023
s 306N.....	ad No 120, 2023
Subdivision E	
s 306NA.....	ad No 120, 2023
Division 3	
s 306P.....	ad No 120, 2023
s 306Q.....	ad No 120, 2023
s 306R.....	ad No 120, 2023
Division 4	
s 306S.....	ad No 120, 2023
s 306SA.....	ad No 120, 2023
s 306T.....	ad No 120, 2023
s 306U.....	ad No 120, 2023
s 306V.....	ad No 120, 2023
Division 5	
s 306W.....	ad No 120, 2023
Part 2-8	
Division 1	
s 307.....	am Nos 174 and 175, 2012
s 308.....	am No 33, 2012
Division 2	
s 312.....	am No 55, 2009; No 174, 2012
s 313.....	am No 174, 2012
s 314.....	am No 174, 2012
s 315.....	am No 174, 2012

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
Division 3 heading.....	am No 174, 2012
s 317.....	am No 174, 2012
s 318.....	am No 174, 2012
s 319.....	am No 174, 2012
s 320.....	am No 174, 2012
Part 2-9	
Part 2-9 heading.....	rs No 55, 2009
Division 1	
s 321.....	am No 79, 2022; No 120, 2023; No 2, 2024; No 56, 2025
s 322.....	am No 33, 2012
Division 2	
Division 2 heading.....	rs No 101, 2017
Subdivision A	
Subdivision A heading.....	ad No 120, 2023
s 324.....	am No 174, 2012; No 43, 2023; No 120, 2023
s 325.....	am No 101, 2017
s 326.....	rs No 101, 2017
s 327.....	am No 101, 2017; No 120, 2023
Subdivision B	
Subdivision B	ad No 120, 2023
s 327A.....	ad No 120, 2023
s 327B	ad No 120, 2023
s 327C	ad No 120, 2023
Division 3	
s 332.....	am No 118, 2013
Division 4	
Division 4	ad No 79, 2022
s 333B	ad No 79, 2022
s 333C	ad No 79, 2022
s 333D.....	ad No 79, 2022

Endnote 4—Amendment history

Provision affected	How affected
Division 5	
Division 5	ad No 79, 2022
Subdivision A	
s 333E	ad No 79, 2022
	am No 2, 2024
s 333F	ad No 79, 2022
s 333G	ad No 79, 2022
s 333H	ad No 79, 2022
Subdivision B	
s 333J	ad No 79, 2022
s 333K	ad No 79, 2022
s 333L	ad No 79, 2022
Division 6	
Division 6	ad No 2, 2024
Subdivision A	
s 333M	ad No 2, 2024
Subdivision B	
s 333N	ad No 2, 2024
Subdivision C	
s 333P	ad No 2, 2024
s 333Q	ad No 2, 2024
s 333R	ad No 2, 2024
s 333S	ad No 2, 2024
s 333T	ad No 2, 2024
s 333U	ad No 2, 2024
Subdivision D	
s 333V	ad No 2, 2024
Subdivision E	
s 333W	ad No 2, 2024
Division 7	
Division 7	ad No 56, 2025

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Endnote 4—Amendment history

Provision affected	How affected
333X	ad No 56, 2025
Chapter 3	
Part 3-1	
Division 1	
s 334.....	am No 174, 2012; No 120, 2023
s 335.....	am No 33, 2012
s 336.....	am No 174, 2012
Division 2	
s 337.....	am No 54, 2009; No 124, 2009
s 338A.....	ad No 2, 2024
Division 3	
s 341.....	am No 174, 2012; No 175, 2012; No 2, 2024
s 342.....	am No 2, 2024
s 344.....	am No 109, 2012
Division 4	
s 350.....	am No 2, 2024
s 350A.....	ad No 120, 2023
s 350B.....	ad No 2, 2024
s 350C.....	ad No 120, 2023
	am No 2, 2024
Division 5	
s 351.....	am No 136, 2012; No 98, 2013; No 79, 2022; No 74, 2023; No 120, 2023
s 354.....	am No 2, 2024
Division 6	
Subdivision A	
Subdivision A heading.....	ad No 2, 2024
s 357.....	am No 2, 2024
Subdivision B	
Subdivision B	ad No 2, 2024
s 359B.....	ad No 2, 2024

Endnote 4—Amendment history

Provision affected	How affected
s 359C	ad No 2, 2024
Division 7	
s 361	am No 73, 2013
Division 8	
Subdivision A	
s 365	am No 174, 2012; No 73, 2013
s 366	am No 174, 2012
s 367	am No 174, 2012
s 368	am No 174, 2012
	rs No 73, 2013
s 369	am No 174, 2012
	rs No 73, 2013
s 370	am No 174, 2012
	rs No 73, 2013
s 371	am No 55, 2009; No 174, 2012
	rep No 73, 2013
Subdivision B	
s 372	am No 174, 2012; No 73, 2013
s 373	am No 174, 2012
s 374	am No 174, 2012
s 375	am No 174, 2012
Subdivision C	
Subdivision C	rs No 73, 2013
s 375A	ad No 73, 2013
s 375B	ad No 73, 2013
s 376	am No 174, 2012
	rs No 73, 2013
s 377	am No 174, 2012
	rs No 73, 2013
s 377A	ad No 73, 2013
s 378	rs No 73, 2013

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Endnote 4—Amendment history

Provision affected	How affected
Part 3-2	
Division 1	
s 379.....	am No 174, 2012
s 380.....	am No 33, 2012
Division 2	
s 384.....	am No 25, 2021
Division 3	
s 385.....	am No 174, 2012
s 387.....	am No 174, 2012; No 104, 2021
Division 4	
s 390.....	am No 174, 2012
s 391.....	am No 174, 2012
s 392.....	am No 174, 2012
s 393.....	am No 174, 2012
Division 5	
s 394.....	am No 174, 2012
s 395.....	am No 174, 2012
s 396.....	am No 174, 2012
s 397.....	am No 174, 2012
s 398.....	am No 174, 2012
s 399.....	am No 174, 2012
s 399A.....	ad No 174, 2012
s 400.....	am No 174, 2012; No 73, 2013
s 400A.....	ad No 174, 2012
s 401.....	am No 174, 2012
s 402.....	am No 174, 2012
s 403.....	am No 174, 2012
Part 3-3	
Division 1	
s 406.....	am No 174, 2012
s 407.....	am No 33, 2012

Endnote 4—Amendment history

Provision affected	How affected
Division 2	
Subdivision A	
s 409.....	am No 174, 2012; No 79, 2022; No 120, 2023
s 410.....	am No 174, 2012
s 411.....	am No 55, 2009; No 79, 2022; No 120, 2023
Subdivision B	
s 413.....	am No 79, 2022
s 414.....	am No 79, 2022
Subdivision C	
s 416A.....	ad No 55, 2009
Division 3	
s 417.....	am No 174, 2012; No 13, 2013; No 13, 2021; No 79, 2022
Division 4	
Division 4 heading.....	am No 174, 2012
s 418.....	am No 174, 2012
s 419.....	am No 174, 2012
s 420.....	am No 174, 2012
s 421.....	am No 13, 2013; No 13, 2021
Division 5	
s 422.....	am No 13, 2013; No 13, 2021
Division 6	
Division 6 heading.....	am No 174, 2012
s 423.....	am No 124, 2009; No 174, 2012
s 424.....	am No 124, 2009; No 174, 2012
s 425.....	am No 174, 2012
s 426.....	am No 124, 2009; No 174, 2012
s 427.....	am No 174, 2012
s 428.....	am No 174, 2012
s 430.....	am No 174, 2012
Division 7	
s 432.....	am No 174, 2012

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Endnote 4—Amendment history

Provision affected	How affected
Division 8	
Subdivision A	
s 435.....	am No 174, 2012
Subdivision B	
s 437.....	am No 174, 2012; No 156, 2015; No 79, 2022
s 437A.....	ad No 79, 2022
s 440.....	rs No 79, 2022
s 441.....	am No 174, 2012
s 442.....	am No 174, 2012
s 443.....	am No 174, 2012; No 79, 2022
s 444.....	am No 174, 2012; No 79, 2022
s 445.....	am No 174, 2012
s 446.....	am No 174, 2012
s 447.....	am No 174, 2012
s 448.....	am No 174, 2012
Subdivision BA	
Subdivision BA.....	ad No 79, 2022
s 448A.....	ad No 79, 2022
Subdivision C	
s 449.....	am No 174, 2012; No 79, 2022
s 450.....	am No 174, 2012
s 451.....	am No 174, 2012
s 452.....	am No 174, 2012
s 453.....	am No 174, 2012
s 454.....	am No 174, 2012
s 455.....	am No 174, 2012
s 457.....	am No 174, 2012
s 458.....	am No 174, 2012
Subdivision D	
s 459.....	am No 174, 2012
s 460.....	am No 174, 2012

Endnote 4—Amendment history

Provision affected	How affected
s 461.....	am No 174, 2012
Subdivision E	
s 462.....	am No 174, 2012
s 463.....	am No 174, 2012
Subdivision G	
s 467.....	am No 174, 2012
s 468A.....	ad No 79, 2022
s 469.....	am No 79, 2022
Division 9	
Subdivision A	
s 471.....	am No 174, 2012
s 472.....	am No 174, 2012
Division 10	
s 477.....	am No 79, 2022
Part 3-4	
Division 1	
s 478.....	am Nos 33 and 174, 2012; No 73, 2013
s 480.....	am No 33, 2012
Division 2	
Subdivision A	
s 481.....	am No 174, 2012; No 2, 2024
s 483AA.....	am No 174, 2012
Subdivision AA	
Subdivision AA heading.....	rs No 33, 2012
s 483A.....	am No 33, 2012; No 73, 2013; No 2, 2024
s 483B.....	am No 33, 2012
Subdivision B	
s 484.....	am No 33, 2012; No 73, 2013; No 2, 2024
Subdivision C	
s 487.....	am No 174, 2012
s 489.....	am No 174, 2012

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 491.....	am No 174, 2012
s 492.....	rs No 73, 2013
s 492.....	am No 174, 2012; No 73, 2013; No 2, 2024
s 492A.....	ad No 73, 2013
Division 3	
s 494.....	am No 120, 2023
s 499.....	am No 174, 2012
Division 4	
s 500.....	am No 73, 2013; No 2, 2024
s 502.....	am No 2, 2024
Division 5	
Division 5 heading.....	am No 174, 2012
Subdivision A	
s 505.....	am No 174, 2012; No 73, 2013
s 505A.....	ad No 73, 2013
s 506.....	am No 73, 2013
Subdivision B	
s 507.....	am No 174, 2012
Subdivision C	
s 508.....	am No 174, 2012; No 2, 2024
Subdivision D	
Subdivision D heading.....	am No 174, 2012; No 2, 2024
s 510.....	am No 51, 2010; No 174, 2012; No 2, 2024
Subdivision E	
s 511.....	am No 174, 2012
Division 6	
Subdivision A	
s 512.....	am No 174, 2012
s 513.....	am No 174, 2012
s 514.....	am No 174, 2012
s 515.....	am No 174, 2012; No 73, 2013

Endnote 4—Amendment history

Provision affected	How affected
s 516.....	am No 174, 2012
s 517.....	am No 174, 2012
Subdivision B	
s 518.....	am No 33, 2012
Subdivision C	
s 519.....	am No 174, 2012; No 2, 2024
Subdivision D	
s 520.....	am No 174, 2012
Division 7	
Division 7	ad No 73, 2013
s 521A.....	ad No 73, 2013
s 521B	ad No 73, 2013
s 521C	ad No 73, 2013
s 521D.....	ad No 73, 2013
Part 3-5	
Division 1	
s 522.....	am No 174, 2012
Division 3	
s 526.....	am No 174, 2012
s 527.....	am No 174, 2012
Part 3-5A	
Part 3-5A.....	ad No 79, 2022
Division 1	
s 527A.....	ad No 79, 2022
s 527B	ad No 79, 2022
s 527C	ad No 79, 2022
	am No 79, 2022
s 527CA	ad No 79, 2022
Division 2	
s 527D.....	ad No 79, 2022
s 527E	ad No 79, 2022

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
Subdivision A	
s 527F	ad No 79, 2022
s 527G	ad No 79, 2022
s 527H	ad No 79, 2022
Subdivision B	
s 527J	ad No 79, 2022
s 527K	ad No 79, 2022
s 527L	ad No 79, 2022
s 527M	ad No 79, 2022
s 527N	ad No 79, 2022
s 527P	ad No 79, 2022
s 527Q	ad No 79, 2022
Subdivision C	
s 527R	ad No 79, 2022
s 527S	ad No 79, 2022
s 527T	ad No 79, 2022
Part 3-6	
Division 1	
s 528	am No 174, 2012; No 79, 2022
s 529	am No 33, 2012
Division 2	
Subdivision B	
s 531	am No 174, 2012
s 532	am No 174, 2012
s 533	am No 174, 2012
Division 3	
s 535	am No 101, 2017
s 536	am No 109, 2012; No 101, 2017; No 50, 2022; No 79, 2022
Division 4	
Division 4	ad No 79, 2022

Endnote 4—Amendment history

Provision affected	How affected
s 536AA	ad No 79, 2022
Part 3-7	
Part 3-7	ad No 84, 2017
Division 1	
s 536A	ad No 84, 2017
s 536B	ad No 84, 2017
s 536C	ad No 84, 2017
s 536CA	ad No 84, 2017
Division 2	
s 536D	ad No 84, 2017
s 536E	ad No 84, 2017
Division 3	
s 536F	ad No 84, 2017
s 536G	ad No 84, 2017
s 536H	ad No 84, 2017
Chapter 3A	
Chapter 3A	ad No 2, 2024
Part 3A-1	
Division 1	
s 536J	ad No 2, 2024
s 536JA	ad No 2, 2024
Division 2	
Subdivision A	
s 536JB	ad No 2, 2024
s 536JC	ad No 2, 2024
s 536JD	ad No 2, 2024
s 536JE	ad No 2, 2024
s 536JF	ad No 2, 2024
s 536JG	ad No 2, 2024
s 536JH	ad No 2, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision B	
s 536JJ.....	ad No 2, 2024
s 536JK	ad No 2, 2024
s 536JL.....	ad No 2, 2024
s 536JM.....	ad No 2, 2024
s 536JN	ad No 2, 2024
Division 3	
s 536JP	ad No 2, 2024
s 536JQ	ad No 2, 2024
s 536JR	ad No 2, 2024
s 536JS.....	ad No 2, 2024
s 536JT.....	ad No 2, 2024
Part 3A-2	
Division 1	
s 536JV	ad No 2, 2024
s 536JW	ad No 2, 2024
Division 2	
s 536JX	ad No 2, 2024
Division 3	
Subdivision A	
s 536JY	ad No 2, 2024
s 536JZ.....	ad No 2, 2024
Subdivision B	
s 536K.....	ad No 2, 2024
Subdivision BA	
s 536KAA	ad No 2, 2024
s 536KAB	ad No 2, 2024
s 536KAC	ad No 2, 2024
s 536KAD	ad No 2, 2024
s 536KAE	ad No 2, 2024

Endnote 4—Amendment history

Provision affected	How affected
Subdivision C	
s 536KA	ad No 2, 2024
Subdivision D	
s 536KB	ad No 2, 2024
s 536KC	ad No 2, 2024
s 536KD	ad No 2, 2024
s 536KE	ad No 2, 2024
s 536KF	ad No 2, 2024
Subdivision E	
s 536KG	ad No 2, 2024
s 536KH	ad No 2, 2024
s 536KJ	ad No 2, 2024
s 536KK	ad No 2, 2024
s 536KL	ad No 2, 2024
s 536KM	ad No 2, 2024
s 536KMA	ad No 2, 2024
s 536KN	ad No 2, 2024
s 536KO	ad No 2, 2024
s 536KP	ad No 2, 2024
s 536KQ	ad No 2, 2024
Division 3A	
Subdivision A	
s 536KQA	ad No 2, 2024
s 536KQB	ad No 2, 2024
s 536KQC	ad No 2, 2024
s 536KQD	ad No 2, 2024
s 536KQE	ad No 2, 2024
s 536KQF	ad No 2, 2024
s 536KQG	ad No 2, 2024
Subdivision B	
s 536KQH	ad No 2, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 536KQJ	ad No 2, 2024
s 536KQK	ad No 2, 2024
s 536KQL	ad No 2, 2024
s 536KQM	ad No 2, 2024
s 536KQN	ad No 2, 2024
s 536KQP	ad No 2, 2024
s 536KQQ	ad No 2, 2024
s 536KQR	ad No 2, 2024
Subdivision C	
s 536KQS	ad No 2, 2024
Division 3B	
s 536KQT	ad No 2, 2024
s 536KQU	ad No 2, 2024
s 536KQV	ad No 2, 2024
Division 3C	
s 536KQW	ad No 2, 2024
s 536KQX	ad No 2, 2024
s 536KQY	ad No 2, 2024
Division 4	
s 536KR	ad No 2, 2024
s 536KS	ad No 2, 2024
s 536KT	ad No 2, 2024
s 536KU	ad No 2, 2024
s 536KV	ad No 2, 2024
s 536KW	ad No 2, 2024
s 536KX	ad No 2, 2024
s 536KY	ad No 2, 2024
s 536KZ	ad No 2, 2024
s 536L	ad No 2, 2024

Endnote 4—Amendment history

Provision affected	How affected
Part 3A-3	
Division 1	
s 536LB.....	ad No 2, 2024
s 536LC.....	ad No 2, 2024
Division 2	
s 536LD	ad No 2, 2024
s 536LE.....	ad No 2, 2024
Division 3	
Subdivision A	
s 536LF	ad No 2, 2024
s 536LG	ad No 2, 2024
s 536LH	ad No 2, 2024
s 536LJ.....	ad No 2, 2024
Subdivision B	
s 536LK	ad No 2, 2024
s 536LL.....	ad No 2, 2024
s 536LM.....	ad No 2, 2024
s 536LN	ad No 2, 2024
Division 4	
Subdivision A	
s 536LP	ad No 2, 2024
s 536LQ	ad No 2, 2024
Subdivision B	
s 536LR.....	ad No 2, 2024
s 536LS	ad No 2, 2024
s 536LT	ad No 2, 2024
Division 5	
s 536LU	ad No 2, 2024
s 536LV	ad No 2, 2024
s 536LW	ad No 2, 2024
s 536LX	ad No 2, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 536LY	ad No 2, 2024
s 536LZ.....	ad No 2, 2024
s 536M	ad No 2, 2024
s 536MA	ad No 2, 2024
s 536MB	ad No 2, 2024
s 536MC	ad No 2, 2024
s 536MD	ad No 2, 2024
s 536ME.....	ad No 2, 2024
s 536MF	ad No 2, 2024
s 536MG	ad No 2, 2024
Part 3A-4	
Division 1	
s 536MH	ad No 2, 2024
s 536MJ.....	ad No 2, 2024
Division 2	
s 536MK	ad No 2, 2024
s 536ML.....	ad No 2, 2024
s 536MM.....	ad No 2, 2024
s 536MN	ad No 2, 2024
s 536MP	ad No 2, 2024
s 536MQ	ad No 2, 2024
Division 3	
s 536MR	ad No 2, 2024
s 536MS.....	ad No 2, 2024
Division 4	
s 536MT.....	ad No 2, 2024
s 536MU	ad No 2, 2024
Division 5	
s 536MV	ad No 2, 2024
s 536MW	ad No 2, 2024

Endnote 4—Amendment history

Provision affected	How affected
Division 6	
s 536MX	ad No 2, 2024
Part 3A-5	
Division 1	
s 536MY	ad No 2, 2024
s 536MZ.....	ad No 2, 2024
Division 2	
s 536N.....	ad No 2, 2024
Division 3	
s 536NA.....	ad No 2, 2024
s 536NB	ad No 2, 2024
s 536NC	ad No 2, 2024
Division 4	
s 536ND.....	ad No 2, 2024
s 536NE	ad No 2, 2024
s 536NF.....	ad No 2, 2024
s 536NG	ad No 2, 2024
s 536NH.....	ad No 2, 2024
s 536NJ	ad No 2, 2024
s 536NK.....	ad No 2, 2024
Chapter 3B	
Chapter 3B.....	ad No 2, 2024
Part 3B-1	
Division 1	
s 536NL	ad No 2, 2024
s 536NM	ad No 2, 2024
s 536NN.....	ad No 2, 2024
Division 2	
Subdivision A	
s 536NP.....	ad No 2, 2024
s 536NQ.....	ad No 2, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 536NR	ad No 2, 2024
s 536NS.....	ad No 2, 2024
s 536NT	ad No 2, 2024
	am No 20, 2026
s 536NU	ad No 2, 2024
s 536NV	ad No 2, 2024
Division 3	
s 536NW	ad No 2, 2024
s 536NX.....	ad No 2, 2024
s 536NY	ad No 2, 2024
s 536NZ	ad No 2, 2024
s 536P	ad No 2, 2024
Part 3B-2	
Division 1	
s 536PB.....	ad No 2, 2024
	am No 20, 2026
s 536PC.....	ad No 2, 2024
Division 2	
Subdivision A	
s 536PD.....	ad No 2, 2024
	am No 20, 2026
s 536PE	ad No 2, 2024
	am No 20, 2026
s 536PEA	ad No 20, 2026
Subdivision B	
s 536PF	ad No 2, 2024
	am No 20, 2026
Subdivision C	
s 536PG.....	ad No 2, 2024
s 536PH.....	ad No 2, 2024
	am No 20, 2026

Endnote 4—Amendment history

Provision affected	How affected
s 536PJ	ad No 2, 2024
	am No 20, 2026
s 536PK	ad No 2, 2024
Subdivision D	
s 536PL	ad No 2, 2024
s 536PM	ad No 2, 2024
s 536PN	ad No 2, 2024
s 536PP	ad No 2, 2024
s 536PQ	ad No 2, 2024
	am No 20, 2026
s 536PQA	ad No 20, 2026
s 536PR	ad No 2, 2024
s 536PS	ad No 2, 2024
	am No 20, 2026
s 536PT	ad No 2, 2024
	am No 20, 2026
Division 3	
Subdivision A	
s 536PU	ad No 2, 2024
s 536PV	ad No 2, 2024
s 536PW	ad No 2, 2024
s 536PX	ad No 2, 2024
	am No 20, 2026
s 536PY	ad No 2, 2024
	am No 20, 2026
s 536PZ	ad No 2, 2024
s 536Q	ad No 2, 2024
Subdivision B	
s 536QA	ad No 2, 2024
s 536QB	ad No 2, 2024
s 536QC	ad No 2, 2024

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Endnote 4—Amendment history

Provision affected	How affected
s 536QD.....	ad No 2, 2024
s 536QE	ad No 2, 2024
s 536QF.....	ad No 2, 2024
s 536QG.....	ad No 2, 2024
	am No 20, 2026
s 536QH.....	ad No 2, 2024
s 536QJ	ad No 2, 2024
Subdivision C	
s 536QK.....	ad No 2, 2024
Division 4	
s 536QL	ad No 2, 2024
s 536QM	ad No 2, 2024
	am No 20, 2026
s 536QN.....	ad No 2, 2024;
	am No 20, 2026
Division 5	
s 536QP.....	ad No 2, 2024
s 536QQ.....	ad No 2, 2024
s 536QR	ad No 2, 2024
s 536QS.....	ad No 2, 2024
s 536QT	ad No 2, 2024
s 536QU	ad No 2, 2024
s 536QV	ad No 2, 2024
s 536QW	ad No 2, 2024
s 536QX.....	ad No 2, 2024
Chapter 4	
Part 4-1	
Division 1	
s 537.....	am No 13, 2013; No 101, 2017; No 13, 2021
s 538.....	am No 33, 2012

Endnote 4—Amendment history

Provision affected	How affected
Division 2	
Subdivision A	
s 539.....	am No 55, 2009; No 174, 2012; No 175, 2012; No 13, 2013; No 73, 2013; No 67, 2016; No 84, 2017; No 101, 2017; No 38, 2020; No 81, 2020; No 104, 2021; No 50, 2022; No 79, 2022; No 120, 2023; No 2, 2024; No 74, 2024; No 56, 2025
s 540.....	am No 55, 2009; No 101, 2017; No 2, 2024
s 543.....	am No 13, 2013; No 13, 2021
s 544.....	am No 73, 2013; No 79, 2022
Subdivision B	
s 545.....	am No 13, 2013; No 13, 2021; No 79, 2022; No 2, 2024
s 545A.....	ad No 25, 2021
s 546.....	am No 13, 2013; No 13, 2021; No 79, 2022; No 2, 2024
s 546A.....	ad No 2, 2024
Division 3	
s 548.....	am No 13, 2013; No 13, 2021; No 25, 2021; No 79, 2022; No 2, 2024
Division 4	
s 550.....	am No 101, 2017
s 557.....	am No 101, 2017; No 50, 2022; No 79, 2022; No 120, 2023; No 2, 2024
s 557A.....	ad No 101, 2017
	am No 2, 2024
s 557B.....	ad No 101, 2017
s 557C.....	ad No 101, 2017
	am No 79, 2022
s 558.....	am No 55, 2009
Division 4A	
Division 4A.....	ad No 101, 2017
s 558A.....	ad No 101, 2017
s 558B.....	ad No 101, 2017
	am No 79, 2022

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 558C	ad No 101, 2017 am No 13, 2021
Division 5	
s 559	am No 156, 2015
Part 4-2	
Division 1	
s 560	am No 13, 2013 rs No 13, 2021
s 561	am No 33, 2012
Division 2	
s 563	am No 13, 2013; No 13, 2021
s 565	am No 124, 2009
Division 3	
Division 3 heading	rs No 13, 2013 am No 13, 2021
s 566	am No 13, 2013; No 13, 2021
s 567	am No 13, 2013; No 13, 2021
s 568	am No 13, 2013 rs No 13, 2021
Division 4	
s 569A	ad No 124, 2009
s 570	am No 124, 2009; No 174, 2012
Chapter 5	
Part 5-1	
Part 5-1 heading	rs No 174, 2012
Division 1	
s 573	am No 174, 2012
s 574	am No 33, 2012
s 574A	rep No 55, 2009
Division 2	
Division 2 heading	am No 174, 2012

Endnote 4—Amendment history

Provision affected	How affected
Subdivision A	
Subdivision A heading.....	am No 174, 2012
s 575.....	am No 55, 2009; No 174, 2012; No 79, 2022
s 576.....	am No 55, 2009; No 174, 2012; No 175, 2012; No 13, 2013; No 73, 2013; No 79, 2016; No 38, 2020; No 13, 2021; No 104, 2021; No 79, 2022; No 120, 2023; No 2, 2024
s 577.....	am No 174, 2012; No 79, 2022
s 578.....	am No 174, 2012; No 98, 2013; No 79, 2022; No 120, 2023
s 579.....	am No 174, 2012
s 580.....	am No 174, 2012
Subdivision B	
s 581.....	am No 174, 2012; No 2, 2024
s 581A.....	ad No 174, 2012
s 581B.....	ad No 174, 2012
s 582.....	am No 174, 2012; No 170, 2018; No 2, 2024
s 584.....	am No 174, 2012; No 73, 2013
Subdivision C	
Subdivision C.....	ad No 174, 2012
s 584B.....	ad No 174, 2012
Division 3	
Division 3 heading.....	am No 174, 2012
Subdivision A	
Subdivision A heading.....	am No 174, 2012
s 585.....	am No 174, 2012
s 586.....	am No 174, 2012
s 587.....	am No 174, 2012; No 79, 2022; No 2, 2024
s 588.....	am No 174, 2012
Subdivision B	
Subdivision B heading.....	am No 174, 2012
s 589.....	am No 174, 2012
s 590.....	am No 174, 2012

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Endnote 4—Amendment history

Provision affected	How affected
s 591.....	am No 174, 2012
s 592.....	am No 174, 2012; No 73, 2013; No 79, 2022
s 593.....	am No 174, 2012
s 594.....	am No 174, 2012
s 595.....	am No 174, 2012; No 73, 2013
Subdivision C	
s 596.....	am No 174, 2012; No 175, 2012
s 597.....	am No 174, 2012
s 597A.....	ad No 124, 2009
	am No 174, 2012
Subdivision D	
Subdivision D heading.....	am No 174, 2012
s 598.....	am No 174, 2012; No 79, 2022
s 599.....	am No 174, 2012
s 600.....	am No 174, 2012
s 601.....	am No 174, 2012; No 73, 2013; No 79, 2022
s 602.....	am No 174, 2012; No 2, 2024
s 602A.....	ad No 79, 2022
s 602B.....	ad No 79, 2022
s 603.....	am No 174, 2012; No 73, 2013; No 2, 2024
Subdivision E	
s 604.....	am No 124, 2009; No 174, 2012; No 175, 2012; No 79, 2016; No 79, 2022; No 2, 2024
s 605.....	am No 174, 2012
s 606.....	am No 174, 2012
s 607.....	am No 124, 2009; No 174, 2012; No 79, 2016; No 79, 2022
s 608.....	am No 174, 2012
Subdivision F	
s 609.....	am No 174, 2012; No 73, 2013; No 79, 2022
s 610.....	am No 174, 2012
s 611.....	am No 174, 2012

Endnote 4—Amendment history

Provision affected	How affected
Division 4	
Division 4 heading.....	am No 174, 2012
Subdivision A	
Subdivision A heading.....	am No 174, 2012
s 612.....	am No 174, 2012
s 613.....	am No 124, 2009; No 174, 2012; No 175, 2012; No 79, 2016; No 79, 2022
s 615.....	am No 174, 2012
s 615A.....	ad No 174, 2012 am No 79, 2022
s 615B.....	ad No 174, 2012 am No 31, 2014
s 615C.....	ad No 174, 2012 am No 31, 2014
s 616.....	am No 174, 2012; No 170, 2018; No 79, 2022; No 2, 2024
s 617.....	am No 174, 2012; No 79, 2022; No 2, 2024
s 617AA.....	ad No 79, 2022 am No 2, 2024
s 617A.....	ad No 79, 2022 am No 2, 2024
s 617B.....	ad No 79, 2022
Subdivision B	
Subdivision B heading.....	rs No 174, 2012 am No 174, 2012
s 618.....	am No 174, 2012
s 619.....	am No 174, 2012
s 620.....	am No 174, 2012; No 79, 2022; No 2, 2024 ed C61
s 621.....	am No 174, 2012
s 622.....	am No 55, 2009; No 174, 2012; No 31, 2014; No 79, 2022; No 2, 2024

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Endnote 4—Amendment history

Provision affected	How affected
s 623.....	am No 174, 2012
s 624.....	am No 174, 2012
Subdivision C	
Subdivision C heading.....	am No 174, 2012
s 625.....	am No 174, 2012
Division 5	
Division 5 heading.....	am No 174, 2012
Subdivision A	
Subdivision A heading.....	am No 174, 2012
s 626.....	am No 174, 2012
s 627.....	am No 174, 2012; No 13, 2013; No 13, 2021; No 79, 2022; No 2, 2024
s 628.....	am No 174, 2012
s 629.....	am No 174, 2012
Subdivision B	
Subdivision B heading.....	am No 174, 2012
s 629A.....	ad No 55, 2009
s 630.....	am No 174, 2012
s 632.....	am No 174, 2012; No 73, 2013
s 633.....	am No 174, 2012
s 634.....	am No 174, 2012
s 637.....	am No 174, 2012
s 639.....	am No 174, 2012
s 640.....	am No 174, 2012; No 31, 2014
s 641.....	am No 174, 2012
s 641A.....	ad No 174, 2012
s 641B.....	ad No 170, 2018
	am No 13, 2021
s 642.....	am No 174, 2012
s 643.....	am No 174, 2012
s 644.....	am No 174, 2012 (as am by No 73, 2013)

Endnote 4—Amendment history

Provision affected	How affected
s 645.....	am No 174, 2012
s 646.....	am No 174, 2012
s 647.....	am No 174, 2012
s 648.....	am No 174, 2012
Division 6	
s 649.....	am No 124, 2009; No 174, 2012
s 650.....	am No 174, 2012
Division 7	
s 651.....	am No 174, 2012
s 652.....	am No 174, 2012; No 62, 2014; No 79, 2022
s 653A.....	am No 174, 2012; No 13, 2013; No 13, 2021
s 654.....	am No 55, 2009; No 174, 2012
s 655.....	am No 174, 2012
Division 8	
Subdivision A	
s 656.....	am No 174, 2012
s 657.....	am No 174, 2012; No 79, 2022
s 658.....	am No 174, 2012; No 62, 2014; No 79, 2022
Subdivision B	
s 660.....	am No 174, 2012
s 663.....	am No 174, 2012
s 664.....	rs No 62, 2014
s 666.....	am No 174, 2012
s 668.....	am No 174, 2012
s 669.....	am No 174, 2012
Subdivision C	
s 670.....	am No 174, 2012; No 73, 2013
s 671.....	am No 174, 2012
s 672.....	am No 174, 2012
s 673.....	am No 174, 2012

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Endnote 4—Amendment history

Provision affected	How affected
Subdivision D	
s 673A.....	ad No 62, 2014
Division 9	
Division 9 heading.....	am No 174, 2012
s 674.....	am No 174, 2012
s 675.....	am No 174, 2012; No 73, 2013; No 38, 2020; No 104, 2021; No 79, 2022; No 2, 2024; No 32, 2024; No 74, 2024
s 676.....	am No 174, 2012
s 677.....	am No 174, 2012
s 678.....	am No 174, 2012
Part 5-2	
Division 1	
s 680.....	am No 33, 2012
Division 2	
Subdivision A	
s 682.....	am No 174, 2012; No 79, 2022; No 120, 2023; No 2, 2024
s 683.....	am No 101, 2017
s 684.....	am No 126, 2015
s 685.....	am No 101, 2017
s 686.....	rs No 62, 2014 am No 101, 2017
Subdivision B	
s 690.....	am No 174, 2012
s 691.....	rep No 62, 2014
s 693.....	am No 174, 2012; No 62, 2014
Division 3	
Subdivision A	
s 696.....	am No 79, 2022
Subdivision D	
Subdivision D heading.....	rs No 101, 2017
s 703.....	am No 101, 2017

Endnote 4—Amendment history

Provision affected	How affected
s 706.....	am No 120, 2023
s 707A.....	ad No 101, 2017
Subdivision DA	
Subdivision DA heading.....	ad No 101, 2017
s 709.....	am No 54, 2009
Subdivision DB	
Subdivision DB heading.....	ad No 101, 2017
s 711.....	am No 120, 2023
s 712A.....	ad No 101, 2017
	am No 39, 2024
s 712AA.....	ad No 101, 2017
	am No 104, 2021; No 79, 2022; No 120, 2023; No 2, 2024; No 39, 2024
s 712AB.....	ad No 101, 2017
	am No 39, 2024
s 712AC.....	ad No 101, 2017
	am No 39, 2024
s 712AD.....	ad No 101, 2017
	am No 39, 2024
s 712AE.....	ad No 101, 2017
s 712B.....	ad No 101, 2017
s 712C.....	ad No 101, 2017
s 712D.....	ad No 101, 2017
s 712E.....	ad No 101, 2017
	am No 39, 2024
s 712F.....	ad No 101, 2017
Subdivision DC	
Subdivision DC heading.....	ad No 101, 2017
s 713.....	am No 54, 2009; No 103, 2013
	rs No 101, 2017
	am No 120, 2023

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Endnote 4—Amendment history

Provision affected	How affected
s 713A.....	ad No 54, 2009 am No 120, 2023
s 713AA.....	ad No 101, 2017
s 714.....	am No 101, 2017
s 714A.....	ad No 101, 2017
Subdivision DD	
Subdivision DD heading.....	ad No 101, 2017
s 715.....	am No 13, 2013; No 13, 2021
s 716.....	am No 13, 2013; No 38, 2020; No 13, 2021; No 79, 2022; No 2, 2024
s 717.....	am No 13, 2013; No 13, 2021
Subdivision DE	
Subdivision DE.....	ad No 120, 2023
s 717A.....	ad No 120, 2023
s 717B.....	ad No 120, 2023
s 717C.....	ad No 120, 2023
s 717D.....	ad No 120, 2023
s 717E.....	ad No 120, 2023
s 717F.....	ad No 120, 2023
s 717G.....	ad No 120, 2023
Subdivision F	
Subdivision F.....	ad No 101, 2017
s 718A.....	ad No 101, 2017
Chapter 6	
Part 6-1	
Division 1	
s 720.....	am No 33, 2012
Division 2	
s 721.....	am No 174, 2012
s 722.....	am No 55, 2009; No 174, 2012

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
Subdivision A	
s 724.....	am No 174, 2012
Subdivision B	
s 727.....	am No 174, 2012; No 73, 2013
s 729.....	am No 174, 2012
s 730.....	am No 174, 2012; No 73, 2013
s 732.....	am No 70, 2009
Subdivision C	
s 734.....	am No 79, 2022
Subdivision D	
Subdivision D	ad No 79, 2022
s 734A.....	ad No 79, 2022
s 734B	ad No 79, 2022
Subdivision DA	
Subdivision DA	ad No 2, 2024
s 734BA	ad No 2, 2024
s 734BB	ad No 2, 2024
Subdivision E	
Subdivision E.....	ad No 2, 2024
s 734C	ad No 2, 2024
Part 6-2	
Division 1	
s 735.....	am No 174, 2012; No 2, 2024
s 736.....	am No 33, 2012
Division 2	
Subdivision A	
s 737.....	rs No 2, 2024
Subdivision B	
s 738.....	am No 2, 2024
s 739.....	am No 174, 2012; No 79, 2022

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Endnote 4—Amendment history

Provision affected	How affected
s 740.....	am No 174, 2012; No 79, 2022
Part 6-3	
Division 1	
s 741.....	am No 50, 2022
Division 2	
Subdivision A	
s 745.....	am No 79, 2022; No 43, 2023
Division 2A	
Division 2A.....	ad No 50, 2022
Subdivision A	
s 757A.....	ad No 50, 2022
s 757B	ad No 50, 2022
	am No 79, 2022
s 757BA	ad No 50, 2022
	rs No 79, 2022
s 757C	ad No 50, 2022
s 757D.....	ad No 50, 2022
s 757E	ad No 50, 2022
Subdivision B	
s 757F	ad No 50, 2022
s 757G.....	ad No 50, 2022
s 757H.....	ad No 50, 2022
s 757J	ad No 50, 2022
s 757K.....	ad No 50, 2022
Part 6-3A	
Part 6-3A.....	ad No 175, 2012
Division 1	
s 768AA.....	ad No 175, 2012
s 768AB	ad No 175, 2012
Division 2	
s 768AC	ad No 175, 2012

Endnote 4—Amendment history

Provision affected	How affected
s 768AD.....	ad No 175, 2012
s 768AE	ad No 175, 2012
Division 3	
Subdivision A	
s 768AF.....	ad No 175, 2012
Subdivision B	
s 768AG.....	ad No 175, 2012
s 768AH.....	ad No 175, 2012
s 768AI	ad No 175, 2012
s 768AJ	ad No 175, 2012
s 768AK.....	ad No 175, 2012
s 768AL	ad No 175, 2012
s 768AM	ad No 175, 2012
	am No 174, 2012
s 768AN.....	ad No 175, 2012
	am No 174, 2012
s 768AO.....	ad No 175, 2012
	am No 174, 2012
Division 4	
Subdivision A	
s 768AP.....	ad No 175, 2012
Subdivision B	
s 768AQ.....	ad No 175, 2012
s 768AR	ad No 175, 2012
Subdivision C	
s 768AS.....	ad No 175, 2012
	am No 174, 2012
s 768AT	ad No 175, 2012
	am No 174, 2012
Subdivision D	
s 768AU	ad No 175, 2012

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Endnote 4—Amendment history

Provision affected	How affected
	am No 174, 2012
Division 5	
Subdivision A	
s 768AV	ad No 175, 2012
Subdivision B	
s 768AW	ad No 175, 2012
s 768AX	ad No 175, 2012
	am No 174, 2012
Subdivision C	
s 768AY	ad No 175, 2012
Division 6	
Division 6 heading	am No 174, 2012
Subdivision A	
s 768AZ	ad No 175, 2012
	am No 174, 2012
s 768AZA	ad No 175, 2012
Subdivision B	
s 768BA	ad No 175, 2012
	am No 174, 2012
s 768BB	ad No 175, 2012
	am No 174, 2012
Division 7	
Division 7 heading	am No 174, 2012
Subdivision A	
s 768BC	ad No 175, 2012
	am No 174, 2012
s 768BCA	ad No 175, 2012
Subdivision B	
s 768BD	ad No 175, 2012
	am No 174, 2012
s 768BE	ad No 175, 2012

Endnote 4—Amendment history

Provision affected	How affected
s 768BF	ad No 175, 2012 am No 174, 2012
Subdivision C	
s 768BG	ad No 175, 2012 am No 174, 2012
s 768BH	ad No 175, 2012
s 768BI	ad No 175, 2012 am No 174, 2012
Division 8	
Subdivision A	
s 768BJ	ad No 175, 2012 am No 174, 2012
Subdivision B	
s 768BK	ad No 175, 2012 am No 2, 2024
Subdivision C	
s 768BL	ad No 175, 2012
s 768BM	ad No 175, 2012
s 768BN	ad No 175, 2012
s 768BO	ad No 175, 2012 am No 174, 2012
s 768BP	ad No 175, 2012
s 768BQ	ad No 175, 2012
Subdivision D	
s 768BR	ad No 175, 2012
s 768BS	ad No 175, 2012 am No 174, 2012
s 768BT	ad No 175, 2012
s 768BU	ad No 175, 2012
s 768BV	ad No 175, 2012
s 768BW	ad No 175, 2012

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Endnote 4—Amendment history

Provision affected	How affected
	am No 174, 2012
Subdivision E	
s 768BX	ad No 175, 2012
Subdivision F	
s 768BY	ad No 175, 2012
	am No 174, 2012
Subdivision G	
s 768BZ.....	ad No 175, 2012
Division 9	
s 768CA	ad No 175, 2012
Part 6-4	
Division 1	
s 769.....	am No 174, 2012
Division 2	
s 771.....	am No 79, 2022; No 43, 2023
s 772.....	am No 98, 2013; No 79, 2022; No 43, 2023; No 120, 2023
s 773.....	am No 174, 2012
s 774.....	am No 174, 2012; No 73, 2013
s 775.....	am No 174, 2012
s 776.....	am No 174, 2012
	rs No 73, 2013
s 777.....	am No 174, 2012
	rs No 73, 2013
s 778.....	am No 174, 2012
	rs No 73, 2013
s 779.....	am No 55, 2009; No 174, 2012
	rs No 73, 2013
s 779A.....	ad No 73, 2013
s 780.....	am No 174, 2012
	rs No 73, 2013
s 781.....	am No 174, 2012

Endnote 4—Amendment history

Provision affected	How affected
	rs No 73, 2013
s 781A.....	ad No 73, 2013
s 782.....	am No 73, 2013
s 783.....	am No 73, 2013
Division 3	
Subdivision C	
s 786.....	am No 174, 2012
s 787.....	am No 174, 2012
s 788.....	am No 174, 2012
Part 6-4A	
Part 6-4A.....	ad No 33, 2012
Division 1	
s 789AA.....	ad No 33, 2012
s 789AB.....	ad No 33, 2012
s 789AC.....	ad No 33, 2012
Division 2	
s 789BA.....	ad No 33, 2012
	am No 175, 2012
s 789BB.....	ad No 33, 2012
s 789BC.....	ad No 33, 2012
Division 3	
s 789CA.....	ad No 33, 2012
	am No 175, 2012
s 789CB.....	ad No 33, 2012
s 789CC.....	ad No 33, 2012
	am No 136, 2012
s 789CD.....	ad No 33, 2012
	am No 13, 2013; No 13, 2021
s 789CE.....	ad No 33, 2012
	am No 13, 2013; No 13, 2021
s 789CF.....	ad No 33, 2012

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Endnote 4—Amendment history

Provision affected	How affected
Division 4	
s 789DA	ad No 33, 2012
s 789DB	ad No 33, 2012
s 789DC	ad No 33, 2012
s 789DD	ad No 33, 2012
s 789DE	ad No 33, 2012
	am No 175, 2012; No 126, 2015
Division 5	
s 789EA	ad No 33, 2012
Part 6-4B	
Part 6-4B heading	am No 104, 2021; No 79, 2022
Part 6-4B	ad No 73, 2013
Division 1	
s 789FA	ad No 73, 2013
	am No 104, 2021; No 79, 2022
s 789FB	ad No 73, 2013
Division 2	
Division 2 heading	am No 104, 2021; No 79, 2022
s 789FC	ad No 73, 2013
	am No 104, 2021; No 79, 2022
s 789FD	ad No 73, 2013
	am No 104, 2021; No 79, 2022
s 789FE	ad No 73, 2013
s 789FF	ad No 73, 2013
	am No 104, 2021; No 79, 2022
s 789FG	ad No 73, 2013
	am No 104, 2021; No 79, 2022
s 789FH	ad No 73, 2013
	am No 104, 2021; No 79, 2022
s 789FI	ad No 73, 2013
s 789FJ	ad No 73, 2013

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Provision affected	How affected
s 789FK.....	ad No 73, 2013
s 789FL.....	ad No 73, 2013
Part 6-4C	
Part 6-4C.....	ad No 38, 2020
Division 1	
s 789GA.....	ad No 38, 2020 am No 81, 2020 rep No 38, 2020
s 789GB.....	ad No 38, 2020 rep No 38, 2020
s 789GC.....	ad No 38, 2020 am No 38, 2020; No 81, 2020
s 789GCA.....	ad No 81, 2020 rs No 74, 2023
s 789GCB.....	ad No 81, 2020
s 789GCC.....	ad No 81, 2020
s 789GCD.....	ad No 81, 2020
Division 2.....	rep No 38, 2020
s 789GD.....	ad No 38, 2020 rep No 38, 2020
s 789GDA.....	ad No 38, 2020 rep No 38, 2020
s 789GDB.....	ad No 38, 2020 am No 81, 2020 rep No 38, 2020
Division 3 heading.....	am No 81, 2020 rep No 38, 2020
Division 3.....	rep No 38, 2020
s 789GDC.....	ad No 38, 2020 am No 81, 2020 rep No 38, 2020

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Endnote 4—Amendment history

Provision affected	How affected
Division 4 heading	am No 81, 2020
	rep No 38, 2020
Division 4	rep No 38, 2020
s 789GE	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
s 789GF	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
s 789GG	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
Division 5	rep No 81, 2020
s 789GJ	ad No 38, 2020
	rep No 81, 2020
Division 5A	ad No 81, 2020
	rep No 38, 2020
s 789GJA	ad No 81, 2020
	rep No 38, 2020
s 789GJB	ad No 81, 2020
	rep No 38, 2020
s 789GJC	ad No 81, 2020
	rep No 38, 2020
s 789GJD	ad No 81, 2020
	rep No 38, 2020
s 789GJE	ad No 81, 2020
	rep No 38, 2020
s 789GJF	ad No 81, 2020
	rep No 38, 2020
Division 6	rep No 38, 2020
s 789GK	ad No 38, 2020

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Provision affected	How affected
	am No 81, 2020
	rep No 38, 2020
s 789GL	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
s 789GM	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
s 789GMA	ad No 81, 2020
	rep No 38, 2020
s 789GN	ad No 38, 2020
	rep No 38, 2020
s 789GP	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
s 789GQ	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
Division 7	
s 789GR	ad No 38, 2020
Division 8	
s 789GS	ad No 38, 2020
	am No 81, 2020
Division 9	rep No 38, 2020
s 789GU	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
Division 10	
s 789GV	ad No 38, 2020
	am No 81, 2020
s 789GW	ad No 38, 2020

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Endnote 4—Amendment history

Provision affected	How affected
Division 11	rep No 38, 2020
s 789GX	ad No 38, 2020
	am No 81, 2020
	rep No 38, 2020
Division 12	
s 789GXA	ad No 38, 2020
s 789GXB	ad No 81, 2020
s 789GXC	ad No 81, 2020
s 789GXD	ad No 81, 2020
s 789GXE	ad No 81, 2020
s 789GY	ad No 38, 2020
	am No 81, 2020
s 789GZ	ad No 38, 2020
s 789GZA	ad No 38, 2020
Division 13	
s 789GZB	ad No 38, 2020
Part 6-4D	
Part 6-4D	ad No 79, 2022
s 789GZC	ad No 79, 2022
s 789GZD	ad No 79, 2022
s 789GZE	ad No 79, 2022
s 789GZF	ad No 79, 2022
s 789GZG	ad No 79, 2022
s 789GZH	ad No 79, 2022
s 789GZJ	ad No 79, 2022
s 789GZK	ad No 79, 2022
s 789GZL	ad No 79, 2022
s 789GZM	ad No 79, 2022
s 789GZN	ad No 79, 2022
s 789GZP	ad No 79, 2022
s 789GZQ	ad No 79, 2022

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Provision affected	How affected
Part 6-4E	
Part 6-4E	ad No 79, 2022
Division 1	
Division 1 heading.....	ad No 120, 2023
s 789HA	ad No 79, 2022
	am No 120, 2023
s 789HB	ad No 79, 2022
Division 2	
Division 2	ad No 120, 2023
s 789HC	ad No 120, 2023
s 789HD	ad No 120, 2023
Part 6-5	
Division 1	
s 791	am No 33, 2012
Division 2	
s 792	am No 33, 2016
s 793	am No 120, 2023
s 794A	ad No 120, 2023
s 794B	ad No 120, 2023
s 794C	ad No 120, 2023
s 794D	ad No 120, 2023
s 795A	ad No 33, 2012
	rs No 175, 2012
s 796A	ad No 55, 2009
	am No 174, 2012
s 799	am No 55, 2009
Schedule 1	
Schedule 1	rep No 55, 2009
	ad No 33, 2012
Part 1	
cl 1	rep No 55, 2009

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Provision affected	How affected
	ad No 33, 2012
cl 2	rep No 55, 2009
	ad No 33, 2012
cl 3	rep No 55, 2009
	ad No 33, 2012
cl 4	rep No 55, 2009
	ad No 33, 2012
	am No 175, 2012
cl 5	rep No 55, 2009
	ad No 33, 2012
cl 6	rep No 55, 2009
	ad No 33, 2012
cl 7	rep No 55, 2009
	ad No 33, 2012
	am No 175, 2012; No 126, 2015
Part 2	
Part 2.....	ad No 171, 2012
cl 8	ad No 171, 2012
cl 9	ad No 171, 2012
cl 10	ad No 171, 2012
	am No 61, 2013
cl 11	ad No 171, 2012
	am No 61, 2013
cl 12	ad No 171, 2012
	am No 61, 2013
Part 3	
Part 3.....	ad No 62, 2016
cl 13	ad No 62, 2016
cl 14	ad No 62, 2016
Part 4	
Part 4.....	ad No 101, 2017

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Provision affected	How affected
cl 15	ad No 101, 2017
cl 16	ad No 101, 2017
cl 17	ad No 101, 2017
cl 18	ad No 101, 2017
cl 19	ad No 101, 2017
cl 20	ad No 101, 2017
cl 21	ad No 101, 2017
cl 22	ad No 101, 2017
cl 23	ad No 101, 2017
cl 24	ad No 101, 2017
cl 24A	ad No 101, 2017
Part 5	
Part 5	ad No 170, 2018
Division 1	
cl 25	ad No 170, 2018
Division 2	
cl 26	ad No 170, 2018
	am No 79, 2022
cl 27	ad No 170, 2018
	exp end of 31 Dec 2019 (Sch 1 (c 27(3)))
	rep No 2, 2024
Division 3	
cl 28	ad No 170, 2018
Division 4	
cl 29	ad No 170, 2018
Part 6	
Part 6	ad No 84, 2017
cl 30	ad No 84, 2017
Part 8	
Part 8	ad No 169, 2018
cl 39	ad No 169, 2018

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Endnote 4—Amendment history

Provision affected	How affected
cl 40	ad No 169, 2018
Part 9	
Part 9	ad No 105, 2020
cl 41	ad No 105, 2020
	am No 105, 2020
cl 42	ad No 105, 2020
cl 43	ad No 105, 2020
Part 10	
Part 10	ad No 25, 2021
Division 1	
cl 44	ad No 25, 2021
Division 2	
cl 45	ad No 25, 2021
cl 46	ad No 25, 2021
cl 47	ad No 25, 2021
cl 47A	ad No 25, 2021
cl 48	ad No 25, 2021
	am No 74, 2023
Part 11	
Part 11	ad No 104, 2021
cl 49	ad No 104, 2021
	am No 74, 2023
cl 49A	ad No 104, 2021
	am No 74, 2023
cl 50	ad No 104, 2021
	am No 74, 2023
Part 12	
Part 12	ad No 50, 2022
cl 51	ad No 50, 2022
	am No 50, 2022
cl 52	ad No 50, 2022

Endnote 4—Amendment history

Provision affected	How affected
cl 53	ad No 50, 2022
cl 54	ad No 50, 2022
Part 13	
Part 13	ad No 79, 2022
Division 1	
cl 55	ad No 79, 2022
Division 2	
cl 56	ad No 79, 2022
Division 3	
cl 57	ad No 79, 2022
Division 4	
cl 58	ad No 79, 2022
Division 5	
cl 59	ad No 79, 2022
Division 6	
cl 60	ad No 79, 2022
Division 7	
cl 61	ad No 79, 2022
Division 8	
cl 62	ad No 79, 2022
cl 63	ad No 79, 2022
Division 9	
cl 64	ad No 79, 2022
Division 10	
cl 65	ad No 79, 2022
Division 11	
cl 66	ad No 79, 2022
Division 12	
cl 67	ad No 79, 2022
Division 13	
cl 68	ad No 79, 2022

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Endnote 4—Amendment history

Provision affected	How affected
cl 69	ad No 79, 2022
Division 14	
cl 70	ad No 79, 2022
cl 71	ad No 79, 2022
Division 15	
cl 72	ad No 79, 2022
Division 16	
cl 73	ad No 79, 2022
cl 74	ad No 79, 2022
cl 75	ad No 79, 2022
cl 76	ad No 79, 2022
cl 77	ad No 79, 2022
cl 78	ad No 79, 2022
cl 78A	ad No 79, 2022
cl 78B.....	ad No 79, 2022
cl 78C.....	ad No 79, 2022
Division 17	
cl 80A	ad No 79, 2022
cl 81	ad No 79, 2022
cl 82	ad No 79, 2022
Division 17A	
cl 82A	ad No 79, 2022
Division 18	
cl 83	ad No 79, 2022
Division 19	
cl 84	ad No 79, 2022
Division 20	
cl 85	ad No 79, 2022
Part 14	
Part 14.....	ad No 43, 2023

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Provision affected	How affected
Division 1	
cl 86	ad No 43, 2023
Division 2	
cl 87	ad No 43, 2023
Division 3	
cl 88	ad No 43, 2023
Division 4	
cl 89	ad No 43, 2023
Division 5	
cl 90	ad No 43, 2023
Part 15	
Part 15	ad No 120, 2023
Division 1	
cl 91	ad No 120, 2023
Division 2	
cl 92	ad No 120, 2023
Division 3	
cl 93	ad No 120, 2023
Division 4	
cl 94	ad No 120, 2023
cl 95	ad No 120, 2023
cl 96	ad No 120, 2023
cl 97	ad No 120, 2023
Division 5	
cl 98	ad No 120, 2023
Division 6	
cl 99	ad No 120, 2023
Part 16	
Part 16	ad No 2, 2024
Division 1	
cl 100	ad No 2, 2024

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Endnote 4—Amendment history

Provision affected	How affected
Division 2	
cl 101	ad No 2, 2024
cl 102	ad No 2, 2024
cl 103	ad No 2, 2024
Division 3	
cl 104	ad No 2, 2024
cl 105	ad No 2, 2024
cl 106	ad No 2, 2024
Division 4	
cl 107	ad No 2, 2024
cl 108	ad No 2, 2024
cl 109	ad No 2, 2024
Division 5	
cl 110	ad No 2, 2024
cl 111	ad No 2, 2024
Division 5A	
cl 111A	ad No 2, 2024
cl 111B.....	ad No 2, 2024
cl 111C.....	ad No 2, 2024
cl 111D	ad No 2, 2024
Division 6	
cl 112	ad No 2, 2024
Division 7	
cl 113	ad No 2, 2024
Division 8	
cl 114	ad No 2, 2024
Part 17	
Part 17.....	ad No 2, 2024
Division 1	
cl 115	ad No 2, 2024

Endnote 4—Amendment history

Provision affected	How affected
Division 2	
cl 116	ad No 2, 2024
cl 117	ad No 2, 2024
cl 118	ad No 2, 2024
cl 119	ad No 2, 2024
cl 120	ad No 2, 2024
Division 3	
cl 121	ad No 2, 2024
cl 122	ad No 2, 2024
Part 18	
Part 18	ad No 2, 2024
Division 1	
cl 123	ad No 2, 2024
Division 2	
cl 124	ad No 2, 2024
cl 125	ad No 2, 2024
cl 126	ad No 2, 2024
Part 19	
Part 19	ad No 37, 2025
cl 127	ad No 37, 2025
Part 20	
Part 20	ad No 56, 2025
cl 128	ad No 56, 2025
cl 129	ad No 56, 2025
Part 21	
Part 21	ad <u>No 57, 2025</u>
cl 130	ad <u>No 57, 2025</u>
Part 22	
Part 22	ad No 20, 2026
cl 131	ad No 20, 2026

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Endnote 4—Amendment history

Provision affected	How affected
Schedule 2	
Schedule 2.....	ad No 175, 2012
cl 1	ad No 175, 2012
cl 2	ad No 175, 2012
Schedule 3	
Schedule 3.....	ad No 174, 2012
Part 1	
cl 1	ad No 174, 2012
Part 2	
cl 2	ad No 174, 2012
cl 2A	ad No 174, 2012 (as am by No 89, 2013)
cl 2B.....	ad No 174, 2012 (as am by No 89, 2013)
Part 3	
cl 3	ad No 174, 2012
Part 4	
cl 4	ad No 174, 2012
cl 5	ad No 174, 2012
cl 6	ad No 174, 2012
cl 7	ad No 174, 2012
cl 8	ad No 174, 2012
Part 5	
cl 9	ad No 174, 2012
Part 6	
cl 10	ad No 174, 2012
cl 11	ad No 174, 2012
cl 12	ad No 174, 2012
cl 13	ad No 174, 2012
Part 7	
cl 14	ad No 174, 2012
cl 15	ad No 174, 2012
cl 16	ad No 174, 2012

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Provision affected	How affected
Part 8	
cl 17	ad No 174, 2012
cl 18	ad No 174, 2012
cl 19	ad No 174, 2012
cl 20	ad No 174, 2012
cl 21	ad No 174, 2012
cl 22	ad No 174, 2012
cl 23	ad No 174, 2012
Part 9	
cl 24	ad No 174, 2012
cl 25	ad No 174, 2012
cl 26	ad No 174, 2012
cl 27	ad No 174, 2012
cl 28	ad No 174, 2012
cl 29	ad No 174, 2012
cl 30	ad No 174, 2012
Part 10	
cl 31	ad No 174, 2012
Part 11	
cl 32	ad No 174, 2012
	am No 126, 2015
Schedule 4	
Schedule 4.....	ad No 73, 2013
Part 1	
cl 1	ad No 73, 2013
Part 2	
cl 2	ad No 73, 2013
cl 3	ad No 73, 2013
cl 4	ad No 73, 2013
cl 5	ad No 73, 2013
cl 6	ad No 73, 2013

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Endnote 4—Amendment history

Provision affected	How affected
Part 3	
cl 7	ad No 73, 2013
Part 4	
cl 8	ad No 73, 2013
Part 4A	
cl 8A	ad No 73, 2013
Part 5	
cl 9	ad No 73, 2013
Part 6	
cl 10	ad No 73, 2013
Part 7	
cl 11	ad No 73, 2013
Schedule 5	
Schedule 5.....	ad No 156, 2015